

CRIMINAL TYPES

BY
COL. V. M. MASTEN



BOSTON
RICHARD G. BADGER
THE GORHAM PRESS

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TYPES ***

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INTRODUCTION

Very much in the printed page has been aimed wide of the mark alike of the prevention, the deterrence, and the reclamation of the pedlar felon.

It is intended that this semi-technical volume shall help to call the truly reformatory turn. Also, the intention is that the subject matter of the book shall at once amplify and reinforce conclusions reached in *The Crime Problem* and *Stop Thief!* the author's previous publications.

A distinctively scientific treatise on crime and criminals is not essayed by the writer, for the very good reason that such a treatise is not, at this moment, to any man's hand. This, because human society seethes in the most fateful transitional state of all time up to this time; because human expression is more complex and varied than during any other period of human history; because material values change with constantly changing conditions; and because the criminal picks his tools and plys them agreeably with the pressure upon him of objective influences germane in those conditions of change.

The crass criminal presents no psychic problem. He is much as he was, impelled much as he was, when cavemen carried clubs. Having, usually, but mediocre mental equipment, and being crowded out of the big games of life, he has recourse naturally either to individual force, or to crooked cunning with which to match the throws of his better-equipped brothers.

By and large, the issue with the low-grade habitual forager is a very simple one; in the final analysis, he leaves society no choice other than to fight him with the like of his chosen weapons.

There will be isolated and sporadic exceptions to the general rule given; but as to the grand majority of marauding criminals, they must be met, both in and out of prison, with force more impressive than that which they employ; palpably so, else penal codes might as well be pigeon-holed for containing meaningless proscriptions.

It is as all would like it when the force can be confined to educative measures so ordered for sustained averages as to encourage the imprisoned to help themselves; but when they won't help, just *won't*, then steps must be taken which will make it practically impossible for them further to filch from their fellowmen.

If a thief will have it no other way than to be a thief, then control of him, and not his social rehabilitation, must be the desideratum.

Circumstantial felons there will be so long as social circumstance makes for them. Always a certain percentage will go down under the pressure of a closely competitive social scheme that recks but little of moral weaklings, and less of physical slackers; but such bear serious relation to criminal statistics in the sense only that they are dragged down to habitual crime appreciably by criminal recidivists; by repeating felons who forage on society by choice, who make no bones about it, who shout stout defense of it, and who glory in it.

With the latter class of criminals it is up to America to deal, and to *do it now*. During recent decades, and within and without prison walls, crime-breeding slack has been paid out to them until to kill ruthlessly means not so much to them as would warts on their hands.

Therefore: reformatory régimes should function so as to free such prisoners of shackles forged by their lower selves. When refractory units will not coöperate to that end, the aim of society must be for deterrence that protects society from them, and no apology whatsoever to them for the deterrence.

For society habitually to bare its breast to the deadly strokes of derailed underdogs, just because they are derailed underdogs, is for society to spade at its own grave.

Statistics that involve general conclusions are avoided herein. They are, because under present opportunity for specific research, they cannot be made either substantially reliable or inclusive. At the best they may mislead. At the worst they will lie.

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CRIMINAL TYPES

CRIMINAL TYPES

I

TYPAL EARMARKS

Criminal types there are, but there is no one criminal type.

Closely-allied criminous expression is vastly different as to individual intent. That will be so because the underlying causes for like offenders are dissimilar and variable.

The height of the offense usually squares with the depth of depravity, the which is no respecter of facial or other deviations from the Apollo type.

Jails would be more numerous than churches, were natural criminals surely shadowed forth in visible signs such as long, tapering fingers; rodent eyes, or those bead-like, shifty, countersunk and narrowly spaced; bull neck, connected with a vertically-lined back head; laterally-extended side-jaw bones; protruding fore jaw; the ape's forehead, marked by the ape's fuzzy hairline, the same fuzzy hair extending inward from under the outer edges of the eye sockets; eagle's beak, or more commonly, the tangential, flattened nose of the gorilla, with arms like his, unusually long and big-boned as compared with the rest of the frame; thin lips, emphasizing a cruelly-set mouth, or thick lip above a ponderous jaw; and ears in all sizes, conformation, setting and contour, opposed to the perfect model.

It is true that the predal felon frequently features several of such as the signs indicated. It is also true that millions of honest freemen feature the same signs, and do no worse than dissemble, as more or less do all humans. And it is further true that, in so far as emphasis on such symbols is concerned, the bulk of lawbreakers would pass unnoticed in a promiscuous crowd.

Still, close parallels prevail as between members of classes of the anti-social. They ply the same tools, speak the same language, are bound by and large by the same laws of clan, foregather in the same caves of earth, affect the same mannerisms and mental attitude, and spend ill-gotten gain for intrinsically the same things, if over different counters; but they do not yield

of themselves in the same measure to the powers of darkness. If they did, the bulk of them would be capital criminals, instead of offenders against property.

Usually the pack are of one mind as to the method of procedure, else they wouldn't "pal" it as one. Type then matches type as closely as members of criminal types match; yet no two will be actuated by absolutely the same motives, and no two will have come by motives to act in absolutely the same way. The demarcation may call for the most careful of research; but it will be there, and it will demarcate, if only by shading so slight as to escape other than the truly expert examiner.

Glaring cross-matches of type evolve not infrequently, as for example: of two on the same job, the one would ride rough-shod and quickly over human life to what he seeks. The other balks, then and there, at ruthless spilling of blood, and will "queer the deal" rather than be party to a killing.

The first duty of the criminologist is to probe to the cardinal causes for a given type of criminal. Doing it, he will uncover the fact that aside from the congenital thief—who thieves as naturally as his more polished prototype mulcts agreeably with man-struck statutes—the average criminal commonly consummates in effect to help whirl the treadmills of parasitic sporting mongers. He is the pawn sacrificed in the all-comprehensive predal game. His the lay to go out and "get the goods," somewhere, anyway; theirs to induce him to stake his loot against odds that are unbeatable at long play. He takes all of the chances coming and going; but since he is a generous and constant provider, nimble-fingered and witted gentry pass some little of coin to grease his going, and to "stake" him, fresh from durance for having waxed a bit too bold while operating out of the domain of comparative immunity. In big cities, the "bull" usually gets him only when he bungles.

In any case it is "Easy come, easy go" with the criminal, both as to the gelt he gets and his punishment for getting it the way he gets it; and so, while plying their nefarious tools, all types of criminals play both ends against the established social order.

The marauding type figure, for instance, that it is clever business to crack a man on the cranium, relieve him of a money satchel containing a small fortune, "plant" the fortune, then if caught and convicted, loll around a

prison for a few months; and it is “clever” as seen from the criminal’s point of view, however asinine it may be from the viewpoint of deterring him.

Right here hides “the nigger in the woodpile”: the thief is sentenced merely to serve time, without regard for restitution of that which he had stolen. In many cases the time served is little more than “sleepin’ time” the which he jeeringly dubs it; and in no case does it cover the question of equity.

What actual redress has a man for the loss of thousands of dollars, in the imprisonment of a malefactor, no matter how long his term of imprisonment runs?

What the deterrence in a comparatively short prison term that leaves the prisoner with a firm grip on his bundle of loot?

What expect other than that certain types of men will gladly dare issues written to their hands, hearts, and natural predilections? Why wouldn’t such go after what they want with murderous tools?

How repress the criminal by bidding for him, and how deter him through laying odds in his favor that are close to prohibitive as against society?

Where the sense in penal procedure that puts a premium, both in and out of prison, on the won’t-work criminal rounder, and blisters the itinerant who does no worse than hawk harmless wares?

Why, on the one hand, tempt cupidity, and on the other hand, tax honesty? And if, as an individual, you will have it that way, why feel peeved about it, shall an automatic be shoved against your stomach as a raucous voice bites off the command, “Cough up the coin?”

Penal law will serve the commonwealth as it should only when it shall have assured restitution in kind by the thief, up to the reasonable limit. This, as to immediate restitution of “planted” loot not only; but the sentence should further amerce to a fine of the unpaid balance, to be worked out usually in prison by the prisoner and credited to the account of the party, or parties, he robbed.

If fine in prison working days were not congruous with generous justice, then the penalty to further amerce to stated monthly payments by the

prisoner on parole, to be held reasonably to his last by the State, or in lieu thereof, to be re-apprehended and required to pay by compulsion as stated.

Cases would come up, of course, whereof the exact lettering of law of the kind could not be executed; but such law could and should be framed so as to embrace the great bulk of predal offenses, and still carry sufficient of elasticity to enable committing magistrates to judge and dispose wisely for the common good.

It will be objected that such legal procedure would visit hardships on the families of offenders. Unquestionably that would be so in isolated instances, albeit the bulk of predal felons do not have families, and when they do, they are frequently a drag on them.

Again, it is, in the end, for the best interests of all concerned, that the State shall bring the last pressure to bear in order to stop the thief; particularly, marauding and foraging thieves. And again, the State could furnish work for the families of prisoners in cases of special need—and save money.

Through it all, relative distinction should be made as between the purely circumstantial and habitual thief. Not that social bon-bons should be tossed to the former; but that very close to even-handed justice should be meted out to the latter. So much distinctively should be done because by-choice predal felons always constitute the nucleus of crime and criminal intent in America.

Isolated cases will not be entirely congruous with any general rule of penal law; but consideration of the peace and security of the great mass must go before emotional procedure whatsoever which crosses the curbing of the gun-hung hound who goes a'riding to kill.

To split hairs of deterrence over confirmed social hyenas, is to furnish them with the last formula from which to tear things.

At any rate, the most efficient punishment is natural punishment. To make the thief pay in kind is absolutely the best way by which to discourage the thief; and shall he have been made to pay for a “dead horse,” he shall have, mayhap, for the first time in his life, absorbed an awakening respect for the law of consequence. And having got so far, mayhap there will be hope for him; but not so, so long as society practically furnishes him grist to grind in

such as subterranean “protection,” false sentence, false probatory extensions, and false prison régimes which allow him to pick and choose, play up and down and under.

Specifically writing, the time to start “restitution” is in the time of youth, and the occasion, the first offense. Then, when the toll against a lad is comparatively in pennies, the degradation of thieving should be brought home to him in a parole paper contingent upon his restoration, dollar for dollar, of that of which he had deprived another. Thereafter, raise the imposition to suit repetition, so long as he is held subject to probation. At the reformatory, the same rule should hold, plus legal interest on the obligation—shall he have come up through a juvenile school of reform, after having broken probatory parole.

Measures of the kind wouldn’t cure all of thievery, since many thieves are born thieves who take to thieving as ducks to water; but they would serve in due time to cause the bulk of potential thieves to consider it most carefully before deciding for the anti-social chute.

Whatever the type of criminal, he is usually motivated cardinally in the selection of a criminal career by a very positive distaste for actual work. If he is an itinerant, half-baked tradesman, he will take a “flyer” here and there at his craft, especially while the police are combining for those of his kidney; but consecutive, concentrated endeavor in a humdrum groove he will not abide. And since his instinctive impulsions are those of the parasite, and his appetites those which require some little of money to satisfy, he takes naturally to the tools of the crook.

What crooked tools he will select will depend largely upon his natural fitness to employ them. Usually he aims to excel in his particular line, and he will usually choose the line in which he thinks he can do so. If he is rough-hewn, likes the feel of rough tools, and has the knack of handling them, he will likely enlist in the yeggman division. One whose tastes are more refined and temper more timorous, will naturally go in for forgery, if he guides a cunning tracing pen. The big-tent men, with nerve and daring, take the longest chance with superior intelligence and engraving skill, and keep paying tellers agog. Those who pack a plausible “gift of gab,” backed by no mean knowledge of the intricacies of high finance, as well as where

the same does and does not trench upon legal proscriptions, constitute the Wallingfords of “fake” promotion; and lesser lights of the same persuasion who have neither the smoothness of personality, approach and attack of their bigger brothers, form the “now-you-see-it-and-now-you-don’t” fraternity of endless variety and variety of working tools. The sneak-thief runs true to his name, and is properly most dreaded by the clan criminal, some of whom he is most liable to “double-cross,” and others to euchre with the cards of the “stool-pigeon.” Second-story operators, his near relations, are commonly drug-soaked neurotics with a penchant for the air-line, and bizarre ways and means of getting to it and getting away with it.

Since the temptation is great to get a whole lot for nothing and to do it quickly, and since it is so easily done these days, the marauding criminal will be most any type of criminal; but he is commonly a murderously-inclined high-wit of his class of exceptional nerve and resourcefulness, to the first of which he is commonly helped by such as heroin, and to the second by that spitting devil in spurious hands—the automobile. When he is a low-wit, and plans accordingly, the “finest” betimes get him; and when they do, he is a low-wit indeed if he cannot flash an indestructible alibi. Why not, when the testimony of his retainers is accepted at its face value in our courts of law?

The above partition of the predal crew is far from final, either as to selection of tools, or the manner in which they are employed. There will be overlapping and underlapping all along the criminal line, although the criminal is commonly quite as nice as another about his caste, habitually foregathers with those of his attainment, and affects to spurn smaller fry.

But bear it in mind that no two criminals are impelled to criminousness by identically the same underlying impulses.

The moral weakling stepped off with pyramided speculation, got caught at it, and lacking moral stamina to face out squarely a grave mistake, chose the supposedly lesser line of resistance to “easy money.”

This lad, congenitally tainted with light fingers, brought up in the midst of criminal suggestion, deprived of the benefit of influences that might have counterbalanced, literally kicked into the company of habitual thieves, finally casts his lot with them and lets it go at that.

That young man, inoculated with several species of the sporting bug, and with virus that saps at once his courage and vitality, gets entangled where he can't get clear, juggles figures, and finds his way into a 6 x 8 cell, where, being a consummate ego-centric—spite of the miserable mess he has made of it—he indulges in self pity, swears to himself that “everybody gave him the worst of it,” and declares for reprisal upon society in general. This is the type most likely either to “overlap or underlap,” depending upon the prison régime and the after-parole circumstance.

Another, engulfed over a heartless wench who rouses in him the demon jealousy—through playing him against the fellow who flashes “real” money, and for whom she adjusts the base string of her bow—goes desperate for means with which to match his rival's flings, “borrows” “bundle” after “bundle” from his employer, bets all, mostly on the wrong “ponies,” is held up, then thrown down by the girl, and then caves in and limps into a life of crime.

Such as the latter two types are criminals by the legal book, but as a rule they are not intrinsic criminals. Rather, they are comparatively spineless misfits in a closely competitive social scheme.

One who does predicate the alloy in man is the born brute who wields a blackjack with unrepressed satisfaction, kills ruthlessly without pity or subsequent remorse, and comes naturally by a social sense so blunted and oblique that he wouldn't walk a straight line if he knew it led to paradise. Partly as a side issue for gain, and partly to assure appreciable immunity from punishment for the common crimes of his class, the likes of him take on political thugism, and practically the same thing when they act as “starkers” for the active agents of certain labor unions. Needless to add, down-and-out ex-prize fighters, and would-be pugs of the prize ring, constantly recruit the mounting army corps of footpads, and “buzz-wagon” bandits.

To immigration laws framed and executed as if in response to the dictation of the spewed human spawn of the universe, is America indebted initially for brigades of her most dangerous brigands.

Sicilian and Neapolitan-Italians, members respectively of the Camorra and Mafiauso, particularly run to death-dealing criminality, prosecuted mainly

individual against individual or group against group within the clan, or clan against clan, or either or both in the form of blackmail against countrymen who have made or are making their pile, some honestly, more the reverse. The law does not cope with them and their ox-like blood-brothers in crime from the North and East of Italy, because the law goes about it piecemeal. Nothing short of a thorough governmental housecleaning of such will meet the issue as the government has allowed it to be presented by them. However they may war against each other, they move practically as one against the foundations of American institutions. Therefore they must be met with America's concentrated power, consecutively applied. Pecking at them, here a peck, there a peck, is childish compromise with them, and they know it; therefore, they are of the most flippant of the genus criminal: the more naturally so, because their native countries played into their hands much as America plays into them.

Close in the running with the foreign-born marauder is the mostly second-generation hyphenate, who would stretch the commandment to all of earthly time, and retain the phrasing—"In it thou shalt do no manner of work." This usually low-strata, erotic, intrinsically dirty, diseased, all-round trickster type, habitué of pool rooms, tinhorn gambling dens, and lowest-down houses of prostitution, is pernicious because he is so all-pervading, while versatile in his limited sphere: meaning, for instance, that he is just enough of a card shark to flank a real captain at crooked dealing, and just enough of a bandit to "steer" and help plunder such as an inebriated plunger, or to assist in a roughly-engineered hold-up. He will affect good clothes and the like, but will usually wear them in such pattern, color, ensemble, and fashion, as to render him at once suspect to the trained eye. Even in the matter of dress, criminals example duck following duck, and doing it, take on little habits, especially of using and placing their hands, that are informing. Also, as to the predatory type, particularly, the set, wolfish expression of countenance is quite likely to be as marked as is the "poker face" of the green-cloth gambler. And also, his sexual excesses will be lined in his face, as plainly as the geographic divisions between States.

Prolific dupes of the preceding type of criminal are potential criminals brewed originally in the home still: mama's or papa's, or mama's and papa's self-indulged pets, given money to burn, and unquestioned opportunity to burn it after the manner of the globe-trotting freelance. Enough said, save

only that criminals so fashioned are usually the most difficult and most tenacious of criminals; the former, because they are usually the most intelligent; and the latter, for the reason that they were home-primed, up through the most impressionable periods of youth and young manhood, for that which they quite naturally take on in the end. The intrinsic good in such lads is never entirely obliterated; hence they have their sober moments—so sober in fact that they commonly make for the “white stuff” and forgetfulness, as well as for nerve to go on with it. And then—finis!

The mental dud and habitué of iniquitous dens fetches and carries for more pretentious criminals. He will likely be a graduated dock-rat. Also, the passive agent on whom certain criminals execute their sexually-perverted desires; and also, he will be taking his kindergarten degrees at picking, snatching and sneaking. Such crowded-out derelicts are much to be pitied and little blamed, since they are the victims of cumulative circumstances wholly unfortuitous.

So one might pick and parse to many times the length of this chapter, not forgetting the meanest of secondary, subterranean crooks, who sport one or another badge of authority, while declaring themselves “in” on the division of criminal spoils. When the “division” reaches to those who pull political strings, we have the ulcerating stage of the criminous sore in the body politic.

While considering the limited list of criminal types herein adumbrated, recall again and again that not less than seventy per cent of the members of them are the ready dupes of those who utter and shove this or that mint of spurious sporting coin, inclusive of “dames” of all varieties of their variety, who urge them to do their worst.

Hundreds of pages could be filled, just in following out to their ramifications, the holds with which catch-as-catch-can gamesters alone throw crime-driven lads. More often than the reverse, “sporting” induces the first criminal offense; and still more often the gaming confirms the offender. It does firstly, because the gambling mania is less insistent and tenacious only than abnormal mating hunger, by which it is commonly aggravated; secondly, for the reason that a “killing” at gaming seems so often to offer the only way out; and thirdly, in that a tyro will as likely beat

professional gamblers at their games, as a “bush league” base-ball team the best of them all.

And so, after all, the chosen path of criminals is far from rose-strewn. “Big” and “little,” and “lesser” grafting and gambling “fleas” land on their “backs” and “bite ’em.”

Then, as if to make certain the job shall be completed after the plans of Mephisto, the State stings the budding criminal to social death through paroling him time and again from prisons wherein he had taken on not enough of any kind of skill to make a decent living with it for himself—say nothing of for a wife and family. Hence, naturally, if not perforce, he resumes the whirl around the criminal circle.

Is it, then, that the State itself is in appreciable degree responsible for its criminals of all grades and types? It is, beyond peradventure. It is, primarily as hereinbefore stated. It is further in allowing sprouting “roughnecks” to run as they list at all hours of the night. It is further still in not establishing State control over such children, through parents with whom the aim should be to hold them to natural care of their offspring. Where that cannot be done, the State should assume full educative and disciplinary direction, and do it at the earliest possible moment.

Vicarious cases of the kind should be followed through to the logical end. When it gets down to self-preservation as against the nurture of the most natural of criminals, the State needs must step in and extend the helping hand, as well as establish the whip hand in minimizing the causes of, and motives for, the criminal.

During recent decades, the States generally have contrariwise motivated for crime sequentially emphasized, through attempted mating with reformatory processes of cross-fire banalities, and worse.

Out of laudable desire to subject tempest-tossed humans to the least possible of punitive discipline, the States have suffered introduction into prison curriculums of distractions that disorder, even disintegrate reformatory measures, as for examples:

- (1) Stated periods of free conversation between inmates have been stretched to all-pervading promiscuous chatter, the most of it entirely foreign to

reformative endeavor.

Such as relating by Ikey the “Starker Kid,” how he “blimped” on the “bean” with a blackjack this or that wayfarer, bears intimate relation to the following count. It does, because “promiscuous chatter” will hold up any kind of work. Concentration is killed by it; hence it is not tolerated in free-life occupations, and hence to fix the habit of it in a prisoner is seriously to handicap him.

(2) Paroles are governed commonly by mere conduct, rather than by most material industrial and associated averages: a fatal retrogression, in itself not balanced by the total of alleged progressive measures instituted during recent years. He is a mental dud of a self-determining criminal indeed, who won’t play up to that hand and “be good” on the surface, while planning to “stall” as to activities cardinal to his social rehabilitation.

(3) The tone of amusement and the spirit of play has been reduced, the one to the level of the crumb-grubbing, dance-hall rounder; the other to match the mode of the man-mauling brute. Too nice distinctions need not be made in either case. They should not, in fact, be attempted on any field of recreation where red-blooded lads foregather; but such as bestial brutality carrying homosexual suggestion should be nipped religiously in the budding, else the depraved instincts of the minor percentage will be taken on gradually by the major percentage, and in degree by all.

Just because general assembly for free play affords abnormal units the best chance to imbue their betters with the bad, is just why the latter should be most carefully guarded by State agents on recreative fields. The memory of “roughneck” sexual manifestations abides in the minds of lads, and constantly stands athwart of efforts to enlist their undivided attention for fundamental results.

Periods of play should be, as they are not, so planned as to coincide with free-life recreative hours. Also, the periods should be capitalized only in the sense of needed exercise, beyond which prison play is, on its very face, non-reformative. Nothing short of all-around intensive instruction, prosecuted in accordance with what will be the free-life exactions upon the grossly ignorant and unskilled, will work for their social reclamation. They

must take up many loose stitches, and do it within a time allowance that is meagre.

(4) Camaraderie as between officers and inmates is carried to contempt-breeding familiarity; and freely-sprinkled cursing charged with foul suggestion, binds the “contempt.” Arraignment of such manifestations may seem far-fetched, if not trivial. Very positively it is neither. The reformative régime that suffers loose and foul-mouthed relations between officers and inmates cannot, by any possibility, express a wholly worthwhile purpose. The moral tonus of the place will be let down appreciably; general laxness will be the rule.

Aside from the fact that “Hello, Bill!” relations wrongly expressed commonize and corrupt, they tempt lads to make a foil of them, to the end that they may be as lazy and shiftless as they dare be.

And so, since the type of correctional plant in question will rather establish than reform all types of criminals, it is up to heads of houses of correction to run them true to reformative form. This, spite of both outside and inside pressure for fallacious methods, even though the “heads” must yield a cheap, ephemeral, and at bottom spurious popularity, in quest of measures that strike in and take root.

Such measures will not issue from minds obsessed by biological theories, stretched to the breaking point in favor of their furtherance; nor from the brains of stubbornly purblind mortals who refuse advanced tools of approved temper. They probably will originate with, and they certainly will be applied by, middle-of-the-road criminologists, who understand why, to the very dregs, it is, that the person given generally to loose, spineless practice, is reformatively less serviceable only than the person wedded to restrictive, hide-bound, single-seeing theory. Either way, the criminologist must strike the justifiable mean; shall he allow himself to be ridden by fetichism, he will surely fizzle essentially, no matter what the surface signs.

Whatever his type, the average felon is usually a singular problem and a complex entity. As such he must be searched out, studied, observed when and where he is not observing, and then prescribed for. His exactions in full will not be made known at any one place, at any one time, to anyone on earth, through any one means known to man. When his limitations are

mostly made manifest, they are found to be relatively much the same as those of the grand average of the common herd of humans.

Construe the criminal as you will, his crying need is for practical help to put on knowledge and skill with which to execute his social duties. He can well be spared frills, thrills, and a plethora of patting on the back; but not unquestionable suggestion and example, if he is to pull up and win out.

To school him not to lean, is first aid to any type of criminal.

To school the public to plumb to the cardinal causes for the like of the late, Los Angeles, degenerative manifestations, is to inform the public along the lines of the conclusion of this volume. It is also to disclose the deviltry, directed against the young, by the “camouflaged” libertine who deals in the vicious by-products of the sporting life. Hence, the writer bites again and again at the vicious-by-products of sport, by which he, himself, had been so ruthlessly disciplined, when a unit of the professional sporting mass. From having been “done” at it, he doesn’t have to guess.

II

THE CRIMINAL MIND

*Large contentions less avail than instances
observed.*

K

ipling.

Rudyard Kipling has been an adjustable man among men. His evenly-balanced mind has sized the stature of his fellows. He has nursed no crotchets by which to be betrayed into half-baked “contentions.” He has painted with pat regard for time, place, and individuals, whether the latter wore nose rings or royal purple. He has not debased a broad culture in hectic pursuit of dollars. He has stuck to a staunch last and striven handsomely.

Since much of so much must have been out of the generous hand of Nature, one could wish Kipling had studied criminals as he has studied other men, and that his “instances observed” thereof were spread as he would spread them in print over the globe.

A pen like Kipling’s would go far to clear away mental cobwebs, spun about the criminal mind by gourd-vine protagonists during the last three decades. As would he with our subject, let us begin at the beginning:

Whether the biblical account of the killing of Abel by Cain be taken as inspired writing, or as pure myth clothed out of man’s imagination, it was the first criminal act imaged by human consciousness. Also, Cain’s reply, “Am I my brother’s keeper?” to those who sought the murdered Abel, shadows forth fundamentally the attitude of mind of the average citizen towards the felon of to-day. It adumbrates, as well, the predilection of the criminal, now as then, to hide the truth with a smoke-screen of subterfuge; this, cleverly betimes, as in Cain’s case, through shunting question with

question, though the more common and vulgar method is resort to the clumsily covered lie.

Crass criminals give America cause for pause, only because America either directly or indirectly places crime-weapons in their hands. Along criminous trails they blaze they usually leave easily-recognized marks. In the main, they are scrambled-brained imitators, whom to catch and trip is no great chore.

It is totally different as to the self-determining, self-reliant, mentally keen and resourceful criminal, who is nearly callous to the effects of criminousness, and who seeks life's zest through matching wits with agents of the law.

Criminals of the latter class will meet you good-naturedly in ethical argument on your chosen ground, where they will catch you unawares "if you don't watch out."

For example, you expatiate on individual social service as a duty, and on the cumulative blessings which would accrue therefrom.

"Fine!" replies our man, and adds: "But how many are rendering that kind of service? How many besides those who make a 'soft' living at it, and those who first gouged and got theirs?"

You declare that line of argument doesn't cover the question of individual responsibility; that it doesn't answer for a thief to point other social slackers.

"All right," rebuts Thief, "but why ring all of the solemn bells on the retailers? Why not sound the curfew on a batch of the big bandits, and land them where you land hard-pressed 'pickers'?"

It's waxing a bit awkward, because Thief's query plumbs to the crux of the question; a plumbing he cunningly elects shall put society on the defensive. That won't do, so you switch and let fall your king card in challenge to him to square criminous conduct with the enacting predicates of divine law.

If he believes, after a fashion, in a Supreme Being, you have him there to a degree; albeit the belief seldom strikes deeper than fear of far-removed

consequence, the sting of which he is led to depend upon earth-born vicars to draw.

Finally to muss you up mentally, and in part to remove the moral stigma with which the Almighty stamps such as thieving, he will cite the twelfth-hour repentance and shriving of the thief on the Cross.

Here, again, your counter attack won't carry, unless you can drive home the historical fact that the thief in question had thieved against his intrinsic grain; that he had several times started out to seek the Saviour to be shriven of the unnatural load he had borne; and that he was turned back by fear of fatal strokes at the hands of members of the capital band of murderous marauders with whom he had ridden.

The crucial point to which we have been leading up is, of course, that America deserves the flippant, murderous footpad of all nationalities; first off because she has made no serious effort to understand what he is, and why he is what he is; and secondly, for the reason that she has failed miserably to match either the subjective or objective tools he has employed.

Essentially, America has gone out of her way to make the master criminal welcome, and then to wash his blood-stained hands for him. More than that, she has insisted not only upon his being what he isn't, either mentally, morally or physically; but further upon attaching to him the least modicum of responsibility for his criminal acts. Having furnished him with the complete formula for anti-social thoughts and deeds, she naturally gets the one from his lawless tongue, and the other out of the muzzle of his automatic.

Nor does the responsibility of America rest solely unto herself for the thieves and thugs she has bidden to her bosom, and there nurtured them with national pabulum that soured on their stomachs, or allowed them to be so nurtured. Thereof, she has complicated the crime problem the world over.

Time and again the forefathers warned against overfeeding of liberty and underwriting of patriotism, foreseeing that did they warn in vain, it would be a question of only a comparatively few years when America would lose

her autonomous character, and with the loss, her intrinsically singular meaning in the matter of human progress.

That sterile hour probably will not strike. Americans look up with faith and strength; yet they drift with hyphenates and social wolves; with hyphenates who constantly press for group expression encircled by the restrictive collar of creed; and with social wolves become so bold that they utter lobo howls of defiance on public thoroughfares, where they are suffered to sink poisonous fangs into the very vitals of Constitutional law.

With the former we have begun to deal by determining to make it our business to know that the oath of allegiance to America shall issue from the mouths of aliens who hold mentally in reserve not a thing that crosses that oath. This, primarily, through lengthening the probation period prior to issuance of final papers granting citizenship; and secondarily, through an undercurrent of public opinion so strong as against the conditional patriot, as to make that opinion carry for what it should and must.

With social wolves, it is again “totally different.” It is totally different because an appreciable percentage of them are the offspring of Americans whose ancestry strikes back native-born for several generations. They have been mainly the product of American life and living, ways and means.

True enough, the tussle has been and is with alien criminals and undesirables who recently have sieved into America; but that fact doesn’t let America out for her own brood of social backsliders; neither for the manner in which she has compromised with the full bandit crew, constantly mounting in numbers, and constantly less regardful of law and order.

In part, at least, the mind of the criminal who operates in America, is American-made. There is no getting away from that fact, and there is nothing hidden or strange about it.

Take a case common to alien criminals and potential criminals: up to last accounts, Italy’s Camorristis and Mafiausists ran to illegal rope under indifferent hindrance by Italy; yet they much prefer America as a camping ground. Why? Why for the simple reason that loose as is Italy’s legal hold upon them, the like grip of America is even less binding. Furthermore,

money-making, money-spreading, and license-breeding America is ripest for loot.

In no civilized country on earth, right now, when other countries are in the throes of disintegrating aftermath of the World War, can an individual, of his own volition, commit capital crime, and count chances of immunity from commensurate punishment in his favor, as he counts them in America.

That being the precise case stripped of lame excuse and lamer balderdash, why should it be extremely difficult to declare the functioning, as to his specific acts, of the mind of the capital criminal in America? And by “capital,” we do not mean to point the ruthless bungler who employs clumsy weapons clumsily; but the plausible, brainy crook, who cunningly “plays ’em all” against rightly-ordered social edicts, which he instinctively hates.

Actually look into and beyond the eyes of the “king-pin” criminal, while you seek to impress him with the just might of impartially executed law. Note how a hard glint will strike through the eyes, even though from ulterior motives he tries to hide it, and pretends to follow you reservedly.

Far from being the pitiable dunce and dupe he is so commonly rated, the by-choice American criminal of high grade is the most dangerous, least excusable, coolly-calculating menace to the social order the world has ever known. He is the most dangerous because he is the most resourceful, and has the least regard for human life; he is the least excusable for the reason that no country has ever borne with him and tried to help him pull up, as America has borne with him and tried to help him pull up; and he is flippantly the rest, and more, because the bids for him in America are made by exactly those whose first business it should be to overreach him.

Did he fail to make the most of those bids, he indeed would be the misfit “moron” agreeably with alleged “scientific” classification of him. Contrariwise, he “plays ’em all”: the judge; the patrolman; the politician; the social worker; the reformer, active and passive; probation officers; the prison agent of high degree he knows must play up to the merry-go-round cult of reformers, if he would hold his job; and, in a pinch in order to bag bigger game, he will “double-cross” any one or all, if he is sure he can keep the double-crossing under cover.

In so far as he shunts essential human values out of his mind, he is a fool, since true happiness is not for the thief or thug; but his material concepts fit human nature closely enough to enable him to go after and get pretty nearly what he wants, in and out of prison, while advisedly making use of all of the long odds in his favor. Doing it, he fears only higher-up spoilsmen who sacrifice criminal pawns.

Maybe he could, and maybe he couldn't enter a room, envisage the objects therein at a glance, then step into an adjoining room and take off most of those objects. Probably you couldn't do so; but if you couldn't, you wouldn't put it down conclusively that you had thereby demonstrated your arrested mental development.

Largely because of such easily-misleading "tests," America has been at meticulous pains to school the criminal to believe himself irresponsible for his illegal acts; this, seemingly oblivious of the fact that the mark of the true moron would rightly attach to him, did he fail to grind all of such gratuitous grist coming to his mill.

If America elects to classify the criminal exactly as he would be classified; and then to dispose of him exactly as he would be disposed of, that's America's business. His business is to promote the calling of false turns on him in favor of easy going at his chosen calling; and he attends strictly to business, without care otherwise for what you tag him mentally.

Ostensibly as opposed to the "business," he will play any card for a consideration along any line you suggest; but not for a moment does he lose sight of his cardinal aim, which is to be a crook hailed by crooks.

Lay gentlemen particularly state the case in words opposed to those which precede; but just because they are lay gentlemen they do not, and they cannot, by any possibility, state the case as it is.

Being a real criminologist presupposes long years of consecrated study of and contact with criminals, in their midst. It also postulates a broad culture, inclusive of the specific bearing of genetic parallels and the reverse; and, as a matter of course, close study of such as the etiology of crime, and of individual and race psychology.

Notwithstanding, lay gentlemen have written, during recent years, most of the basic specifications for the social rehabilitation, by institutional correction, of the habitual, predal felon. Result? Let a parallel case give answer:

Before the discovery of the anti-toxin for diphtheria, suppose a criminologist to have had a strong humanitarian leaning to be of active service in the discovery and use of that anti-toxin. Assume further that he conned a few chemical paragraphs, messed about in hospitals, tinkered at synthesis and the reverse in the laboratory, and wrote copiously from his treasured notebook: how far, think you, would he have gotten in his quest?

The parallel is not perfect, to be sure, but it will serve to point these vital facts: (1) The ninety-and-nine of puttering, basically uninformed, amateur penologists have been primarily a nuisance, and the thousandth has been useless in the work. (2) Secondly, they have been much more than a mere nuisance, in that they have made it their business to pull down the framework of rational reformatory régimes put up by actual criminologists. (3) And in the stead of that deleted or destroyed, they have rung in either puerile activities and inactivities, or sporting-monger activities to the point of offense against God, against Nature, and against the social exactions upon the criminal.

The criminal has not concerned himself about the social exactions upon him. He has not because he isn't built that way, and because he hasn't had to do so. Those highest up in reformatory councils have obligingly lettered reformatory measures to his hand. Therefore he is always on his toes to ding fulsome praise of them in indiscriminating ears, while naturally condemning those he cannot fool all of the time.

So much, in part measure, is of the criminal pot as it boils; and so much tells why the criminal stands pat with commanding cards gratuitously dealt him. When society shall have matched his all-around play in the matter, will be time enough for society to belittle mental gifts with which he is enabled to euchre the land's combined agents of the law.

In any case, relief is in sight. The bulk of predatory criminals are instinctive pug-uglies. The instinctive pug-ugly bids fair to be America's representative hero. United States Senators and other governmental celebrities, who, with

their women, occupied box seats at the Dempsey-Carpentier “boxing”—please don’t laugh—“exhibition,” so attested by travelling hundreds of miles to occupy those seats.

Hence, why not groom the parasitic thug for the National Congress, under the proviso that he would make attempt there to beat a modicum of common sense into the heads of certain of his confrères? The odds against his success would be nearly prohibitive, to be sure; but millions of Americans would relish his try at it. Then, too, the pug would stand a chance of being of some use in the human scheme, the which he has not been up to the present time: unless to image and suggest brawling and blood-letting to up-coming kids, is useful.

Let America get after and stay after her pug and mulcting parasites, along with her conscienceless money-changers and spenders, after the manner in which the Christ-man got after them, and the criminal will at once take up quite somewhat of the oblique slack of his mind. Until America does just exactly that, both in and out of prison, recidivistic criminals will ride the rougher shod in America, in constantly increasing numbers.

History seems to have it that a contagious human hysteria recurs in cycles; that the hysteria usually roots in an aimless spirit of unrest; and that when the wheel of time points the fatal number, myriads of advanced humans yield their grip on intrinsic values.

Initial expression of the mental eruption has usually taken the form of choromania, as witness ancient Sparta’s grand march to corrupted morals via the nude dance; also, America’s present peek-a-boo gyrations, remindful alternately of nothing so much as the lumbering clown bear, and “monkey-on-a-stick.”

One could make better than a crude guess as to the psychological sequences involved in the connection between the semi-bestial dance, and concomitant blunting of the finer sensibilities. One could, because sex-charged, hysterical dancing unchecked, runs in the end almost inevitably either to conscious or unconscious brutality of one or another form and degree.

In the beginning, the form may but slightly offend that which is natural, and the degree may seem to be as inconsequent; but the cumulative effect of

both as suggested and imaged is to commonize a low level of human expression; and since a low level of human expression demands varied excitement pyramided, the final result will depend upon whether a people do or do not put overhead check on that kind of expression.

At the Jersey City prize-fight, Americans very palpably did just the reverse who fattened the purses of parasitic pugs and their purveyors there assembled.

As a matter of course, such as capsheaf criminals, gamblers, pool-room sharks, bookmakers, race-track “touts,” and members and ex-members of the won’t work “frat” were at the ringside, drawn as by an irresistible magnet to their natural element. But think on representatives of a nation’s dignity and sanity mixing with the motley mass, while entering into the spirit of the brutalizing abomination!

Save their women, and say how much the minds of honorables of that kidney have “on” the criminal mind? Essentially how much have they, taking into account their blood and bringing-up, and the blood and bringing-up of the average criminal? How about the mind of a public servant who does not know a bestial, crime-breeding thing when he sees it: or, if he does recognize its basic baseness, still clamps moral handcuffs on his conscience in order to indulge a natural or acquired predilection for brutish expression?

May such an one be held safe either to help frame or interpret the laws of his land, on which the oncoming generations of American youth must guide?

Could any of the revered forefathers have been dragged to such as current “boxing exhibitions”—again, “don’t laugh”—other than in the same as chains? If they could not have been, were they mental, moral and physical “hayseeds” of their day: or, do certain of their successors fundamentally flout their oaths of office, through literally flinging the most pernicious of suggestion and example into the very faces of America’s budding lads and lassies?

To what, at bottom, more than any one other concrete cause, was the late debacle due, if not to Germany’s brutally-planned persistence in making

brutish sport a part of the common and uncommon education of her young males? If you are inclined to pass the query, question closely any one of thousands of German ex-students and soldiers whose face bears cicatrized scars of the sword's edge or point, and get your answer.

The reply of the sporting mad of America would be that Germany advisedly fashioned the minds of her lads for alleged defensive war with her enemies, real and imaginary; whereas such as prize fighting conserves the all-around stamina of American youth, to be employed in the pursuits of peace, and that it is meant to do no more.

Rot, that, just plumb rot! Rot of the kind no thinking man would dare attempt to justify on bended knee. Prize fighting "is meant" first, last, and all of the time, to pack the purses of human parasites; to pack purses that are unpacked to beat the law, both God-made and man-made, from every possible angle. To hold else is either not to know the game, or not to want to know it.

Prize fighting is war in miniature between two men. It is, moreover, up to the point of a killing, the most merciless of war. It is, because "top-notch" fighters of the several "weights" are rare birds who are practically unbeatable in their prime, so long as they hold to Nature's laws. Those who go against them are usually as good as "licked" before they enter the ring. Therefore the hundreds of "marked" would be "cham-pee-ons" who eke out a living serving essentially as punching bags for their physical betters; and therefore the former are marked with such as ear drums put out of commission; broken noses, wrists and hands; impaired eyesight; and internal traumatic wounds that are fated to rise up and curse them along at about life's middle course.

Pretty picture in so far as painted, isn't it, with which to stir the imagination and ambitions of your boy? And mark you, the vicious by-products of pugism have been but barely indicated herein, as for instance: at least one-third of the sixteen-hundred-thousand dollars of gate money of the Dempsey-Carpentier fight will circulate as disappearing dollars. The bulk of them will disappear from legitimate lanes of trade and circulate through corrosive sporting channels, the which are a drag upon the general turnover of business. What's more important, they will be placed so as to further

menace the morals of the young. And all will be managed mainly by those who pack smug chuckles over the apish credulity of legions of the self-nominated august.

This seemingly misplaced diversion is meant to drive it home, with the final word, that sport overdone at once locks arms with the criminal, and undercuts at the foundation of the national structure.

No matter what form of expression the non-producer may affect; or by what specious arguments he seeks to establish that form of expression, he remains a non-producing leech.

Did the professional sporting pug peddle his nefarious wares after having done an honest day's work, it would still be bad enough; but he doesn't, he never has done so, and he never will. He knows that always of the mass an appreciable percentage of sporting-bug bitten individuals can be relied upon to sponsor his spurious offerings. Therefore he plays up to them, and down to that which the Creator expects of every man.

However, that actual producers have to carry the drones of the human hive, is by no means the prime ingredient of the foul mess. That resides in spiritual loss not to be calculated in dollars and cents: a spiritual loss which side-tracks rational thinking and doing, while it engenders "a spirit of unrest men miscall delight."

The criminal mind functions exactly as does that of the socially prominent, if not ethically discriminating woman, who, in a late newspaper item, declares for the blood-spilling at Jersey City because she thinks it was "wonderfully sportsmanlike." As a matter of fact, there wasn't a thing "sportsmanlike" about that brutal battle. There wasn't, if for none other than the reason that Carpentier gave away nearly twenty pounds to probably the hardest-boiled, two-fisted fighter of his weight the prize ring has ever known. That, alone, spelled the "count" for Carpentier. Furthermore, the true metal of the clan rings in Carpentier's contention to the effect that he broke the thumb of his right hand in the "first round." Had he done so, he could not have rocked Dempsey with that hand, as he did, in the "second round."

A “sportsmanlike” proposition presumes a fair fighting chance for either contestant. Carpentier didn’t have a ghost of a chance. American pugs knew it, though they cannily kept the odds on Dempsey up, so as to attract the big money from overseas.

Carpentier floored, battered, bleeding, doubled up in agony and gasping for breath, symbolized at once the spirit of the prize ring, and the chance the layman has when he stakes his money against the underground machinations of those who “toil not” and will not toil. They must first attract, then outmaneuver honest money. They do, and they do it while poisoning the national mind.

Finally, as regards claims even for physical betterment accruing from brutalizing sport: Rot, again, pure rot. Not a thing attaches thereto but which Dame Nature offers man gratis and bountifully out of her outstretched hands.

Have you ever, really, thought it all over? If you haven’t, make haste to do so. God will not hold you guiltless else; for, in just the degree men fail to realize that they are the moral “keepers” of His children, they will be held responsible by Him for those of them that take on the criminal mind and stumble on with it to the social discard.

While thinking it over, watch it out and see the sporting thief, and thug, primed for a nefarious business in such as the cigarette-soaked, gambling poolroom.

III

THE MORAL CRIMINAL

Dr. Adler says there are 10,000,000 feeble-minded people in our country. Well, well: it isn't as bad as we thought.

Passaic News.

Crime is commonly imaged as felonious offense committed against the public law. Definitions of the word "crime" are likewise restricted in meaning.

The common idea of crime is natural, and the legal definition of it is necessary, albeit crime reaches far beyond casual views and word-analysis. In the final sieving, anything that abets, suggests or examples devilish conduct on the part of normal humans, is criminal.

It is a devilish thing to do individual murder; but it is infinitely more devilish to so gouge and mulct as to help kill the chances of millions of fellow beings to bring up their broods as children have a right to be brought up.

It is a spiteful fling of Nature that monogamous mating cannot hold the oversexed of the human species; yet their bestial impulses are benign, as compared with the persistence of the public press in successively pyramiding detail on detail of the nasty aftermath of the expression of those impulses. "News is news," yes; also, nasty news is nasty news, concerning which the moral obligation is upon the newspaper fraternity not to flaunt it, time and again, at the top, under spread-type caption, for the edification of younglings. The writer has been in position to know that the bulk of newspaper men do not relish the kind of mental pabulum they feel they are practically compelled to serve to a percentage of their patrons. Editors and the like are usually staunch, far-seeing men who realize fully the fateful suggestion of the crime-breeding, sexually-perverting print they hold

themselves obliged to feature, else be beaten to it by competitors with narrative a part of the public demand.

Nevertheless, it is more than probable that the sheet which should decline either prominence to, or reiteration of, such as erotic copy, would increase rather than yield its clientele. To believe else were to believe the mind of the average citizen to be reduced to a very low level.

As a matter of fact, the average reader lends but casual eye to crime and sex-charged stuff. He turns from the mere headings thereof in disgust. Did he follow through with arrested attention, he would be impressed with the carrying power of the stuff, and take measures to protect his kids from it. That the case boils down to impressionable effect upon the babe in embryo, is sufficient to give good men pause over the publication of such as prurient matter, poisonous to the last degree by suggestion to immature minds. Moreover, to deprive unsocial and anti-social plungers of a public audience, is one of the best ways by which to extract the tang from their obliquely-conceived flings.

The criminal feeds on the pernicious notoriety given him in the printed page. So do marital globe-trotters. Hence, a common publicity of dirt operates as a two-fold menace to good morals. And mark you, however specious the plea for the publicity, the menace of it remains.

In any case, purveyors of news will do well by up-coming lads and lassies, through pressing the soft pedal for dissonant tones; by passing up youth-poisoning narrative to those who have a natural predilection for that kind of print. They will do well to do it over their signatures, and thus permit the public to get a strangle hold on the few who would maim budding character for a packed purse. No one looks for such a change; but until some such measure is effected, gentlemen of the press may not wash their hands of crime by suggestion.

In effect, the bulk of the public press of America stand in no better moral light than does the foul-mouthed gossip who goes from house to house peddling filthy wares. There is no difference in principle between the two, and in practice only what demarcates retailing and jobbing. That, not only, but doing it over and over again, with but such details deleted as a self-respecting husband would hesitate to impart to a self-respecting wife.

“Noblesse oblige.” Let those on whom moral leadership is in part thrust, and in part assumed, go over their own lines and discourage the leprous.

The drone-bum is a drag on the public purse, but he baldly dresses and acts the part, makes no pretensions, makes no apologies and seldom deals from the bottom.

The sport-parasite, whose name is legion, and who is the “four-flushing” blood-brother of the hand-me-out peripatetic, goes about it differently. He affects spats, the last wrinkle in waistcoats, cane and gloves, feels the feel of silk, boast a wardrobe Beau Brummel would have envied, poses about in a “Packard Six,” and wouldn’t appear on the street “on a bet” under a hat a day out of style. Also, he spreads “easy-money” all along the sporting pike from baseball to the bawd. And also, the high finance, “fake-scheme” cult of him alone draw down annually close to five-hundred-million dollars. The bill is paid mainly out of lean purses, the strings to which have to be tightened, to the end that parasitic sporting mongers may give their dupes “the laugh.”

It is no new thing for the plausible parasite to refuse any part of the actual social load: meaning, of course, the sweating and tugging necessary to load that load. Non-producing knights of the gilded circle have always ridden the tiring nation to its last gasp. But it remained for Anglo-Saxon Christians to lend unqualified approval to intrinsic drones, who elect at the best to play for their “pile” and make hard working men and women foot the bill; and at the worst, to make every possible use at spurious sporting activities of crooked tools, such as manipulation, inside information, and, in the end, the confiscatory law of averages.

Followers in America of the Christ lend their money not only to the ominous business, but their moral support as well; followers, mind you, ostensibly of Him who raged at money-mad cheats, and who couldn’t abide them that shift labor to other backs.

Many there will be to bristle over the leads immediately preceding; still, search them out to the final throw, and it will be found that at least ninety per cent of them either pull or aim to pull directly or indirectly at strings on the “rake off.” This from the college graduated “sport” who heads for the

gaming limelight, to the manufacturer who turns out the paraphernalia of blood-spilling “pugs.”

Many, bitten by the malignant sporting bug, believe the desideratum of life consists in hardening oneself to give and take the greatest amount of physical punishment. Mark it: to give and take the greatest amount of physical punishment.

Why take the punishment? Why, primarily, say the pugs, to the end that one may take care of oneself in case one is thuggishly assaulted; and secondarily, to engage at forms of exercise that conserve longevity.

Concerning the primary proposition, say as to how many times in your adult life you have been obliged to put up your fists in self defense? And as to the secondary contention, recollect that any form of strenuous exercise habitually taken on after the plastic period, results practically in a stretching of the muscles and tissues, and a feeding of them so stretched. Thereafter, the like of the form of exercise with the feeding, must be continued for years, and gradually graded down to some past middle age, else both muscles and tissues will go flabby under wrinkling flesh, and “Doc” must do the best he can in the case.

As an example of how the thing works out take this: the grand majority of ex-college athletes slough off too soon on the following-up process named. Hence, though they represent the physical cream of colleges, they do not stand out in life insurance statistics as by natural right they would, had they exercised and trained to Nature’s bidding, instead of to the snap of the professional’s whip; nay, had they not trained at all for heart-exhausting competition, and had just breezed along the countryside, agreeably with the modest demands of the muscular reflexes.

Lads are subject these days to all kinds of sporting flim-flam, not the least pernicious of which is that they must be banged about the lot in order to win physical standing.

Under stress of wholesouled play, pure sport will pass betimes the line that divides the gentleman-athlete and the instinctively brutal battering ram. It is good that some have a bit of grit ground into them. Sport must ride lads to a degree, else be robbed of enthusiasm that makes for wholesome results; but

the moment the thuggish “professional” promoter promotes, bid farewell to the finer sensibilities and to the purposes to which pure sport and sporting should be held for lads.

When, as at present, it comes to the point where habitual parasites of the “pug” variety are held up to the youth of the land by governmental honorables, as exemplars of all a lad should be and strive for, it is time to call check; and if the grossly overdone sporting proclivities of men do not strike in, perhaps the fact that the women of the “honorables” also stand sponsor for first-driving drones, will do so.

Looking at the matter in the large, what is it if not morally criminal to babble in one breath about “disarmament,” and in the next breath imbue lads and lassies with the ideals of the shouldering hog, and the instincts of the boss bull? Where else than in the moral gutter should a nation expect to land, which goes out of its way to heroize thinly veneered parasites, and plays up to out and out cheats of the same breed?

The American people have their work cut out to arrest that for which they have bidden, put up, put down, and put through; which is to say: to snap social handcuffs on those who advisedly prey upon the weak crotchets and vicious curves of their kind. Adding to the germane tens of thousands of flouted laws wont do it; nor will anything short of a purging of the social conscience. Moreover, the purging will begin necessarily at the mother’s knee, and extend through the plastic years.

America heads for the shallows because she took on the impossible task of making over habit-marked grown-ups, bidden to her bosom from the scrap heaps of nations. Now, she may tack quickly or take her medicine, prescribed by past masters at brute-struck quackery.

So, without end, we might specify and elaborate. The crucial point is that the public sees capital menace to the public safety only in the acts of the crassest of felonious offenders: whereas much more of fateful consequence resides in the morally unclean machinations of those who practically shove human pawns to the first lines of criminal attack.

Were all imprisoned, petty thieves in the land turned loose, and jail sentence given their equivalent in numbers of those at the top who make a business

of breaking moral law, the basic steps would be taken at once to stop the criminal and solve the crime problem. The foraging criminal holds that he at least takes the gambler's chance, while swivel-chair cheats "stack" and deal themselves sure-thing financial aces. In so far as that fact justifies the small-fry felon, he is justified.

Some allowance should be made for tainted-in-blood, gutter bred, falsely-enviored social misfits, who are driven more or less to selection of the tools of the savage. Contrariwise, there is no defense of the well-born, well-brought-up man who descends in his dealings with his fellowmen to the level of the card shark. Yet even the latter is light in the dark as compared with the public character who affects sporting pugs, pirates, and parasites. When not a fit subject for the alienists, such an one is overdue for political death.

The common servant who cannot distinguish as between beneficent sport and sporting that smells to heaven, ceases to be a social asset not only; he is a menace to the moral health of the nation. Did he not stand convicted by the major millions of rational men and women, one would despair of the dawning day of a common brotherhood.

It were not too rank to paraphrase thusly: "The nation the gods would destroy, they first make sporting mad." America is dangerously close to sporting mad. She will come out of that particular form of nerve storm because she will have to do so. She will have to do so for the very good reason that she cannot much longer pay the two-fold freight entailed; a two-fold freight expressed man for man in constantly reduced production, and an increasing number of disappearing dollars.

At a given time, the national wealth of America reduces to the equivalent of the number of dollars Americans have wisely earned and invested. Wisely-earned dollars mean big production, and big production means an average big spending and investing capacity. That, in turn, means brisk business along the lines of legitimate commerce and trade. And that means nearly universal employment, and freely-circulating money turned over and over along those lines.

Contrary to the claim of the gamester, there is a vast difference between the working power of the dollar that finds its way into the industrial groove,

and the dollar that helps pack the purse of a prostitute. In the one case, the moral dollar will earn ever-increasing increment, while contributing to the general well-being. In the other case, the immoral dollar had passed and will pass mainly from the pocket of one mulcting parasite into the pocket of another mulcting parasite. It had and will, because human parasites produce nothing tangible in exchange for that which is dumped into their palms. The money they spend for their general upkeep is largely turned back into approved channels of trade; but that is but a fraction of the grand total. The bulk of their capital is and must be nearly as dead to the business world. It is practically of little more use to going business than is hoarded money.

Even so, the enacting indictment of the sporting drone is not a dollar indictment. The capital brief society should hold against him is that he plys intrinsically criminal tools, with which he frequently “double-crosses” even his fellow craftsmen.

“Well,” says the imprisoned felon of the stripe in question, “what did big and little business men do to the people during the progress of the World War? What did they do to each other when diving foreign exchange upheaved home values? What did they do to every body for long months after prices should have dropped pretty close to their normal level? Did they or did they not play the game as I played it, until consumers got after them with buying strikes, and the cry of stop thief? Did they or did they not?”

Well, “did they or did they not”? If they did, what had they on “the imprisoned felon of the stripe in question”? That’s a live wire, is that question; a live wire of the kind concerning which the criminal presses for answer, and he is entitled to an answer that doesn’t squirm and doesn’t quibble.

As a dealer in the world’s mart can you return an honest answer? If you cannot, hadn’t you better take inventory of conscience, and try to understand that the meanest kind of thievery is that which raises the ante on what should be common commodities and conveniences, beyond the purchasing power of the average purse, say nothing of the plight of millions of underdogs on whom the last curse of criminally-manipulated price levels falls?

If you think yourself immune to such queries, make study of the ever-tightening grip of the proletariat on the use that has been made of them. Start with the French Revolution and come on down to glean the why of it that workers mean to be served, as well as serving, in the future.

It is true that hosts of toilers swallow hook, line and sinker of the crooked gamesters cast, and do it day in and day out: fatefully, to the end that 95% of them are but six months removed from the poor-house at the age of 65, in so far as their own financial resources are concerned. But they now have the fists of their minds doubled to batter those who would build and operate, from within a drawn circle, the like of the baronial toll gate. Unlock such as interlocking thievery, say they, come out into the open and do business with us man to make like men.

Next, let us hope, in order of the wrath of the honest toiler, will be the meticulously groomed and brushed parasite; next, whether he plys deft fingers backed by unbeatable odds, or a glib tongue to get a heap for nothing.

First of all to feel the hand of the worker should be the blood-spilling, pug-parasite; him who suggests war between brothers, dulls the finer sensibilities, lowers both the mental and moral tonus of mankind, and cheats even women into believing that he can, by any possibility, be of any basic use in the big scheme of life.

Many good people think differently; many who will not trouble to think as it is necessary to think, in order to classify men and motives. They are therefore plastic clay for the clan parasite, inclusive of clever criminals.

Crime? Why, only on criminals by legal edict are the keys of the turnkey turned. Myriads of humans who never face a presiding judge, plan and execute moral crime that is much more far-reaching than the average even of capital crime.

Hence, by-choice felons flit sneeringly to and from prison, where they have to be practically force-fed with moral precepts; that, very largely, because they know millions of free men meaner than they, are immune to legal force-feeding for the meanness.

So long as such conditions obtain in America, so long will recidivistic criminals mount there in numbers; and so long will they justify themselves to themselves, and to all who will listen to their half-baked contentions.

“I see and approve the good—I follow the bad,” says a far-famed poet, whose bold declaration of spineless principle leaves him spokesman for thousands of moral weaklings who are always on the fence, undecided as to which way to jump. It also leaves him open to the charge of angling for a cheap, dirt-distributing notoriety.

Another, ostensibly an editor of a New England newspaper—shades of the Pilgrims stand by—flares at men of the cloth who denounce such as the late bestial scandal enacted at Jersey City. He is “convinced” that Catholic and Protestant ministers are “impugning motives here and blackening character there, because they have lost their tempers at the disinclination of the people to follow them.”

Passing motives “impugned” by the Infinite Mind, and character “blackened” with the devil’s own smudge, what would the scribe have vicars of God Almighty do? What the implication of his own monstrous and most illogical libel, if not that those on whom America does and must rely for moral guidance, should remain as mentally shackled, and morally blind, while blacklegs and backsliders establish schools for crime, and write the texts books for them?

Hardly! True Americans of the “people” for whom the gentleman assumes to speak, wax fatuous, not to say fat-headed betimes; but let us hope that they may be relied upon finally to search out and set down those who would yield American birth-right for the brew of the base at heart.

If the sporting-soaked must utter and shove counterfeit moral coin, they owe it to common decency not to affect the mantle of the mentor; they specifically do, because predal parasites bank on being able to point to them as having said and done the last fool thing. They further do, for the reason that they are the readiest gulls of the grafting gang they champion.

Moral thieves are moral morons. Count them, and get the cut of the saw of the “Passaic News.”

IV

THE PSYCHIATRIST

Webster defines psychology as “The science of the human soul; specifically, the systematic and scientific knowledge of the powers and functions of the human soul, in so far as they are known to consciousness; a treatise on the human soul.”

Modified by the phrase, “in so far as they are known to consciousness,” that definition will do, albeit we have arrived at but little “knowledge” of the “*powers and functions of the human soul*,” and at less of prescience that accounts for the by-choice criminal. Then, too, distinction must be made as between the finite limitations of the brain of flesh, and the infinite reach of the “soul” of man.

In any case, let us not cough over a too nice fitting of technical terms; but envisage, in the broad, the matter of mental research and healing.

The more material powers of the mind of the criminal frequently elude the examiner and tools which can be too “systematic.” This, because the examiner faces cards which the examined instinctively employ every means at their command to euchre. Also, if his limited scope of criminological vision causes him to over-emphasize present emphasis, and to bolt the way-backward trail of his subject, the examiner will remain as half blind to the basic reasons for a given criminal.

Cardinal causes for the criminal commonly hark back to remote ancestors. And so, for example, one unacquainted with the early history of the Sicilian people, the events of which changed so many of that people from trustful, mutually helpful sons of the soil, into dagger-thrusting brigands, lunging for the hearts of their blood brothers, has no call to classify the alien Sicilian-Italian who makes America his base of operations. That is essentially so, because the period from bib to puberty is the most impressionable after-birth period, during which a lad will tend to take on much that will

aggravate congenital predisposition; predisposition the more fateful for the reason that it lurks in the unconscious, and there constantly presses upon its victim for expression.

Hence, psycho-physical research that does not cover the whole field of motive and motion, is comparatively valueless. By the same token, the investigator who is casehardened with technical lore, will be very likely to miscall the turn, especially on the alien and near-alien criminal.

Above all else, the psychiatrist must measure the criminal with an absolutely open mind, attuned alike to individual and racial determination; attuned, also, to his own definitions, such as that psychic contagion is “transfer of nervous disease by imitation”; and attuned to the fact that the mode of operating employed with Awasco, the sunny-hearted, comparatively ingenuous “Wop,” anxious to help, won’t do at all with Hungarian Zynthner the sullen, who is evasive, suspicious, and resentful alike of authority and the personal touch, because he still bristles over hurts visited upon him and his by thick-lipped Hapsburgs.

Mental searching of the latter class of criminals usually yields next to nothing that is specifically of capital importance. For want of the master-key to the situation, the operator leaves the tested laughing up their sleeves over having fundamentally over-reached the tester. Needless to add, the master-key is mostly shaped of the metal of foreign soil, and unlocks the far-removed circumstance.

First off, the really expert examiner will seek to win the undivided attention, full confidence, and voluntary coöperation of his man, who is to be led only by judicious degrees to the conviction that the questioner is not a mere cog of a “scientific” machine, the purpose of which is to bare the subject’s soul, regardless of his feelings in the matter.

Call mental research by what name you will: state it in esoteric terms laden with syllables, or so plainly that a recent past master at making mud pies can understand, and it must still be led, as well as leading, else miss the mark.

Stamps of stigma are essentially subversive of the end sought. Designate a lad by a disgraceful name, and you create the strongest of initial motive for

him to earn the name. Moreover, such procedure is usually as senseless as harmful, since it is not within human gift to declare the morrow of the disease-free, pre-adolescent mind. The writer is moved to stress this paragraph, because he has observed so many cases whereof full-blown puberty has marked mental metamorphosis; marked it both as to the positive and negative, the which will usually depend on the sum of the subject's bringing-up, inclusive, of course, of the sum of his environment; and partly on his intrinsic moral fibre, born at his birth. And recollect that juvenile predilections usually mark the confirmed criminal to be.

In any case, the negative conclusion should wait upon indubitable evidence; and the positive, general statement be mostly guardedly made, since the scales will likely tip to the weight of influence, and that may be in the lap of change entirely beyond the ken of "little man." God, alone, disposes, alike as to mind and matter. Furthermore, pre-criminal motivations are never singular; hence the single-seeing reformer, or investigator, cuts no swath in complex, crowding crime. And furthermore, his conclusions may be absolutely correct, and his mode of applying remedial measures be diametrically at variance with the crying exactions of his subject.

Then again, crime is not a disease in the sense that it is so lightly proclaimed. Crime may eventuate mainly because of congenital flaw, physical, mental, or both; or it may crop out by acquirement in spite of a sound heredity; but it always issues to relative mental disease in the sense that habitually oblique reasoning becomes master of the subject, either tentatively, or for good and all; tentatively, if the constant weight of influence is preponderantly in his favor, and permanently under the reverse circumstance.

More than that, the serviceable investigator will understand how the weight of influence can be turned, one way or the other, by seeming straws of effort or circumstance. For instance, the mood of the moment must be understood not only, but as well, why it is the mood of the moment. Here, pre-natal influence may carry in nothing more tangible than a lowering sky. There, the marked face of the man betrays the erotic-neurotic in the throes of the immediate aftermath of his self-indulged spree, in which state of low vitality he naturally looks out upon an ugly, drab world. Another nurses a fetich: a ridiculous fetich, to be sure, but one of which you shall not purge

his mind with a club of words; indeed, in no way else than through patiently building to his better understanding. Per contra, looms up the capsheaf of them all: the parent-spoiled ego-centric moulder, who is certain sure he could plan a better world than ever Almighty God could think of. Very good, encourage him to build it; then pick it to pieces, preferably with terse, pregnant parables that leave him not a stone to stand on. Do it often, do it advisedly, and do it thoroughly. You will not thereby win him at once to rational thought, but you have better than a fighting chance to switch him for it, if you are kindly tactful, and do not attempt to stuff your opposed views down his throat.

We are not concerned here with those doomed mentally in state of embryo, save that it is well to have in mind Dr. A. Jacobi's "Report to the Prison Congress of 1892," to the effect that "No congenital chronic thickening of the brain membranes, no fixed changes in the brain substance, unless it be syphilitic perhaps, have ever been cured." So much is indisputable fact, qualified by the word "cured."

With Dr. Jacobi's further assertion, many will, without presumption, disagree: "It is not necessary to resort to material impressions (in the embryonic state) as the cause of physical, intellectual and moral anomalies in the offspring: that theory may safely be left to nurses and poets."

Passing the poet—who usually culls and adorns, yet has been known to probe and create—while objecting strongly for the grateful nurse who often guides to health where the physician, single-handed, would have failed, is Dr. Jacobi's second sweeping conclusion unassailable?

What is the last power of the protoplasmic germ, and what is the last influence from which it derives that power? Can any man answer unqualifiedly, and if he cannot, just why exclude the psychic from the possibilities? If morbidly by "psychic contagion" is admitted, why refuse pre-natal impressions of psychic origin?

We know that hereditary transmission is persistent as to physical attributes. It may appear to drop stitches here and there, though we shall note more or less of reversion to type if we follow through far enough; but let opinion be as it may, how is one to check up variations of mood, temperament and disposition with physical figures? As to the last three, Jimmy the first and

Johnny the second of the same family are antithetic. Why, if the physical is final?

How, by purely physical analysis, are we to account for the fact that the original Clay family of horses were notoriously high-strung and hard to school to rein: whereas the Morgan family were supremely easy to break and groove? Why, where the blood line was kept pure, did the family temperament persist, with few deviations, and even then breed on again back to original family “manners”? Why, with mixture of those breeds, mixture of manners?

What made the intrinsic difference in mental bent and physical outlook as between Webster and Hayne? Why was the one a stickler for centralized governmental power, and the other champion of the rights of individual States, and why was each cock-sure of his ground of contention under the Constitution? In the final analysis, did anything out of physiology decide the question, and how did, what did decide, take up its abode in the national consciousness?

Do hobbles employed in effecting change in the original, instinctive gait of a mare from trot to pace, alone account for change of gait? If so, why, when her instinct of motion is changed mechanically from the trot to the pace, does she transmit the latter-acquired instinct to her progeny, to the near exclusion of the gait she was born to? Why, when the hobbles are removed, does she not revert to the trot?

Way back of Civil War days, a gentleman-horseman of Rhode Island changed the gait of the saddle horse of the lady of his choice to the pace, agreeably with the fastidious taste of the lady. Then, it was, the “pacer” made his bow to the horse world. To-day, he speeds better than fifty-fifty with trotters through the “Grand Circuit,” and almost surely transmits the instinct to pace. Hobbles now are employed mainly to prevent “breaking”; in fact, pacing champions have been leg-free of them.

What’s the answer, if not transmitted instinct, and who is to draw the boundary line thereof? If the instinct to play a base horn, why not the instinct to play a base part? If the instinct to play a base part, why not the instinct to brood and abnormally berate oneself, or flippantly break laws, or froth over fol-de-rol, or “fake” the whole human scheme?

At any rate, the instinctive intent of the habitual criminal is summed up in the last phrase of the preceding paragraph. Therefore, we needs must sharpen our tools of amendment and repair accordingly.

Sharpening, we shall learn on the one hand that bloviation brands the surface-sign, self-seeking examiner; and on the other hand, that be his lip-service never so fulsome in favor of this or that man, method, or régime of reform, the examined is dealing from the bottom of the deck if he does not hearken unto “The stern daughter of the voice of God.”

The subject is hearkening if he has the grit to pass up “gutter guff” always circulating in the criminal crowd, while he puts forth earnest efforts for fundamental averages. Contrariwise, if he juggles those averages with his mind clamped to the sporting schedule of the place, he is “faking”; he is faking, even though he cunningly steers clear of the house disciplinarian. Hence, the rational régime of reform will require him to do the one, while making it practically impossible for him to do the other, and make an early parole—as he now does.

Save for congenital deviates the like of those named by Dr. Jacobi, determination of his reactions is but the first step in the social rehabilitation of the recidivistic felon; in truth, the determination so far is in appreciable measure self-evident. By the very fact that he elects to be and remain a lawbreaker, he is somewhat of a mental dud, and more of a moral pervert. Moreover, whether he was slated mainly by nature to play the part, or it was pressed upon him by the cumulative weight of spiteful circumstance, he plays the part.

The part is the part of the predal parasite, the which he likes fully well and will not cast aside lightly at call to carry his rightly weighted share of the social load, be that never so light.

Opinions differ as to the capacity of the criminal to adjust to social exactions, but there can be no two judgments as to the duty of the State to require of him that he shall make earnest bid for the best social expression of which he is capable. Thereof his number in the average is not so close to zero as it is commonly marked. Added to his positive mental response, a certain cleavage in favor of his brain and betterment must nearly always be

allowed, since he usually plays possum in prison for “easy pickin’” in line with his anti-social predilections.

Furthermore, mental search made in a strange and stressed atmosphere, with tools utterly foreign to the subject’s attention, will get on his nerves to a degree, and may prove baldly misleading; misleading not only as to his latent mental content, but as well upon him, if negative procedure following the search causes him to throw up his hands in deep-seated disgust.

Under restrictive conditions, for which a bungling operator may be primarily responsible, a hyperesthetic might suffer close to acute sensory aphasia; and he who bears the burdens of hebetude would probably fare no better if the clicking of his mind were clocked to an arbitrary time allowance.

In any case, the final test should revert to material practices, and processes of intellection whereof the subject had worked from motive to excel, shall the motive have been good, bad, or indifferent.

Particularly, the examiner should beware a habit of mind that sends him fetich stalking: as for instance, to establish the ultimate, unconscious, sexual base of neurasthenia; or a given percentage of morons, applicable in general to felonious offenders against the public law, or even as constant for different prison populations. The danger that lies in determination to prove what one is predisposed to prove, is not easily overestimated; indeed, the test should, in such case, pass from tested to tester.

When a man gets that way as to any human question, he is relatively in the same state of mind as the fetichist who fondles milady’s shoe, to the exclusion of the body and soul of her, provided: the shoe is high-heeled and buttons. Such an one should turn awhile from the criminal crowd, to care-free thinking in the wide open. Before resuming his duties, he should further check up with one of his craft who planes his blocks to square with well-battened conclusions.

While it is true that no structural change to man’s hand is possible in the brain built in embryo, it is also true that the pernicious custom is to overdetermination of the damage done in that state. For example, the fact that a given subject may never hope to master calculus, doesn’t mean that

he may not be stretched to the size of a serviceable breadwinner. In line with that truth, take one, of many, extreme cases that have come under the writer's observation and treatment:

R., age sixteen, lowest-grade imbecile and borderline idiot, so dense that it took the writer three weeks to establish in his mind the difference between right and left. When so much of mental awakening came, came with it a pitifully wistful smile of blowing pride. Another three weeks, and he could execute on command with few slips through the "School of the Soldier." At the end of three months, he worked regularly and reliably with his company in battalion drill through intricate "Successive Formations"; and within the year, he could take his company to and from any formation with which he had been taught to form. More than that, he picked up nicely at common school, and made relatively good progress at "Sloyd."

Surely, all of that does not come under the heading of "reflex action"; and if it does, what of it? If a megacephalic, splay-footed, slab-sided, lumbering imbecile like R., so close to the idiot as to give off the latter's proverbial scent, can be carried even to the stage of mental and physical development R. was carried "within the year," what cannot be done for the mounting millions of mentally and physically backward girls and boys of America classed as "Morons"? How are we to get the down-to-the-ground work of the land done without the aid of such?

In any event, it is at once informing and encouraging to note that the school authorities of New York City have called check on the near mania of the period to attach negatively overdrawn advalorem tags to such children; and then, when so tagged, practically to dump them into the social discard, there to hate themselves, each other, and everybody.

For one, cardinal thing, the named school authorities rightly hold that the humane burden is upon New York City's teaching staff to dig out and decide upon ways and means better than those which make social pariahs of unfolding lads and lassies.

The same authorities further hold rightly that the benefits accruing to such children through mixing with the better-equipped mass is, in itself, a consideration not to be lightly brushed aside. And once more, that mental

backwardness is in appreciable measure chargeable to false methods of educative approach and attack.

Gentlemen who lie awake o' nights devising bizarre means by which alleged criminal "morons" can best be cheated of that which the school authorities of the City of New York insist New York's mentally backward children shall have, will do well to follow the effects of the edict of those authorities. Certainly that edict won't visit arresting embargo upon the normal mass of children, and must prove a boon to approximately ten thousand children who don't just measure to arbitrarily-spaced mental tape; tape which is not, and can not be, out of the hand of the Almighty, and tape which can not measure to fully unfolded years.

As applies to either prison or public school instruction, the crucial points are: (1) Technical marks of stigmata are much too frequently and much too loosely attached to budding youth, the inevitable effect of which is to depress and discourage them, particularly out of the gibes of unthinking comrades. (2) More often than not, the marks initiate in the fallible brains of those tricked into overdetermination, through predisposition amounting to near obsession to make the technical case. (3) The marks, as arrived at under present conception of rational "follow-up" processes, do not carry to comprehensive measures. (4) The scholastic or reform curriculum that is not pregnant with influences fundamentally germane to the mental, moral and physical uplift of the last unit of the mass, is either falsely prescribed or prosecuted.

Because of his reasoning faculty, the child, more quickly than any other youngling of the animal kingdom, unfolds by imitation to good suggestion and good example. Hence, if solely because segregated-group treatment practically cold-blankets those two, capital influences, as exerted by the mass upon the individual, it should be relegated to the domain where veiled minds are wedded either to fantasies, or to the useless function.

Wheresoever mental dullards are schooled, the atmosphere should be surcharged with hope. There, the word "can't" should be held taboo, and "you can if you will" issue commonly with the force of an unquestionable slogan. No matter how apparently hopeless the case, no suggestion of character whatsoever, to that effect, should be carried to the subject.

Related tests for physical reactions may be taken at very close to their face value, since the responses thereto are mostly involuntary, and, in any instance, the subject can't just figure it out how to beat them. However, acquired ability, plus somewhat of natural gift of the psycho-analyst to trace signs to their source and intertwining, must be beyond question.

The phrase "plus somewhat of natural gift" is inserted, because the burden is at once upon the examiner to pick apart the mosaic of motive, and to uncover the counter motives of the examined. That he will not do reliably short of an intuitive faculty naturally keen, backed by a heap of horse sense, and a broad culture; a culture so broad that he can vibrate alike with such as the cheap paddock tout, the crass, ego-centric, oversexed hyperesthenic with a chip on his shoulder, the plain plumb bum and crowded-out derelict, the congenital victim of hebetude with ox-like mind and the sensibilities of the mullet, and the bald criminal cheat, out all of the time to bring the crime-tainted-bacon home over the subterranean route.

Actually to grade human souls and sound human hearts, is a heaping order that calls for catholic understanding of comparative sociology, retroactive as to transmitted traits of character for at least one-hundred-and-eighty years. Back of that, man has not yet probed to impulse for human action of the present; but he can not be sure that reasons in part for present given courses of human conduct, may not strike backward centuries farther than nine-score years.

Not so long ago, as world time goes, natural selection was the vogue. Under Lycurgus, a little later on, Spartan youth who were not expert foragers from the common hoard, were subject to the heaviest hand of the State. Another short bridge of years, and Germans who grilled the legions of Varus boasted that they "didn't go to war but to annihilation." Shortly thereafter the doom of the Roman Empire was adumbrated partly by the "lounge-lizard" given over to various forms of indefensible conquest, not the least of which led to vitiating sexual excess; and partly by establishing barbarous letting of human blood in the national consciousness as a form of amusement.

From then on, most of social upheavals carried the germs of future social chaos in thousands of killings, the bulk of which were born of hectic,

heartless bestiality, and very few, if any, of which wrought for whole-seeing man.

Through all, war over religious creeds is chargeable, more than any other one influence, with retardation of human progress. Therefore, to trace the backward trail of the purblind bigot, is oftentimes the primary chore of the psycho-analyst.

Instinctive, habitual thievery lashed into lads, even unto death, 323 B. C. would necessarily carry with tremendous pertinacity; probably not unto this year of our Lord, but possibly so. It is given to no man to declare unequivocally that an intrinsic Greek thief of to-day is not, as to natural tendency to thieve, more or less the product of certain lads whom the authorities of ancient Sparta sped on their thieving ways.

We know comparatively so little about hereditary transmission, that to allege of the fixed "law," or laws thereof, is to part company with the possibilities.

Degree by degree, the finite mind of man edges closer to that which but ten decades ago was by common consent relegated to the domain of the infinite; as for examples, telegraphy, telephony, and the wireless. The wireless, mark you, the metallic language of which depends primarily upon synchronous vibrations produced by sound waves.

That's striking so close to telepathy as to make rational conception of pre-natal influence relatively simple reasoning. Also, it causes one to wonder if it be not a part of the Great Scheme of the all-knowing Father to unfold the finite mind of man measurably to conception of the infinite?

Be all as it may, present social conditions in America offer many visible signs of far-removed atavistic pressure upon polyglot Americans in the making; signs directly applicable to thousands of alien predal felons in our midst, whom, with such signs, the psycho-analyst must read. Of those signs are the singular predilection of the Sicilian-Italian criminal for criminousness by group expression, initiating with the "Mafiauso," headquarters at Palermo, Sicily; and the instinctive predisposition of his blood brothers of the "Camorra," across the Strait of Messina, headquarters at Naples, to combine against the established social order and tear things.

Hence, largely it is, that human life in America is at the moment held at a price less than the primitive savage placed upon it. Spurious leaders of athletics of old Rome got behind that bad business with the bone-breaking gladiator; and spurious leaders of athletics are to-day pressing in America for reversion to the murderous sporting type of Nero's time, through establishing the blood-spilling pug-ugly, and heroizing the low-down parasital "sport."

Get that, to its ramifications, such as that on the one hand the average annual salary of ministers of the Methodist faith has just been raised approximately from 800 to 1100 dollars; and on the other hand, that a won't-work, fistic brute demands and commands \$300,000, "win or lose," for a few minutes at cutting, slugging and punching recognition out of the countenance of another parasital "pug." This, while public school teachers have to press, and press for a living wage, given grudgingly.

Get just that much of anti-social play and pressure, then wonder not that the sporting-grooved predal felon spurns actual work, and that college authorities have to put hopples on thousands of sport-soaked, bucking young bronchos, in order to align them for a smattering of cheap culture.

As if all that were not enough, would-be bellwethers of reform can not rest until they have well-nigh ruined régimes of reform through supercharging them with so-called "sporting features."

Right here is the chance for the wholly honest, wholly earnest psycho-analyst to score. Better than he, none should know that legitimate sport outraged is commonly one of the cardinal causes for the confirmed criminal; and that to further inoculate with the sporting "bug" a lad already ridden by the vicious by-products of sport, is directly to furnish him with formula for further perversion of a fundamentally good instinct. He also knows that perversion of the sporting instinct frequently ends with the Wassermann test, and the polluted victim who is a menace to the public health.

Prisoner or freeman, rational exercise in the free air he should have; but why, after nearly two-thousand years of kneeling at Christian altars, should man hold up such as the "two-fisted," cruel, degenerate, human battering

ram, as a criterion for his upcoming kiddies to ape? And if he will have it so, why babble about “disarmament” and “waves” of crime?

Naught but logical sequence of action piled on logical sequence of action explains the predal felon who now comes a’shooting at high noon in America. About that, the much-touted aftermath of the World War has had little to do, and imbuing lads with the instincts of the bull, a very great deal.

Stripped of cheap verbiage and cheaper buncombe, the brutal fact is that America has bid, put up, put down, and put through, both in and out of prison, as if she were motivated to establish the predal felon. That she has done primarily through framing the loosest and most asinine of immigration laws, easily beatable; and secondarily, and again in and out of prison, through extracting near to the last sting of consequence from the commission of crime.

If caught and corralled—against which the chances are about ten to one—the broad-day murderous footpad goes to prison with a contemptuous sneer in his heart for repression that doesn’t repress. Also, he nurses a smug chuckle over the fact that criminal law, the fundamental office of which is to prevent crime, doesn’t prevent.

To the “sneer,” he has been actively helped by dream-drugged dilettantes of lay extraction, who base their reformatory foibles on the utterly fallacious idea that reformatory régimes should be ordered to square with the natural reactions of habitual criminal rounders.

For the “smug chuckle,” he is appreciably indebted to legal agents of the criminal division of the law who, either through false sentence, false suspension of sentence, or false probatory extensions, have rendered spineless the least elastic predicates of penal codes.

In free life the gambler’s chance jumps by the square in favor of the criminal in accordance with the gravity of his crime.

The promise of the early nineties for prison management earnestly and honestly dedicated to actual reformatory processes, with inclusive trades teaching featured, is become a huge joke to those in the know: a culmination due very largely to grossly overdrawn compromise with the average criminal’s instinctive desire for the low-down sporting limelight.

Therefore the psychology of the average intrinsic criminal, in so far as his reactions to intrinsic reformatory processes are concerned, has been made to his mind. And therefore the psychoanalyst can do his best work not by demonstrating arrest of the social sense, and associate reactions of the criminal, since so much the very fact of his being a criminal presupposes; but by suggesting practical ways and means by which the criminal can be weaned from the breast of crime.

Palpably, a mere technician won't subtract much from the bulging prison bill. He must be a very respectable criminologist as well, alike from the practical and theoretical standpoints.

Much left undone for the criminal that must be done, must be done from the ground up, rather than from the clouds down. When so much shall have been done, will be time enough to go airplaning with esoteric gas.



V

THE CRIMINOLOGIST

Criminology is the one scientific field in which man, puffed up, putters with unskilled hand and brain.

Even the artisan and manipulator of inanimate objects, must win his journeyman's card. No such thing is demanded of the criminologist by the public; hence the public is seldom treated to the unvarnished criminological truth.

Commonly the bald creatures of political pull, correctional chiefs need bear with them to profound employment but an itch to dabble, and the nerve to flare their farthing candles.

Gentlemen do not dream of reading lessons of craft to the like of doctors, lawyers, and professors; but they keenly relish the idea of crossing swords with criminologists, albeit the latter must be somewhat of doctor, lawyer and professor, in order to prescribe for what makes and keeps men criminal.

Despite the fact that it is easier to bungle at the business of remodeling human clay than at any other activity on earth; and that the bungling works serious harm to humanity, the tinkerer sets up his moulds much in the spirit that a child builds with blocks, then tumbles them over, except for this difference: the child learns as he goes out of fancy and failure, while the grown-up wrecker remains anchored to his puerile notions and notebook.

The machinery of a rational régime of reform must be carefully manipulated. Balance of parts depends upon a nice swing of correlated pendulums. Delicate adjustments encompass the ever shifting moods and susceptibilities of a prison population, in itself as a hair trigger to vibrate to unseemly disturbance of natural checks and impulses. A false edict out of the mouth of authority oftentimes is sufficient to start the prison pot a'boiling. A fool measure directed in favor of just one prisoner, without regard for

how it fits into the general scheme, in the end may carry to adverse consequence that affects every prisoner in the place.

Favoritism that singles out the few to the relative deprivation of the many, surely stirs up the latter, and can well do so the former. What is more, the harm done may not crop out in overt act of character whatsoever; but it will be most unfortunately expressed in such as listless work entailing lowering averages all along the reformatory line.

More quickly and more meticulously than any other herded group of humans, prisoners pick to pieces those charged with their destinies. Very naturally that is so. First, because the average criminal is pronouncedly ego-centric; and secondly, for the reason that the false throws of his supposed mentors and moulders, parallel in his mind his own oblique thinking and doing, and leave him no more to blame for what he did to society, than they for what they do to him. And there is more than a dash of equity in the criminal's specific conclusion. It is up to the criminologist to work skillfully and consistently with skilled tools.

Moreover, the decent felon digs much more deeply to false methods than he usually discloses. Tempted, sorely, to make use of easy means to regain his liberty, and not being the dunce he is falsely tagged, he plays up to parole with the destructive weapons so obligingly placed in his hands; but he knows his exactions, and that "listless work entailing lowering averages all along the reformatory line" does not meet them.

Particularly and essentially, the criminal further knows that the true man and criminologist cannot be induced to compromise with him concerning fundamental questions of right and wrong; and since he is able commonly to effect such compromise, he reserves his actual respect for him against whom, from ulterior motive, he may feel constrained to hurl the bitterest of anathema.

At any rate, place this upon the heart of truth: the prison population that considers itself perfectly served by the prison régime under which it works, is at once suspect. There's something rotten at the core of things. There is, because out of every correctional mass, between ten and thirty per cent have to be force-fed to a degree first off of educative practice and precept. They do, for the standing reason that for long years they had been fool-fed into

habitual self-indulgence and self-centered acts, inimical to the public peace and security. This, inclusive of their false schooling as juvenile wards of the State not only, but by the force of free-life probatory extensions most injudiciously accorded in the face of repeated offenses carrying constantly emphasized consequences.

In the adult prison, therefore, the criminologist faces a most complex problem. Leave out the few prisoners whose crimes were purely dynamic crimes, and he is called upon to make over a motley crew.

Here, the sneak-thief sport, with his fingers itching to do their deft work once again, and his flesh and bones disintegrating from the poison he had absorbed in the hell holes of earth.

There, snarls a marauding, murderous parasite, with the hide of the ox, the ideals of the hog, the blood of the fish, and the soul of the flea.

Beyond, mother's and the State's untaught, unskilled, pampered pet, profligate of everything he should save, miserly of everything he should spend, nearly casehardened to the voice of authority, is certain that life owes him easy picking and let him pick as he chooses and chose while he picks.

Mixed in are many other types of habitual offenders against the public law, about equally divided as between "home-brew," and the offspring of natural breeders of social hyenas whom America has been at pains to take to her bosom and nurse during the past four decades.

Done, criminally, nearly to a turn, are all, and done with a reckless flippancy in appreciable measure by pseudo-criminologists, who could not switch the integrity of genuine criminologists for the merry-go-round prison.

In the first place, no man is fit to deal with the socially derailed in American prisons, who is not familiar with the drift and natural determinations of an appreciable percentage of European immigrants who have sieved into America during recent decades.

A whole-seeing criminologist must know what it means for a man to be a full-fledged Camorrist or Mafiausist. Also, why the lower and lowest grades of such as Russian, Slav and Magyar immigrants are so easily induced by

hyphenates to ride rough shod. True, the mostly American-made criminal is all too common; yet had not America allowed immigrants to root in her social soil their hangover of hurts, close-corporation bigotry, and instinctive hatred of organized social control, the American atmosphere would not now be charged with the spirit to tear things.

From remote generations on down in natural sequence to the present day, the criminologist must be able to probe to the particular instinctive predispositions that motivate special groups to unsocial and anti-social expression; and to trace parallel currents that run through American life and living which pull on the groups for that kind of expression.

Not to be caught without the possible key to the deviated case, the right man in place will know such as his Freud and Krafft-Ebing. He must not be carried off his balance by newly-paired polysyllables, nor bow conviction to related ideas so framed as to fight each other, yet avoid planting his empirical feet where mental research treads with unanswerable proof. His call thereof is to cull knowingly and apply with care in accordance with comparative magnitudes.

To place emphasis properly is one of the nice duties of him who seeks earnestly to serve; and duty no less demands that he shall select sparingly of unproven hypotheses. This, because the mental faddist is the most liable of all men to be ridden rather than riding.

To persist for truth in the face of a common skepticism is at once noble and necessary; but to do it, one must bear equipment more convincing than “an itch to dabble” and “the nerve to flare his farthing candle.” Single-seeing brings little of serviceable grist to the reform mill. Single-track doing brings less.

Whole-seeing by a criminologist requires much more of him than a technically well-fed mind. He may, for example, know generally about the functioning of the human brain; but if he judges falsely as to mental overemphasis affected by the subject from spurious motive, he will not score for the man, nor for himself.

Padding of comparatively slight deviations, cunningly employed by “faking” and malingering criminals, is a common trick which must be

religiously guarded against. When the padding is superinduced by suggestion from the mental healer, as the writer has known it to be, his subject from then on usually takes the short cut to the abyss. Such as psychoanalysis, employed by other than the master of it, as well as of its correct application to reformative processes, is a most pernicious tool.

What is sorely needed of heads of correctional institutions, is preparation for the work from the ground up in the work; preparation that enables them to see all of the way, and therefore to prescribe for balanced schooling under a balanced régime of reform.

Beyond question, the present urge is unduly to capitalize crotchets of human behavior, the which, far from demarcating the average of prisoners from a very large percentage of the general mass of mankind, actually predicate them as slightly emphasized examples of that percentage of the mass; a prisoner percentage the more closely welded to the “crotchets” through false bringing-up and environment in free life, up from the cradle.

Aside from prisoners who are congenitally scarred in unusual degree, closely-allied parallels are to be drawn as between thousands of prisoners and millions of freemen.

This one primes a hair-trigger temper, rashly expressed out of an unreasoning mind; also, he will quite reliably pile on somewhat of the temper and unreasoning, and do it knowingly. This, even as to the incipient epileptic.

That one, coarse in fibre, cruel by instinct, comparatively insensible to pain endured or inflicted, would crack his way to what he wants with a bludgeon.

An ego-centric third, cursed alike with a smattering of knowledge or skill, and with coddling by society into a certain criminal cunning, resents the setting on him of reformative brakes by those he has been encouraged to rate his intellectual inferiors.

A fourth, and always a major fourth, will make reams of affidavits to the effect that no one or thing on earth ever gave him a show for his white ally. Betimes, his contentions carry more than a kernel of truth; but usually he is just a flim-flamming liar and slacker, who elects to cache tossed donatives.

And so on, and on, with briefs which but shadow forth human nature as it may be observed where men foregather.

By and large, there is nothing hidden, nothing esoteric about the causes for the near-normal criminal. Primarily, they rest appreciably in things that society either directly or indirectly encouraged him to do or leave undone; as for just one example: the time and place for society to have it out with the swashbuckling little brute, is in the primary grade at public school. Even then society may be about six years too late; but, in the average, there will have been time enough, did Americans follow through under the recommendations of the great bulk of mentors who must, in large measure, build America's youth to stand life's stress.

But not at all. The last and best procedure of which Americans make use in the case of an especially refractory, so-dubbed "incorrigible" schoolboy, is to expel him from the public schools; which is to say: to pass him up to such as gutter-snipe gangsters to complete his anti-social education. And if the lad lands in a juvenile school of reform whose staff is shackled by banal prescriptions and prescriptions of lay extraction, hope of reclaiming him there or thereafter for social usages is so close to nil as to be negligible.

Turned loose upon society from the juvenile school when reformatively he is not even warmed up, he quickly finds his way to a reformatory where, if the actual criminologist prescribes, proscribes, and prosecutes, he stands a bare fighting chance to pull up and win out; but where, if compromise is again effected with his instinctive predilections, expressed in the habitual act, he is groomed to keep keepers agog in a prison of last resort. And if the convict prison can do no better than intrust the prison care of him to a junta of convicted felons, he will, in all human probability, one day go gun-hung and ride to kill.

So much is as one page out of a bulky volume, the contents of which, to the last syllable, the criminologist needs must have at his tongue's end.

Gentlemen hold differently. Medical men particularly assert that none but those of their clan are fitted to prescribe for criminals. Passing the fact that the highest-hung fruit on the reform tree tempts to far-flung reaching by the "clan," and to reciprocal buttering of bread within the clan, the cardinal assertion baldly begs the truth.

Just like any other man, a doctor of medicine, or psycho-analyst, or alienist, might or might not make a serviceable criminologist. That will depend upon his natural instincts, his instincts acquired through his touch with men, affairs and books, his gifts as a leader and organizer, and essentially, his capacity to create and maintain a reformatory mill that automatically separates wheat and chaff. Thereof, his ability to mark mental concept and physical alteration is a positive asset; yet just an asset, which will change to a liability shall he make a fetish of his asset and wax purblind to bigger things.

Whatever the conclusions of such as the psycho-analyst as to the ultimate *causes*—never singular *cause*, as some assert—for the grand average of the imprisoned, amelioration of their plight reduces to common sense, rather than to uncommon knowledge.

It is essentially informing, for instance, if true, that the etiology of the erotic neuroses particularly harks back to pinafore days; that the sexual impressions of early childhood are piled up in the cellar of the brain, there subconsciously to shape the sexual manifestations of the adult life of the subject—unless he enlists the aid of the psycho-analyst to bring the deep-lying layers to the surface, and to lead him to rational thought and action. It is “essentially informing,” because it is in line with coördinate and consanguine contentions which criminologists have dinned for long years into the public ear to no tangible purpose.

The keynote of the dinning has been that even a budding bird-dog will take a lot of breaking of tricks taught him when he was a puppy. In puppyhood he may be led engagingly to lead and loaf; whereas, if allowed to hunt freely to his nose from certain of his natural instincts during the plastic years, recourse then by his trainer to such as the spiked collar may well leave him no more serviceable on the hunting field than is a confused bungler. Just so, relatively, traces the history of the budding criminal.

However, few dogs and fewer lads are utterly spoiled by one puppy-trick. In the case of the lad, such as oversex with a strong tendency to perverted sexual expression, may strike through from close to the cradle; but it will not do to pounce upon it as being the singular cause for his social failure. There will be cross currents, some of them usually of congenital base,

others running with the sum of his bringing-up, that will intensify the subliminal impulse that drives him. Ordinarily, he shall not have drunk of the very dregs, until he shall have abided with criminals, or worse than criminals, in their caves.

In any case, as he is he is for the criminologist to make over. Not the mere specialist, mind you, for the mere specialist cannot have been equipped for the job—save that while taking on his special knowledge he had also conned the necessity for interlocking of the cardinal cogs of the reform mill, and done it an active agent for not less than five years in the midst of criminals. And even at that he will not cut a swath for reformatory results, shall he set his face against the catholic call upon him, in order to fondle any fetich whatsoever.

By the same token, the criminologist should be the last man to discourage earnest research for better means by which to unmask the causes for the criminal and his crimes.

The criminal and his crimes root, in the main, in bad practice become consecutively worse practice, finally fastened to him by the ever-tightening straps of habit. When the reformatory gets him, he usually bears the marks in mind, body and soul, of the pace that kills.

Palpably, then, the primal duty of the reformatory is to strip for reformatory action with the determination to delete every influence from training that is conducive of the state of mind the average lad is in when he is received by a reformatory. The first duty of the criminologist will be to impress the newly-imprisoned offender that he will be held to lend his voluntary aid in arresting his spurious predispositions, taken on either in free or former prison life.

Endless variations of predispositions to criminal conduct confront the criminologist; but determination to be and remain at once partly predal parasite, and partly all-around brutal sporting bull, caps them all; indeed, decision to horn in with spurious sportsmen, and to breeze along as sporting drones in lowest down sporting company, inclusive of the bawd, commonly decides for the initial criminal act.

Therefore, to lend emphasis to the sporting schedule of a prison is, in itself, most pernicious suggestion; and further to cheat educative measures in order to feature sporting activities, subjects sponsors of that procedure to unanswerable stricture. In such instance it would be found that the examined had never been purged of his “puppy tricks”; that he stands athwart of a great and grave work.

Because judiciously prescribed and executed exercise in free air goes hand in hand with reformatory processes, the criminologist will see to it that all-sufficient of it is accorded prisoners. Also, he will make sure that the prison field of recreation is not debased to ground on which such as the “rough-house” disturber and agitator may influence the mass to express the like of his oblique thoughts and acts. And also, he will make it very plain that free-hand recreation in the reformatory scheme is out of the good hearts of the management, and is an incidental thing apart, as compared with the social exactions upon prisoners to win cardinal knowledge and skill. The reverse procedure has been quite the vogue in many of America’s houses of correction. Therefore, this paragraph ought to be printed in capitals.

Nothing so offends common sense as does the prison playhouse, in normal times crowded with ignorant, unskilled, criminous young men, who can put their fingers on their sporting dives as chargeable with their plight as prisoners. Burned in the baking by corrosive sports, they need above all else to get quit of it, and to put on the habit of industry, both mental and physical.

The “habit” will not be slipped on. Counter habit, taken on usually from their first conscious thoughts, will motivate them to sip of this and that; to plan for variety of employment without regard for bread-winning results and their social rehabilitation.

Here, at once, the brakes must be set down hard, else their prison days will have been as “rolling stones” that “gather no moss.” Furthermore, a nearly perfect conduct record will not, as a general proposition, alter the case in the least; in fact, the lad who cunningly plays up to conduct, and down to fundamental equipment, is an intrinsic faker, and should not be granted a parole while he fakes.

Nothing short of the prisoner's consecutive, concentrated endeavor along industrial and associated lines, backed by his will to adjust to the free-life exactions upon him, will serve either the State or him.

Lay gentlemen, and their jockeys within prison confines, have freely prescribed nostrums of reform that are diametrically opposed to the intrinsic meaning of the preceding paragraph.

Result? Ask any chief of police of any city in America. Do not ask the dream-drugged, nor their retainers, who will switch you off for a ballooning after chimeras in the mist-swept clouds. Just recall that the American recidivistic criminal holds the world's record by a furlong to the mile; that he does so under mundane pressure in the grand majority of instances; and that airplaning with and for him must eventuate in a crash to earth, whereon and whereof he made his anti-social bed, and whereon and whereof he must make it over—piece by piece.

Knowledge of all such and sundry, with equipment with which to assure emphasis on essential values, must the criminologist possess, and be able to apply. He cannot have acquired specific means to that end a'circling in a swivel chair, and he won't get anywhere with any kind of preparation while listening to other than the voice of reason, established in harmony with the cumulative study, observation and experience of mankind.

VI

LINKS IN THE CHAIN OF CRIME

Of “Bogy,” early-day champion telegrapher of the United States, it was alleged by those of his craft: “It’s Bogy here, Bogy there, Bogy almost anywhere.”

Blessed with an alert, incisive brain naturally coördinated with the quickest of terminal reflexes, Bogy was drawn to the key when even “duplex” telegraphy was a far-removed possibility. Also, he was rated an electrician when the “Electrical World” issued a fourpage sheet dotted with elementary diagrams and analyses, vulgar craftsmen would now pronounce kindergarten stuff.

As to natural gifts, it is probable that Thomas A. Edison hadn’t a very great deal the edge on Bogy, his contemporary; indeed, if tradition is to be accepted, both, when young, were afflicted with an overdose of inertia, though Edison even then spent much of his time dabbling with electrical instruments.

Edison, so the tale runs, stuck to the home base and to the dabbling, until there was born in him the desire to do something no other man had done, and to serve his fellowmen in the doing. In due time the “inertia” gave place to a power of consecutive, concentrated effort, matched but few times in the annals of human endeavor.

Edison finally reached the stage where he blessed work and was blessed by it; and to-day, when crowding close to four-score-and-ten, “Work is worship” with him, and none need expect his approbation who trains the clock eye, while measuring commensurate labor with sand that has run.

Bogy, struck with an instinctive distaste for buckling to and blocking out results agreeably with his bulking gifts, and periodically by an engulfing wave of wanderlust, wouldn’t plant himself and take root. He could both “send” and “receive” faster than any man on earth. He was the best of

fellows when “lush”; but he couldn’t control either the soles of his feet, or the feet of his brain. Therefore ’twas Bogy in America in April, Canada in July, England in October, and Australia in December.

Bogy, the personification of the aimless, senseless globe-trotter. Bogy, distributing his precious belongings in bits about the globe. Bogy, sensing not the least of responsibility unto himself, to man or his Maker, to properly express princely attributes. Bogy, lighting like the butterfly here for a sip, there for a sip, then making tangentially for other fields and cheap sweets.

Writing the author about Bogy, Edison related: “I heard a funny one about Bogy: One day he walked into the New York Produce exchange, and going to the W. U. booth asked the loan of a dollar from the operator. Bogy said, ‘I am Bogy; have you never heard of me?’ The operator said ‘No.’ ‘Well,’ says Bogy, ‘you must be a helluvanoperator.’”

The last time the writer saw Bogy, he was down-and-out, unblushingly “hitting” his home friends for petty largesse, the bulk of which went for lager beer—his arch enemy.

Just why did beer poison Bogy’s life? Because it nailed him to environment that insidiously sapped his manhood, along with his mental and manual skill. He shuffled from the subscriber for the last time a nerve-shattered derelict. He had chosen one of scores of pikes over which young men travel at a pace that kills pride in worthy work.

It wasn’t in Bogy to take the final leap into a life of crime, He was bigger than that at his littlest. Besides, he lacked nerve to accept the gambler’s chance at the game of predation. Further, his old friends couldn’t say one nay whose purse was open to all when, as he put it, he was “in luck.”

But Bogies there are, thousands of them, who, given but an added dash of degenerate deviltry, are drawn as naturally to criminal shoals as needle to magnet; shoals, many of which break from a treacherous undertow, many more of which cannot be charted so as to arrest the serious attention of upcoming lads, and some of which none can hope to avoid entirely, save by the help of Him Who alone can fend all of the thrusts of temptation.

Basically, however, Bogy habitually expressed three of the prime attributes of the predal felon, in that he wouldn’t work consecutively, was ego-centric

to the pitiable point, and would lead a complex, carnal, varied, and parasitic life. Also, in going out for, and feeding on, unearned increment, he shadowed forth incipiently the all-pervasive moral criminal whom no penal code feazes, yet he who, because of his oblique principles and practices, is chargeable more than another for both the birth and the onrush of crime.

Fundamentally, nearly all of crime reaches to myriads of things done and left undone by those, the great majority of whom never suspicioned that they were shoving criminal pawns into play.

Others baldly mark anti-social cards thusly, for example: Here's a shark who schemes grossly to manipulate price levels on commodities, when the strings to millions of lean purses are already stretched to the snapping point.

"All the traffic will bear!" is the slogan of this jobbing Shylock, who presses for the usurer's pounds of flesh money, e'en to the point of taking the very heart out of the mass of his countrymen.

The bitterness of such meanest of wholesale thievery consists in the fact that it is commonly engineered to the end that the thieves and their retainers may flaunt brassy symbols of ill-gotten gain in the faces of those whose bent backs are about all that is left them to show for their having been the primary producers of those symbols.

There's a faultlessly-clothed and groomed crook whose soft palm reaches for what he knows to be of value its weight in paper: the which he is about to exchange obligingly for what he knows to be the bulk of a life's savings, won by patient toil against great odds.

Down to the depths, along with his dupe, go the wife and children of the "poor fish." The man and his mate must retrace, retrench, and take up the old grind at a time when the inevitable toll takes of both spirit and flesh. But what's a little thing like that to him who must have his old wine, young things, and "dough" with which to double his bets while he makes the grand rounds of the sporting sentry boxes? This thinly-veneered, mulcting type of parasite pirouettes debonairly over the spaces of the "movie" screen, where he takes up his abode in the indiscriminating hearts of younglings.

Watch that bull-jowled "promotor" of the pug-ugly sport—another type of human cuckoo. Get the ghoulish glint in his eyes as he "spills" vernacular

of the gutter telling an instinctively fine buckra of a “boy” what a “chump” he’d be to go on playing the mule at productive work, when he “packs a double punch” with which to land him in the midst of “easy pickin’.” Observe the war within the lad as between innate decency and, in a sense, laudable desire for the limelight and “soft” money.

Follow the lad in the prize ring six months later. Note his unerring judgment of distance; his containedness and resourcefulness under whirlwind assault; his chloroforming blow, held coolly for the “opening” he seeks, then delivered lightning-like to the part of the body of his adversary he had been patiently “playing” for; see his battered, bleeding, and befuddled foe borne from the ring, supported by his “seconds”; and then think on high qualities of gameness and skill, matched by a fine mentality and piston-power and reaction of muscle, given over, as an occupation, to the spilling of his brother’s blood, for a price accursed in the sight of every good thing.

You couldn’t miss the practical “side kick” of such as the “professor” pug; you couldn’t, from church portal to the padded cell of a convict prison. He’s no low-down mixer with mud larks—not he! Should you suggest such a thing, he’d bristle and bark. And had you the temerity to propose introduction to his sister of even a pugilistic “champeon” he’d probably sink his mental teeth into you. Agreeably with the social ear, he avoids war of words over his Maker’s edict: “The meek shall inherit the earth”; but by nature he craves action of the kind that left the Roman amphitheatre a stench in the nostrils of a dawning civilization such as the Christ envisaged. And so, you will find him enthusiastically back of the kind of “Big Brothering of Boys” that pits mere bantams of kids against each other in a brutal “bout” to a “finish.”

The covered lie comes easy, of course; hence, the bestial business is euphemistically touted as “boxing exhibitions”; boxing, mark you, that leaves a pigmy of a lad cut and slashed, stretched senseless, face downward, with the blood trickling from his nose and ears to the canvas.

Probably in just one “go” the lad had taken on external marks that will seriously handicap him for all of his earthly time; very possibly he had suffered internal injury that will rise up along about the medial line of life, and cut him off; and surely he had been imbued with instincts which, more

than all other instincts, impelled purblind mortals to rush for the late shambles as for a barbecue.

School lads ruthlessly spill human blood for amusement, and at the same time seek to establish in the souls of men “a peace that passeth understanding”? Every man who thinks beyond the tip of his nose, knows that the two propositions are preposterously antithetic; that historians of the future will have so declared them; and that Almighty God puts his curse upon the doubled fist, let the doubling take what form it may, other than in defense of sacred rights.

Meet the “glad-hand,” ubiquitous charlatan: Janus-faced, side-stepping straddler; monkey-on-a-stick to the last touch; echo of the last voice; hand behind his back for “cash”—no paper, no witnesses, since he is clever as the foraging fox is clever; plausible peddler of light promises with which to ease the going to his goal; insinuating distributor of tainted largesse; any man’s man so he be the highest bidder; no man’s man who despises disloyal duplicity; mixer with mixers of noxious social broth, this man-mongrel of varied type and intensity of crass cunning, is the most craven of moral cowards, in that he cannot be brought to an accounting with conscience. Were he “hitched to a star,” he’d just naturally fix his gaze on the abyss. Everywhere he interposes the oblique act to queer the big thing. In reform endeavor, he plays to hands that land him within the big money, and let intrinsic reformatory processes go hang.

The so-called “good mixer” will measure to any length of tape. At his best, he will stretch to the size of a Warren G. Harding, motivated by impulse to reduce friction engendered by clashing convictions. He seldom does less than well, because he is guided by a genuine desire to help ease the heart of contention, through striking a working balance and thus leaving the contenders with hands clasped. Such serve God in serving man.

At his worst, he will shrink to the stature of the political man-of-all-work. His part it is to veer votes to suit his paymasters. What his instruments to hand? Ask him, since the print of a paragraph can encompass but a modicum of his machinations.

From ward heeler to worshipful woman, this subterranean trickster is charged with selection of *the* tool that will turn the trick.

The “instrument” may take the form of a crass bid in coin of the realm for such as marshalling of thugs to intimidate units of the opposition at the polls, and to line up “floaters”; or to dig up detached matter written or spoken by an opponent, and so garnish and garble it as to rob it of the meaning the original spokesman, or writer, intended it should convey; or to shout from the house tops the minute details of a natural fault, buried for long years under the statute of limitations, and through the offender having taken on nobility of soul after having squared the account, in so far as it could be squared; or to persist in a campaign of slander concerning allegations that had time and again been discredited through due processes of unquestionable research; or to stir up antagonisms of class and creed that persist beyond the polls, and further close the eyes of single-seeing partisans and bigots. In short, to deal dirt-daubed deuces from the bottom of the political deck, e’en though by so doing he outrages decency, and reverses the Great Pleader, Who cautioned so often for charity in human judgments.

Who does not know the legal trimmer whose best hold is debasement of the trademark of his craft? The basic bones of jurisprudence, and the ethics of his profession, alike make it morally incumbent upon a lawyer to see justice done—no more, no less. True, the human mind in all of its functioning is fallible. There will be honest differences of interpretation as to what constitutes justice, agreeably with legal lore, written and traditional; but there can be no defense of the shyster whose practice reduces mainly to attempts at derailing justice; of him who elects to effect inequitable exchange, or to defeat the aims of law framed to assure the common peace and security.

Because legions of spurious practitioners the country over lend themselves to grease the going for recidivistic criminals, it is largely that the latter take long and desperate chances they would not dare otherwise. The reason given also explains in positive part why the American marauder is flippantly the most deadly of any of his ilk in the world; and why he constantly mounts in numbers beyond those of any other nation.

To the barterers of the bebadged: to those intrusted with the public safety on the first lines of social defense, it is left to lengthen the long odds yielded the criminal in his pursuit of crime. Shameful, and hard to tell as it is of a

body of men, the grand majority of whom remain faithful to their oaths of office, it is nevertheless true that a constantly increasing percentage of active peace officers of cities of the first class particularly, wink at penal offenses not only, but actually lock arms with felonious offenders in the landing of all kinds of unlawful loot. Moreover, it is by no means exceptional for policemen to hold criminous club over the heads of certain of ex-prisoners who, given a fair fighting chance, probably would have “pulled straight” after parole from prison. And moreover, it has been charged freely, betimes established in courts of law, that morally-debauched chieftains had impelled police pawns to urge criminals to greater activity in the garnering of tainted spoils, in the division of which, king-pin grafters declared themselves “in” for the lion’s share.

And then, as if to bind the whole nefarious business, self-nominated lay reformers with itch for place and portion, or for specific power and control, or for a cheap popularity with prisoners, or to be cited as bellwethers of reform, or from just ornery ignorance, couldn’t rest satisfied until they had deleted from reformative measures next to the last of directive virtue; and from the commission of crime, drawn all but the sterile sting of consequence. This, in the first instance, through so ordering educative processes as to strip them of fundamental efficiency, while at the same time capitalizing by-play charged both with the spirit and practices of the would-be parasitic sport; and in the second instance, by granting paroles based mainly on behavior, instead of on an acquired ability in the manual and auxiliary processes, sufficient to meet free-life exactions at honest endeavor.

More than any other class of social wreckers, the latter individuals have been blamable for the rough-riding killer; firstly, because they have been men, by and large, who should have been so pestled in the social crucible as to have made it practically impossible for them to have veered so grossly from essential human values, while confounding magnitudes; and secondly, for the reason that they have wrecked in the teeth of the most solemn opposition of those who have made a life’s concentrated study of that which makes and keeps men criminal: done it while breaking bread with criminals, and done it with due regard for every known finite and infinite influence that makes for the social rehabilitation of the repeating felon.

This one's fetich had to function before all else; that one's fad needs must go a'riding, and no matter that the fundamentals limped on crutches; another imagined himself the Moses to lead all to the reformatory land of promise; a fourth was cock-sure of his strictly individual balm with which to work miracles of reform; yet had all of their magic been combined, and used to the height of its power, it wouldn't have made so much as a dent in case-hardened crime; it wouldn't, because nothing less than all-around preparedness to put off crime will make a dent in crime; and that's exactly what our friends have maneuvered to kill, is the ability of singularly needy fellows to upstand in their own shoes and make an honest living.

Baseball crowned King! Brutalities named to conceal their intrinsic curse! Banal amusements still adjusted to the hands and minds of nearly-confirmed social slackers! Perquisites stretched to the point of parting company with common sense! Favoritism bestowed where it would supposedly carry for the greatest advertising power in free life! Gross criminals, naturally of the ground-hog type, and the nucleus of crime, practically left either to shift for themselves, or smugly passed up to others for solution of their pitiable problems! The gauge of reformatory effort regulated to the degenerate reactions of instinctive social wolves, at the expense of their sore needs! And all done as if done from the peak of the hill of finite prescience; in very fact, with gratuitous disregard of all of human experience not seen from that hypothetical "hill."

In relation thereto, the crucial points are: true criminals think substantially in the same measures as the writer writes; doing it, habituals have done precisely what habituals naturally would do in the circumstance, which is to say: they have ground grist bagged to their liking and brought to their mill, and by the same token, they have moved as one to refuse millings that didn't mate with their machinations.

Not a whit of false suggestion, an item of spurious method, a camouflaged lie, an iota of bad example, nor a denatured piece of deviltry, has been lost upon any but the least intelligent of lawbreakers; and even they must have had veiled minds indeed, not to have understood.

In line with easy buttering of bread and the going pressure for banal by-play in prison life, criminals and ex-criminals alike have outraged truth in order

to discredit men who had wished them well, and had acted the part; but whether in the rôle of the dispossessed or dispossessing, actual criminals have never for a moment stepped out of cadence with the cardinal motif, which has been to bamboozle the blinkered: swallow-tail criminologists preferred, because they are the easiest to gull.

Some have been gulled because a comprehensive understanding of that which builds to given criminals, and then to their progressively serious crimes, has been strangest to their striving. Others have been rendered single-seeing through obsessional use of the monocular lens, given over to proof of the presupposition. Still others must have hushed conviction in order to meet this or that material consideration.

And certain of active workers in the work must have ridden as jockeys to orders under false colors, since the inescapable exactions of reformative endeavor cannot be misread by any tyro who will take a good look.

Hence it comes about that the crime problem works out substantially like this: multiply the congenital predisposition of the average criminal to commit crime, by the sum of the direct and indirect bids made for him to do so, and you account naturally for the present carousal of crime in the United States, engineered, in the main, by habitual criminals.

Pounding on such as the aftermath of the World War as acute cause for crime, doesn't begin to pick to the bone. America had outfooted the civilized world at breeding and nursing criminals, long before the prospect of a foreign war had seeped into the national consciousness.

No doubt, certain of the legions of ex-criminals who sieved into the national forces, here and abroad, for that war, were therefore emboldened to take up the swing around the criminal circle at the completion of that service; but if true, that were a mere flash in the pan as compared with the daily grand total of crime committed in continental America.

If we are to catch up with crime and come up with the criminal, the obscured fact is the fact that needs must take root and abide in American minds. The obscured fact is, that infinitely more than the ideals from which correctional plants are operated, the ideals from which such as counting houses consummate—affect the grand ratios of crime.

So long as those at the top break moral law to bits and remain practically immune to legal proscriptions in the breaking, so long will crowded-out fellows at the bottom crack jokes over little things like penal codes.

However it goes with the rest of the world, America has reached the stage of unfolding whereof inequity at a price won't work.

Nothing short of an enlightened national conscience will cut much of a swath in the stand of crime; a conscience that holds every man to the open mart, there to deal one-hundred cents to the dollar—give or take.

Remedial measures, taken as against the going saturnalia of crime the country over, will perforce center on prevention. Remodelling crime-soaked human clay won't cure the case.

First, then, purge the land of natural criminals and breeders of criminals: this, in part, through restrictive immigration laws that religiously restrict; in part by searching out resident agitators against the public peace and security, and ticketing them for the countries whence they came; and in part by confining home-brew habituals and keeping them confined.

Secondly, begin instruction for a common virtue where children take on bents for thinking and doing at maturity; which is to say: at the hearths, and in the public schools of the land.

So much being admitted, it follows, with undeniable force, that the first logical step in point to be taken by America, should be reestablishment of moral instruction in the public schools.

Thereof, America was steered, and steers for the rocks; for, "Just as the twig is bent, the tree's inclined."

VII

CHAMOIS-SKIN CRIMINOLOGISTS

Chamois-skin is softest of leather made of the skin of the chamois.

The chamois abides on the loftiest ridges of the Alps and Pyrenees. Roaming those mountains, he employs unusual keenness and scope of vision, and displays singular agility in leaping from crag to crag, on which he lands non-skidding hoofs. Otherwise, the little climber's means of defense are negligible. While fleet of foot, he is at the mercy, in their domain, of long-toothed hunters endowed with the greater cunning and stamina.

Similes miss the chamois-skin criminologist solely by the fact of criminological stunts he essays, but cannot manage. Undismayed by finite limitations, he dares the highest peaks of vision, from which he affects to train all-seeing eyes; springs nimbly from height to height in the mists of theory; rates them purblind mortals who dwell on the common plane below; and comes croppers in attempt to prescribe for fellow unfortunates who must needs work out life's problems close to the practical level.

A further attribute of the chamois-skin is its sponge-like capacity for absorption. It has a voracious maw for either oil or water, and does its best to combine them. Here, again, the parallel persists. Be the idea-mixture of reform never so impossible, the mind of the chamois-skin criminologist soaks it in, while he waxes cocksure of his call to euchre nature with it at the game of synthesis.

Thereto hangs a sometime ludicrous, sometime tragic tale. It is ludicrous, out of idiosyncratic conceptions of being and doing which out-fantasy fantasy; and it is tragic, when the barren result is predicted by reactive laws that can neither be shunted nor denied. Moreover, the more bizarre, while bedeviled, the dream stuff, the more certain is the chamois-skin

criminologist that it should abide an action pattern in the brains of the crime-ridden.

The idea may be that of an aesthete who is beyond suspicion of motive other than to serve his kind, yet be charged with the most malignant of anti-social germs. Take a case based cardinally on such an idea: as at present pressed, it is that it is the first duty of the State to so provide for the carefree recreation and amusement of recidivistic felons, as to win their unqualified approval of that provision. In other words, the correctional salve is bad medicine if it is not spread to the instinctive reactions of many-times convicted felons.

No matter what their natural and acquired handicaps; no matter if they elect to continue to “pick” a living, despite their fulsome lip service for men and measures through which they calculate to ease the going to, in, and from prison; no matter that they are baldly unskilled, and at heart unregenerate, as evidenced by the fact of their collective machinations to place the emphasis on the kind of prison activities that helped clamp them to crooked masts in free life. No matter, in short, what their industrial and social delinquencies, criminals must be fed up with a plethora of baseball, moving-pictures, bone-rattling, play-acting and prison banquets whereat “lifers” hurl anathema at hounds of the law, who had the unthinkable temerity to “pinch” them, caught at riding rough-shod over sun-lit thoroughfares.

The ominous narrative particularizes the “buzz-wagon” packed with gun-hung thugs to whom ruthless murder is a mere incident of the chase. “On your way!” shouts a rider, or riders, as the speed clutch is thrown in, and the good God fend for those who would stop them.

“Go after them! Get them! Give them the full length of the law!” Surely! Any genuine, game man sworn to do it feels the call to do no less. But would you, in the face of probable death and the facts that the chances are about three to one against your murderer being brought to trial, ten to one against his sentence by the book, and eighty to one that he will not suffer the death penalty? Essentially would you, if you pictured him in prison carrying off the rôle of one under undue duress, backed by would-be

bellwethers of reform, who play up to his depraved instincts, and down to the security of the commonwealth?

Certainty an agent of the law should execute the law, even unto the end, else yield his shield. Still, guardians of the peace are not supermen, but just humans, swayed with the great bulk of their brothers by impulse to protect those dear to and dependent upon them.

However, the grand majority of peace officers would consummate under their oaths if society wouldn't maintain odds, all along the line so close to prohibitive in favor of the murderous parasite. So long as that is done, both in and out of prison, so long will those in the first line of public defense fight shy of the final alternative; and so long will the ratio of apprehended murderers go down, instead of up.

And why not, when you cut to the heart of it? Why expect a man to leave the wife to grub for good kiddies, to the end that pseudo-reformers may chase chimeras in the clouds, while they speed by-choice criminals for the abyss?

Yet it is done, though in the doing potential victims know that one of the chosen lays of the chamois-skin charlatan is to imbue crass criminals with contempt for the badge of authority; indeed, with contempt for any visible sign that is not shaped to the frayed garments of his mind, pendant-hung with non-reformative piffle.

The average habitual would earn the "moron's" tag so flippantly attached to him, did he not vociferate for those who read the reform cards as he would have them read. With everything to gain thereby he plans to gain, and with naught to lose save that which he spurns, he would be a near dunce indeed, should he cross the bids of him who abets his oblique selections.

Make actual soundings for motives, and it is clearly understandable why self-determining criminals would putter and play ball in prison, while refusing enhanced knowledge and skill. In very fact, ulterior designs are inevitably adumbrated in constantly lowering industrial and associated averages.

Because the kind of getting along in question involves fateful compromise with a certain class of felons, it is that they always constitute the nucleus of

crime in America. Hence it is, too, that just those prisons whose press agents push it along in print as to how miraculously they “get along” with their charges, are just the prisons wherein “industrial and associated averages” are lowest of the low.

How could it be otherwise when the primal duty of a correctional plant is to fix it firmly in minds trained on the counterview, that the individual must shift to “get along” with the State, or be brushed aside. The immediate mandate is doubly binding at a time when the hand of Anarch rests heavily on the peoples of earth, albeit that is but a passing phase of mob hysteria, for which natural laws must effect a cure, if man does not.

With prison methods it is essentially different. Thereof it is most unfortunately within the power of the miscalled and misguided to put the prison finish on the pedlar felon, and thus penalize him so plainly as to leave him barely a fighting chance for social reinstatement.

The average employer cares not a rouble about propaganda paraded in the limelight by chamois-skin criminologists, other than that mental gyrations have naught to do with the hand-tool and other processes of training that are at once broadly educative. He does and must, first of all, protect his trial balance. Mostly he “has a heart,” also he has to watch out for the leaks; and so the bars of his mind shut out the unskilled, crime-tainted roustabout who is probably an instinctive agitator for an unfair day’s work and pay. Therefore the pitiable plight of many would be—decent ex-convicts on parole who go bang up against the bars.

The practical deadlock, established as between the deserving few and the self-protecting many, is primarily the fault neither of the employer who has been the victim of so much of basest ingratitude, nor of the well-intentioned ex-convict who is faced about until he throws up his hands in disgust and has recourse, once again, to the caveman’s working tools.

Perhaps prisoners should probe to the fallacy of lauding mock schemes of reformation; but that’s beside the mark of initial responsibility for those schemes, which rests with the architects of them. Again, an imprisoned felon who has determined to “pull straight” following his discharge, may be shriven of serious blame for either active or passive participation in procedure which furthers his early parole. To falsely tempt a prisoner with

freedom is not a fair shake, even though he knows it to be unearned freedom, and that, being nearly unequipped, he cannot hope to meet the exactions of the free-life working day. Whereas for those who bait prison hooks with industrial dynamite, there is no defense.

The fuse is set as soon as our man plants his feet on free soil. He is suspect fundamentally for the reason that the prison régime that turned him out is suspect. Hard-headed men are not to be bamboozled into belief in reform by near approach to “sweet doing nothing.” They know that if they had to build up their characters and bank credits while negotiating tough going and enduring under hard knocks, the character and aims of an instinctively non-social drone are not to be changed ever by his lame dashes of prison endeavor, plus a few pats on his back.

The crash comes when the ex-convict tries to market a modicum of cheap skill taken on in prison. Aside from the fact that crime-free journeymen mechanics work grudgingly with the crime-branded, he has nothing commanding to offer when and where processes of elimination follow natural grooves. Therefore he is turned down again and again until he turns up incorrigibly embittered before a committing magistrate, with his heart drawn to contempt for prison-acquired counterfeit of skill that brought him no better than gibes and refusals.

Thinking on it how criminological punters helped chart his criminal course doesn't salve the social wounds of the crowded-out derelict, nor does it ease his chronic grouch against the social structure; it doesn't, primarily, because he is quite surely a self-centered egoist who holds himself cheated by gentlemen who schooled him after his own belief to the effect that the world owes him “easy pickin’.”

When the “pickin’” reduces to the likes of the pick, our man stands at the parting of the ways with his jaws set. Being what he is placed as he is, and thinking as he thinks, he naturally envisages such as the burglar's outfit as means by which he can “square” himself. As he senses it, society has held him up ruthlessly. All right, then, “hands up” it is; and be quick about it, or brave the bark of his automatic.

There he is, the usual sum of him, as born, raised, environed and institutionalized.

What's to be done about it? Since society has had a hand in the unmaking of him at every step of his career from his first conscious thought, what has society to propose that will undo, at least in part, the harm done to him. "What," the criminological tyro would ask, "is the remedy"?

Well, there isn't any, one, remedy. There is not through finite means on earth. He now presents the complex of complexes: a soured, instinctively degenerate, desperate man, who educes that he has been "double-crossed" by society all of the way, and who smarts under the sting of social anathema; for he, too, "has a heart," though it may be hidden from the common view under crooked curves. Above all, he wants no more of tossed donatives with their false promise of the bon-bons of life, to be snatched out of the air. He further indulges self pity with the belief that society aims to keep him outlawed. Therefore he elects to let it go at that—and the quicker trigger finger.

Whereas common-sense correctional measures applied in time and prosecuted along educational lines, might well have pointed him for honest money, he must now be met with the mailed fist. First off, there is nothing for it but to oppose the cumulative force of the commonwealth to the vintage a hyenaized anti-social unit would brew. Going about it, the first necessary step is to set the brakes down hard on spurious guardians of the peace, cold-shut politicians, and pseudo-penologists who use him to line their purses. Then follow up substantially like this:

(1) Make the commitment fit him. Commit him to the penal institution that squares with his classification as a criminal. Bar him, essentially, from Simon-pure reformatories, manned and equipped to serve first-offending felons. That involves the establishment of a centralized clearing bureau of anthropometry to which any magistrate in the United States could refer for information as to the backward trail of a convicted felon before him for sentence. Lack of such a bureau constitutes the weakest link in the chain of American jurisprudence.

(2) If he is other than an "habitual," so sentenced, and having committed him to a prison of last resort, where he belongs, hold him there until he shall have given fairly-presumptive evidence of his determination to make an honest living. To such an end, his sentence must needs be strictly

indeterminate, and his parole contingent upon the manner in which he reacts to fundamental reformatory processes. Particularly, his trade markings will tell reliably as to whether or not he is set for social rehabilitation. If those markings persist at the indifferent point of percentage, he is intrinsically “faking”; he is faking, in spite of his insistence upon the uniquely benign influence of sporting activities and associated imagery and amusement by which he has been and is being cheated.

In such instance, he must be brought up with a round turn for very much higher averages. Palpably, too, those who school him to spurn basic results while they preen his sporting feathers, should be searched out and set down; for, taken by and large, the sporting instinct run amuck is the capital curse that stalks the average criminal rounder. More than that, the illegal acts of the occasional, circumstantial felon, who is not criminal at heart, nearly always trace to an acquired habit of mind that chains him to one or several of the poisonous by-products of pure sport.

(3) In attempt to steer him aright, stick to him with something like the patience the Saviour would have stuck to him in like circumstance. Do for him every sane, practicable thing, and do to him nothing that smacks of ignoble revenge.

On the other hand, have done with maudlin makeshifts for just social reprisal. No State that balks at visiting condign discipline on habitual lawbreakers, can endure well-ordered. The moment a man holds himself above the general law, that moment he aligns against human progress. Therefore make him not the semblance of apology for meeting cardinal crime with cardinal punishment. Moreover, plainly term it punishment, advisedly devised to bring it home to the predatory brute that “comin’ a shootin’” for another’s belongings does not earn him “sleepin’ time” in a prison wherein he can indulge sporting predilections for him accursed; and wherein there is “No (actually reformatory) work, plenty of eats, and a bum argument every minute.”

Save for our addition in parenthesis, the above-quoted phrase is that of a many-offense criminal who picked and chose while confined in what he

enthusiastically called “some joint,” and what the cult chamois-skin refer to as a model, “get along” reformatory for advanced felons.

The message was mailed to a “pal,” who, with the penman, was convicted of knocking down a drunken sailor with a slung-shot, beating him into insensibility, and stripping him of his money and valuables “in front of No. 9 Bowery,” New York City.

The words of the message mix to a perfect broth. They adumbrate institutional farce made of the mandatory predicates of penal law, through marking time to the mental meanderings of chamois-skin criminologists.

(4) So order prison régimes that they shall serve the commonwealth, and should serve the prisoner; serve the commonwealth by enforcing penal codes written primarily to prevent crime, but which such as the murderous recidivist make it necessary to make repressive for the protection of society; and serve the prisoner through affording him every sane chance to forge ahead and face life squarely.

In the process, heaping reprisal should be religiously refused as less defensible than the reverse. Petty penalties that issue against perfectly natural while harmless expressions, are essentially baneful.

To begin with, we have to unset anti-social jaws. We may be able to do that big thing if we go about it like manly men, realizing that everything in life is relative; and that a fellow may have tricked himself into crime, yet be far from a by-choice criminal. Positively, we shall not do so with a “billy” and billingsgate. Neither can we coddle and pad a man to reformation. That will ensue upon nothing less than his changed habit of thought and action; and that will usually initiate, if at all, out of acquired knowledge and skill, from which to build or rebuild self-respect.

(5) Man correctional institutions throughout with men whose characters are unassailable, who example and suggest only that which is above reproach, who are naturally fitted to discourage the offense without discouraging the offender, and who instinctively dive deeply for compassion; but, who cannot be “faked” readily by criminal cunning, nor brought to a compromise with it.

Between such men and flippant “good-mixers” who set sail for untroubled waters and the lump sum; also between such men and “soulless politicians who gamble with dice loaded with human hearts,” drive wedges that triflers and stricksters cannot loosen.

(6) It will repay the States, handsomely, to establish criminological schools basically equipped for practical instruction, backed by elementary courses in anthropology and mental therapeutics. The chiefs of staffs of such schools should be men well advanced in years, and of proven worth which comprehends the practice and theory of a work great and grave as any to which man lends hand and brain. They should be “well advanced in years,” because one must have dealt first hand in their midst for the better part of a life time with true criminals ere he shall have dug to their ulterior designs and visioned their more refined crooks and curves.

Choice of chiefs of staffs should bear but incidental relation to diplomas—medical or other. While ability to prescribe for a prisoner physically, or to probe him psychologically, is a valuable asset, it does not, by any manner of means, postulate the stature of an all-purpose criminologist.

For example: a graduated general practitioner and psychic expert holds two blocks of the reform pyramid; yet only two, neither of which is the key-block. That does not reside in ability to tell off the bones of the human frame, nor to trace to subconscious impulsion; but in capacity to fit all the blocks of a delicately-poised structure and make them function in harmony, close to the maximum of efficiency, for a common purpose. Thereof, weight of influence must be carefully weighed, confounding of magnitudes avoided, and contact of extremes religiously discouraged.

Beyond all of that, the right man in place must be a consummate organizer who is able to trace to motive, draw derailed men unto him, minimize friction whatsoever, and plan and promote sound training and government; yet stand, as did the Christ, as adamant to him who would exploit evil intent out of an evil heart.

He who can fill that bulking order must be bigger, broader and deeper than the physical and mental technician—be he never so clever.

The paragraphs immediately preceding are stressed because the present pull and pressure is for psychiatrists as heads of correctional plants. On its face, that is short-sighted single-seeing, since such men cannot bring breadth of understanding of a great-big, complex, interlocking machine, the parts of which must be kept nicely balanced. Moreover, your master-criminologist is first of all master-man in the sense that he can and does get down into, and abide in, the hearts of unfortunates who make for hell's toboggan.

In any case, the work should not wait upon experimentation to necessary experience, the which is born only of extended contact with imprisoned felons.

What prison reform cries out for is correctional heads who can build and maintain a régime that will inspire their charges to *do* things, and to *want* to do them. Building, specializing should be left to staff specialists; general management to general efficiency that compasses the full, practical reformatory field. Such heads had, of course, made it a part of their business to be able to box, at the least, the specific theoretical compass.

Heads of departments of the schools in question should have had not less than two years of experience somewhere on the firing line of reform; if more than that, all the better.

The course for students should be an intensive one—say six months—calculated to file off the rough edges of the tyro, and to classify him. As it is now, beginners who set in the game of penology must pass through the shuttle-cock period of apprenticeship, during which the criminal crew ply the battledoor, and disciplinary officers are besieged with banal offenses that are catching.

Having passed relatively simple final examinations, graduated students should bear with them written attestations of that fact. The personal equation should count appreciably at such examinations. Either palpable or demonstrated unfitness should bar an applicant from reform work.

The State could well afford to balance tuition and maintenance against the time spent by its pupils at elementary preparation for fundamental endeavor in its service.

(6) Establish Houses of Reception for first-offending and circumstantial felons awaiting trial and transfer, and officer those houses, in so far as may be as to subordinate positions, with graduates of criminological schools. The houses should be orderly, systematic, sanitary houses, given over to practicable work, body-building exercises, the single room system, classification of inmates by room-blocks as well as at recreation by character, and to all around discipline sufficiently strict to impress budding lawbreakers at once with the fact that the cost of lawbreaking mounts to practical confiscation.

Thusly we should hold off the habitual from the occasional offender, and afford near neophytes the chance to brush elbows with, and study criminals in, the making.

Thereafter, prospective officers in the making should be advanced to such correctional institutions as the quality of them, and their attainment under preliminary instruction and experience, would warrant. And thusly we should have prisons of last resort manned, as they should be, with serious-minded officers equipped to serve the State by serving obliquely-thinking underdogs.

(7) Create the office of Inspector-General of State Correctional Institutions. Make the position appointive by the Governor, and the incumbent of it an ex-officio advisory member of boards and commissions that are classed under penal and correctional heads.

The appointment should be strictly non-partisan, and the appointee one who had forged his way up from the ground in the work, won deserved distinction doing it, and who therefore could not be tricked by high-sounding vagaries, surface practicability, or subterranean machinations.

Among other things, such a man would search out conflicting activities; comparative inactivities; unbalance of parts; overlapping positions; overemphasized and underemphasized discipline; too much of horse-play irrationally prescribed; not enough of recreation to a rational end; false classification of inmates in falsely-appointed apartments; defective hygiene and sanitation; waste of potential and of material whatsoever, inclusive of food and its values; and the criminological “faker” who shifts to line his

purse and to partake of a cheap notoriety, while he blinds the public eye with impish platitudes.

The Inspector General would, of course, act as first criminological aid to the Governor, by whom he would be guided practically. He should be a help, not a hindrance to the said boards and commissions, and should sit with them, on request, in advisory capacity when reasonably possible. Also, specific copies of other than his confidential reports to the Governor should be submitted to the said commissions and boards. In fact, one of the cardinal reasons for his being and doing as a State agent would be his duty to promote harmonious, while synthetic effort to the best ends. His salary should include a competent secretary, and a stenographer, both of his own choosing. His time should be practically his own to use to the broadest purpose.

Then require of local correctional heads that they shall work loyally with their supreme, active chief, whether or no he rates values exactly as they rate them. He would be out to help make the best use of all reformatory tools and to coördinate them. If he is big enough to do that, he is big enough to receive most respectful attention and support. As a matter of fact, an appreciable part of his worth to the State would be his ability to spot idiosyncrasies, and to evaluate single-track ideas, issuing out of narrow-gauge brains.

When many simple, obvious, highly serviceable things still undone, shall have been done for the crime-cheated, will be time enough to engage with half-blown theories.

In the meantime, psychoanalysis should be verified indubitably as squaring closely with the claims of its sponsors, then be applied sequentially in the work, or wait upon practical and more important exactions. Also, psychoanalysts shall have purged their phrasing of such as “unconscious *intent*,” before it will carry to conviction in full.

In the final analysis, rational reform endeavor reduces to the common terms and tread of a work-a-day world.

But kernels of criminological thought can be contained in a thin volume. A bulking book could be written alone on when and why prison discipline

takes on a cutting edge, and when and why it sheds virtue and veers to worse than useless restraint or restriction.

It will be well if this chapter serves to warn especially against the Wallingford of reform because: he is either a fetich-struck visionary, or an ego-centric cheat.



VIII

“EXCESS PROPHETS”

We are beridden by excess prophets.

Wash

ington Star.

Nature builds some men bigger than any office or title. Theodore Roosevelt was such a man, whose wont it was to coin cutting saws such as, “The shots that hit are the shots that count.”

Taken for what it was meant to convey, that epigram needs no champion; yet the implied negative of it may or may not hold water. That will depend upon the ratio of hits to misses.

Missed shots prolong conflict, multiply fatalities, and pile up huge waste of the materials of war. Hence, largely, the staggering toll taken by the World War in priceless young manhood, and of the going resources of the nations engaged.

It goes without saying that a fighting force must be an expert force in the care and use of the tools it employs; but that is of the primary exactions. The master key to victory, alike in business and battle, is moulded of leadership; leadership that envisages the tactical machine made up of units of balanced efficiency.

The American military system essentially does and must presuppose the squad leader to be as efficient in his domain, as is the commanding general in his. Indeed, an American army made up of prime privates, and the more petty leaders, might pound through, in a pinch, even though faultily disposed betimes by the bestarred and besilvered; whereas, under the reverse circumstance, it would almost certainly suffer defeat at the hands of an evenly-schooled foe.

But a properly trained, led, and served army would not necessarily close a given case. Assume such an army at points on the field with an inferior enemy, and the hazard might still be settled by swivel-chair soldiers, as it very nearly was in the War of the Rebellion; also very nearly was by round-table strategists who insisted that Foch should keep his general reserves massed where he knew he could not use them to advantage, as he had planned, to pummel the German divisions, piled up in a close pocket, where they were glaringly open to raking flank fire.

Fortunately, that issue was settled by the purblind German General Staff, which was so obsessed by the idea of the spectacular capture of Paris, that it could not see Amiens; Amiens, seen at the time by all of the Allied leaders as plainly the objective of the German grand plan of attack. Whether or no Hindenburg now lashes himself thereof in order to spare his former imperial masters, false leadership defeated Germany; and it came right close to spoiling the battle broth for the Allies.

So much of seeming diversion is employed to set off the fact that social and prison progress has been held up in America, particularly during the last three decades, by “false leadership.”

For example, consider this master stroke, framed by a much-quoted minister of the gospel: “*Possibly something* is to be granted to *punishment* as a *deterrent*. No doubt *some* people are to *some* extent restrained from wrong doing by *fear of punishment*.”

The person who penned those lines—underscoring of which is ours—knew that had religious creeds relied solely for their carrying power on strictly voluntary service for God from the heart of man, they had limped to an early demise.

Had the writer marked it that not even “fear of punishment” condign by the Almighty “restrains” by-choice criminals from “wrong doing,” he would have made the best case possible against punishment as a “deterrent”; yet only the best case possible, since the efficiency of deterrence is to be judged by its effect upon the normal mass, and not upon the abnormal few.

In such instance, the qualifying word points the difference as between the mere “tough” brawler, “restrained” from going the limit, and the ruthless

blood-spiller whom fear of punishment eternal does not feaze. Monstrosities occur in all forms of animal life. When the monstrous human strikes, he must be struck accordingly.

Moreover, before we reach final conclusions, we must know the order and ordering of our deterrence; must know it up through the gamut of the apprehension, the conviction, and the sentence of lawbreakers, and then through the gamut of their prison activities.

False procedure as to any one of the four processes named will invalidate any general statement of negation concerning the efficiency of punishment for crime. Procedure in America has been false in every named particular. Therefore, the actual effect of just and necessary legal punishment for crime cannot have been declared.

Much of crude guesswork has been exploited by single-seeing fetichists of one or another kidney; but cardinal facts have remained hidden from such, for the very good reason that to uncover those facts requires hard digging strangest to their striving.

When we shall have caught our thieves as surely as Canada catches hers; then fitted the punishment to the offense; then fitted the institution to the offender, and the offender to the institution, will be time enough to place stricture on punishment values.

At a time when, and in a country where, the murderous footpad knows the chances are three to one against his being brought to trial; ten to one against his sentence to life imprisonment; eighty to one that he will not suffer the death penalty; and that the all-around odds are nearly prohibitive as against the practical application, both in and out of prison, of the least elastic predicates of penal codes: it is sheer gratuitous dilettantism to allege that punishment of crime in America doesn't punish.

How can legal punishment punish, if only about five shots in the hundred of it hit so as to hurt?

Here, again, "The shots that (miss) are the shots that count"; and that would still be true if criminals were favored only by so much as the gambler's throw; in fact, they would continue to jump at an even chance to outmaneuver agents of the law. Why not?

Exhibit No. 2, offered by a highly-paid correspondent of a Chicago newspaper, is fully as informing as are our “minister’s” conclusions: “There never was a time when theft was considered proper.”

From 323 to 354 B.C., Spartan youth were most carefully schooled by State agents in promiscuous sneak-thievery. Petty thieving by the lads of Greece was then considered a necessary accomplishment. More than that, the boy who came back empty-handed from a foraging expedition, was brutally punished, even unto death.

With germane facts of comparatively recent history in mind, the “correspondent” probably wouldn’t have been guilty of assertion so grossly incorrect; yet the fact remains that loosest of declaration has for long years been employed by a certain class of writers, in furtherance of impish itch for cheap, if ephemeral prominence.

Furthermore, for a State directly to put limited stamps of approval on its young thieves, as did the agents of Lycurgus, would be but one of many ways by which to establish them; in very truth, the indirect method of doing so is hands over the most pernicious and far-reaching method.

The most expeditious anti-social job of the latter kind is done as it is being done the country over in the United States; which is to say: maim the criminal law until it goes on crutches, and at the same time order prison régimes to square with the instinctive reactions of lawbreakers. That is to play both ends against the public security; and that is precisely the condition with which the American people are confronted.

To tale off a summary of associated influences would crowd a bulking volume. Also, it would yield what mostly wasted effort yields, since Americans have been fully cognizant of the constantly widening cracks in the national structure, as well as of the manner in which those openings have been effected.

He knows that neither added nor rescinded statutes can eliminate bad lines of blood, established mainly by an immigration policy framed and executed as if to establish those lines of blood. Hundreds of thousands of those of the “lines” are daily plying disruptive wares; wares which they will continue to ply, more or less, unto at least the fifth generation ahead. A country cannot

sit up of a sudden and determine to serve overnight antidote for the slow poison of its people.

He knows class legislation is deadly to democracy; yet he sits supinely tight while organized labor successfully clubs with votes for special privileges, successively the more indefensible.

He knows the avaricious brute is at the bottom of all of war, and he knows blood-letting within such as the sixteen-foot prize ring is the cruelest of war in miniature. Nevertheless, he piles his own dollars on the pyramid of dollars pulled down annually by the pug-ugly fraternity, the while winking the nether eye as his own kiddies are imbued, through suggestion and example, with the spirit of the fistic parasite.

Nor must women be denied her meed of praise. She, too, is getting the punching habit of mind. Hundreds of the bejeweled of her wait breathlessly at the ringside for the benignant "K. O." Her voice, raised for the making a national pet of the parasitic pug, is recorded: "I am not *especially* fond of seeing the blood flow; but I just *dote* on 'draws.'"

When the *femme de ring* shall have wormed herself a bit further into the mysteries of the roped arena, she will be bally-well fed up with "draws," the majority of which are "crooked" in order to coin "easy money." Also, she will likely transmit to her brood the instinct to shunt productive work and tear things.

He knows fattened money-hogs shoulder to bar the way to the money-trough, where they pile fat on fat.

He knows of the cheap flings of the charlatan; of the ruthlessly lawless reach of the radical labor leader; of the rotten bases from which the bebadged are frequently forced to work; of the political chicanery by which the sting is drawn on the one hand from the edicts of upright judges: and on the other hand—if much less frequently yet frequently enough—written into the edicts of legal agents whom the ermine but drapes.

He knows all, and more, and sundry; yet he will not so much as step to the primary and register his vote against the nefarious combination.

Shall the load be fastened to his back, he will have none but himself to blame. Hundreds of voices have for long years dinged into his ears the danger ahead.

For threatened retrogression none are more responsible than those who have known better, but who, willy-nilly for a price, have shunted public thought from facing actual conditions, to an abiding faith in the reverse of all of human experience. Hence the drifting with the flood tide of those conditions; and hence the miserable mix of the moment.

Take just one more gem, illustrative of the kind of self-contradictory stuff which the public has purblindly swallowed. It is out of the scrambled brain of one who assumes to see reformatively from “the hill of vision.”

(1) Pro: “If other men, living under the same conditions, succeed in maintaining their integrity, what excuse can the criminal claim for his failure to do the same?”

(2) Con: “In conclusion, the criminal is a man whose faculties are not well balanced. ‘Just as the twig is bent, the tree’s inclined.’”

Broadly speaking, the “conclusion” is correct; but observe that it fights the companion question, tooth and nail. First off, the average man does not carry the handicap of congenital predisposition to thieve, as do most of instinctive thieves. As a “twig,” he was not “bent” and “inclined” that way. Secondly, “other men” had not “lived under the same conditions”; so the positive case is at once cleared of the cardinal hypothesis. And thirdly, since the criminal of the class indicated “is a man whose faculties are not well balanced”; and since “Just as the twig is bent the tree’s inclined,” he has at least two-fold limited excuse for his oblique thoughts and deeds, likewise claim upon our commiseration.

Examples of the kind given could be multiplied indefinitely; indeed, it is the exception to come upon socio-criminological writing that will stand up, even under large-lens analysis.

Thoughtless plungers, with their half-baked opinions, we have a’plenty; idiosyncracies are, of course, irrepressible, since like the true criminal, “their faculties are not well balanced”; the self-seeking advertiser never misses a throw no matter how cheap; purse-packing politicians play the

penological game for the “rake off”; hectic emotionalists berate those who do not see with eyes blind to the wide-open machinations of criminal malingerers; kindergarten panaceas are seriously advanced as means by which to stop death-dealing bandits; and a dash of the seasoning of the conglomerate mess is done by every dilettante who has worried through the like of Freud’s “dream” stuff.

It wouldn’t occur to a bookkeeper that he could remove his coat and weld a better joint than can a blacksmith; nor to a lawyer that he could lay brick to line with a journeyman mason; but any man or woman who has fondled a fetich of reform, backed by the most casual knowledge of, and contact with criminals, has been cock sure of call to draw plans and specifications for seasoned criminologists to follow.

Therefore the game of penology has attracted and held very few big men, who have refused a vocation in which one must constantly adjust, then readjust, to the dissonant tinkling of little bells, rung by individuals who cannot be brought to listen for the fundamental tones of reform. And therefore puerile, patch-quilt prison methods, with rivalry between single-seeing cults as to which could place the greatest emphasis on bizarre banalities.

“All of true force is silent.” If you know baseball to its vitals, sit in the grand stand and test out that truism; observe there how the mouthy “fan” will miscall the turn, both on the player and the play. Observe, also, how the real student of the game is too busy following the finesse of the general play around the whole circuit, to be led into a Dervish dance over outstanding features. And observe that while “stars” may “twinkle,” it is the evenly-balanced team, and team work that nails the pennant to the staff.

Team work! Support of every man by every other man engaged in a given work! That would be made as if to the hands of social and prison reform; but it wouldn’t enable the “twinkler” to worm himself under caption type. True, self-praise is seldom written into the final record; albeit he who cunningly employs the kin of it can appreciably hold up his betters, and the big work they take earnestly.

Contrary to the general understanding, prison reform stands at inches below the mark set for it decades ago by fitted and far-seeing men. It could not

have been otherwise under grossly overdone probation and suspensions, made binding by most ill-considered sentences to institutions wherein industrial and auxiliary averages have been cut to the pattern of habitual felons.

The remedies? Enumeration of them would fill another big book. A few, basic ones, are struck off by the writer in his Stop Thief! Agreeably with the specific lines of this chapter, the public can make a prime start at actually speeding up social and prison reform, through searching out self-alleged social seers for what they actually know about the game they essay to umpire; as well as how they came by knowledge sufficient to do it.

The cumulative effect of little pills of social effort can help clarify the reform atmosphere; but when it does the pellets are charged with the dynamic alternative of divine law.

“Excess Prophets!” Pseudo protagonists! Aye! And spot the man, no matter what his station or calling, who lends influence of kind whatsoever to fasten the minds of lads and lassies on “sporting” non-producers.

Essentially, bear down hard on him who would knight the wont-work principal of that lowest-down abomination called “the prize ring”; else history will have it America went out of her way to flout a gentle Jesus, and thereby to dig her own thug-planned grave.

Hyperbolic rot? You don’t believe it? Then think on it that while millions of men, willing to work, can’t get work, the gate receipts of the brutal affair about to be pulled off, as between Dempsey and Carpentier, will aggregate close to sixteen-hundred-thousand dollars; and that a cool half million of that sum will go to the principal “pugs,”—say nothing of the aftermath in such as moving picture rights, and vaudeville stunts to drive the devilish business home.

IX

CRIME AND THE LAY CRITIC

“Boast not of happiness until you reach the last day of your life,” Croesus admonished Solon, the code builder of ancient Athens.

“For the condemned I entertain but little blame, and for the good but scant praise,” echoes a lady, who would direct us from the hill of vision how to reform, rather than punish criminals.

Casual comparison discloses little of kin between the admonition and declaration quoted; yet they shoot from the same trunk, if not from the same branch. Both flout well-being and doing. Put into practice, either would make of life a juiceless grind.

The lady further affirms that “One of our chiefest duties is to rehabilitate the criminal into respect for himself.” The platitude would carry more of weight, were it unqualified. Moreover, her declaration fights her assertion, since a man’s “respect for himself” presupposes just pride in a robust manhood.

Condone vice and discount virtue, and you lock arms with the habitual criminal. He does exactly that. Denying sufficient of moral motive for honest endeavor, he moves over lines of least resistance to that which he craves. Doing it, he will twist such as the lady’s startling epitome of the moral code to square with his oblique selections.

And the good lady would not “greet” prisoners with, “Ye who enter here, leave all hope behind,” but put them to “tending plants,” and thus solve a vexing problem.

As a first essential, reformatory prisoners are “greeted” with plenty of soap and water. Their free-life garments are sterilized or burned. The house physician then passes on their physical condition. In clean skin and garb, they are now ready for biographical examination by the Superintendent, by

whom they are given a straightforward talk concerning the aims of the reformatory. In much the same manner, they pass through the hands of the heads of departments. They are then ready for trade, scholastic, military and gymnastic instruction.

Religious services for all denominations are held. Classes in ethics, nature studies and history are heard. Amusements and lectures are frequent and varied. The personal equation is strongly marked. One would need employ reams of paper to specify the advantages afforded prisoners in a modern reformatory. It is sufficient to place that named against trite verbiage, such as "leave all hope behind," and it is only fair to add that when reformatory offices are rendered abortive, they usually are because of the purblind meddling of kindergarten criminologists.

For the submerged fraction who are held in prisons of last resort, every humane thing should be done, even though they had refused the good offices of society, both in and out of prison; yet must we face the portentous truth that an appreciable percentage of habitual criminals so confined, are those who had sounded the full gamut of institutional life. Reformatories always confine a positive number of graduates of juvenile schools of reform, and thousands of ex-reformatory lads go marching on to convict prisons.

Why? For one, cardinal reason, because those who have guided public opinion in matters criminological, cannot be made to understand that life is a most serious business for these young men. The majority of them are loaded down with natural or acquired handicaps, not the least serious of which is dislike of, and opposition to, consecutive, concentrated endeavor. Hence, such lads need above all else to be subjected to mental, moral and physical education and training, most carefully prescribed and prosecuted. This, to the end that they may build to sound minds in sound bodies, and have it borne in upon them that "Work is worship."

Instead, the pressure of many, who merely putter, has been for surface pursuits for prisoners; for activities which have the least to do with reformation. Result: thousands upon thousands of such young men have been paroled, again paroled, and once more paroled, from correctional institutions, unskilled as to a legitimate trade or occupation, with the half-

opened minds of the thief or thug, with hearts drawn to contempt for the social scheme in part responsible for their plight, and for correctional training which left them to fight against prohibitive odds.

Clean and uplifting recreative exercises for repeating felons should be regulated to meet the requirements of necessary mental and physical relaxation. Such exercises should not, other than on State or holiday occasions, interfere with the regular daily schedule of the reformatory régime. That is, and must be, relatively drastic. The social exactions upon instinctive recidivists leave no choice in the matter. They must be broken to both the halter and the harness of the free life working day.

As to occasional, unskilled felons, committed under the indeterminate sentence and its average short detention period, nothing less than concentration of thought and energy on their part can spell social rehabilitation for them. In free life, it takes a young man from five to seven years to become a journeyman mechanic. About ninety of the hundred of reformatory inmates are mechanically unprepared when received. They are detained less than fifteen months on the average. Consider such circumstances and say how many “plants” they should “tend” during the daylight of their prison day? In many cases their families require support, and they the hand-tool or other skill with which to support them. Without the skill, they are reduced at best to skin games; and that’s the crux of the crime question.

An effusive member of the sterner sex, with quill-swagger of the criminological dilettante, cheapens the pages of a popular periodical with the following: “What brutes were these (prison) guards on whose good will the parole of many prisoners depended; but what could one expect of those willing to accept positions that degraded their incumbents below the convicts over which they lorded it.” Here, you have the Hugoistic echo, to the effect that the mere badge of authority postulates degradation. Monstrous libel!

With impartial and lavish hand, the gentleman further tosses these bon-bons to “members of the board of managers for prisons”: “And who were these men who sat in deliberation over the destinies of thousands? Were they trained criminologists skilled to decide questions of crime and punishment?

Had they the capacity, the knowledge, and the experience that would fit them to perform so nice a task, or were they mere politicians, blown into high places by the winds of favoritism?" And here, you have scrambled thinking again. How "train criminologists," other than through their intimate contact with criminals?

Bombastic mode of attack with embellishment of incident might be pardoned, were it employed to condemn the manner in which corrigible lads are railroaded—at the instigation of lay reformers—(?) through juvenile institutions and reformatories to State prisons, and there suggested into the habitual class of offenders against the public law. But such language as that quoted in the preceding paragraphs grossly amplifies untruth not only: it is incendiary as well.

Crass sensationalists, mawkish sentimentalists, and misguided philanthropists to the contrary notwithstanding, there have been, there are, and, if we do not mend our penological ways, there will be increasing thousands of criminals by-choice operating in the States, to whom such utterly reckless and false statements furnish the last formula for their depraved and dangerous instincts. The periodical to which we allude is on the library list of many of our reform institutions. Rather than feaze those who seek either to amuse themselves, or to blaze forth as bellwethers, or to line their purses, or to utter easily recognized counterfeit coin of Bolshevistic coinage at the game of penology, we assume they will construe it a right rich joke to learn that extracts such as those quoted are frequently, if surreptitiously, struck off on institutional presses, and spread broadcast into the hands of prisoners.

Self-expression from conviction matures the man and makes the nation; but the pose of protagonist imposes grave responsibility. He who assumes it in writing for the public eye, on a subject vital to the security of the commonwealth, owes it to himself and to his readers to employ whatsoever he elects to be the weight of his influence against contact of extremes; to write well within knowledge, observation and experience studiously gained, and not at all scandalously. Those who write and speak otherwise, are in the way of, rather than pointing the way to, the reformation of the criminal. Quasi-billingsgate is quite reliably the chosen weapon of the cheap charlatan.

“Trained criminologists,” to whom our voluble friend so confidently refers, make few general statements regarding the genesis, etiology, and successive stages of crime; but they are one in the conclusion that it is first of all a most complex social-science study, not conclusively reducible to a given number and kind of prime factors. Notwithstanding, gentlemen peck diligently at “poverty” for the root of crime. Were it so, “The Jukes,” the most prolific genealogical tree of pauperism of which we have record, would hardly have pushed thirty per cent of its branches up through poverty not only, but as well through the effluvia of licentiousness, alcoholism, and crime, to the sunlight of wholesome growth.

It is yet true that craving want betimes aggravates the causes of crime, albeit it does not commonly initiate criminal action. From both the objective and subjective points of view, it is in a larger, deeper, and more wide-spread sense true, that the urge and surge for things for which no man has need, impel to felonious conduct.

Next to bad blood—which cries for expression out of the graveyards of remote generations—the carrying power of false suggestion and example is perhaps the most potent force in unmaking men. The criminal readily educes that if a “captain of industry” may at one and the same time pick the nation’s pocket and effect the garb of a lowly Jesus, the habitual thief may “tell his beads” and thereby discharge his moral obligations to society.

In character, a country is as good as its supposedly best, and bad as its worst citizens, the influence of the former of whom, when employed to misdirect wealth and mislead authority, is the most pernicious menace to national character and longevity.

From the standpoint of essential values, therefore, the felon finds it more and more puzzling to parse virtue. He observes that mainly from the ranks of the cultured and wealthy are recruited our greatest and meanest offenders; offenders all of the time against moral law, and as much of the time as they dare against legal law, a distinction which, our man insists, begs the fundamental questions of right and altruism. He is told that a filched dollar remains a filched dollar still, alike when attempt is made to make it represent one or another form of brotherly love, and when employed to garner more filched dollars. He passes no sleepless nights over

the ethics of the question, but does construe it a resentable mystery that he should go to prison, and his prototype on to social prominence.

Philip of Spain was a bit over-zealous “for the glory of his Lord and master.” It was lame statecraft and lamest Christianity which visited unspeakable torture on loyal subjects. But that were humane, compared with methods by which the bulk of a great people are condemned to grubbing, colorless lives. Kill a man’s chance to express himself as nature intended and constantly demands of him, and as for fullness of living he is half dead. He is also in the mood to dare the abyss.

It is well to emulate those who stride over obstacles to wholesome success; yet, in justice to the horde with whom it is a constant grind to tip the balance of mental reach and physical stamina with the average of their fellowmen, let it be plainly understood that they who win distinction, do it while drawing on God-given gifts.

There is no such thing as real greatness, or actual criminousness, by accident. The instinctive thief thieves through the operation of laws as fixed as those which determine the tides; laws, expressed also in weight of influence which impels the morally oblique to yield blessings of birthright for sin-stained money.

Much of contention to the contrary notwithstanding, few criminals commit crime because of lack of ability or opportunity to make an honest living; but first and foremost out of poverty of character which induces anti-social processes of reasoning. The latter is superinduced by observation and contemplation of the fact, that billions of “easy money” flow into the bunkers of those who least respect law, either human or divine. The aim of the criminal by-choice, is to make “easy money.”

Of such are the teeth of the master-key to multitudinous doors leading to common and uncommon rascality. They also unlock to thoroughfares over which endless columns of human parasites wend their way. Hereditary pressure and criminal atmosphere aside, they are the chiefest of crime-breeding motives, not comparable with that which we ordinarily sense as poverty, which, during the plastic years, may well operate as a blessing, rather than as a curse.

And let it further sink in that the meanest and most dangerous of quasi-parasites is he who pyramids consecutively on that which he mulcts from the common purse.

Beyond all men, penologists welcome light on the predal puzzle; also, they evaluate accurately—though the public does not always as yet—the smudge from the farthing candles of self-seeking academicians. And that is to ignore the perjured meanderings of press agents who peddle spurious wares for a price. Of the latter, ex-prisoners cunningly thereby take a whack at law and order while they “cop the coin.” Moreover, lay “uplifters” encourage the criminal cunning.

It is bad enough when those who ought to know the fallacy and sin of it, attempt to substitute false procedure, loose methods, and maudlin sentiment for the vigorous and synthetic, if kindly education and training which alone can make good and self-supporting lads of lads who instinctively stumble. It is not far from dastardly when censure for the disappointing results which follow, is heaped on the shoulders of those who make creditable use of tools quantitatively and qualitatively so meagre, that the States must needs wax ashamed of them.

We give serious attention to the trite, wholly injudicious, and grossly false allegations against “prison guards” and their superiors in rank, because it is past time to attach advalorem tags to ever-recurring, petty consideration of a grave problem; a problem so profound, that those who give to it the most consecrated research are surest to put on the mantle of charity and the modest mien; and a problem with which Americans supinely drift, content to leave prescriptions for remedial measures to those who could not box their criminological compasses under either a theoretical or practical showdown.

In about the same ratio, prison guards and college graduates fail to make broad use of their institutional training. Neither, so derelict, draw inspiration for work to the true perspective of service. The one will see in education but books, and the other in the prisoner but deviltry. Nevertheless, at college is the place to study books, and in prison the place to study the prisoner. There is but one way by which one can come actually to know the criminal, and that is to live and work with him.

We rightly accord praise to those who point the defective equipment of certain so-called “types” of criminals. By the same token, let us dig up better than sneers for those who remodel faulty human clay and shape it into something like the true image of man.

Those noisiest and most illogical find naught in the criminal to challenge other than means of reformation which would ordinarily correct the pranks of a headstrong youth. So, in free life, we induct the occasional criminal, and in institutional life encourage him to lock arms with the habitual criminal; for, once started on the toboggan of crime, the former usually gravitates to the level of the lowest of his class.

Of all ills, in or out of prison, with which our people are afflicted, that of false clemency with coddling is the most pronounced and far-reaching. So, natural laws will have it; and so, therefore, the after-parole record attests.

While the personal equation in prison management should never be negatively considered, the reformation of the criminal still resides at his finger tips. That, in the final analysis, whether or no our man likes “Steve” of the institutional staff; approves or disapproves of any part of the house régime; tells the truth about all following his release, or tells out-of-whole-cloth, stock-in-trade lies, with which the habitual criminal is ever ready to assail the ears of the super-emotional.

The last and only reliable test of the efficiency of a régime of reform reduces to the question of recidivation; which is to say: what percentage of the grand total of the paroled lapse into crime following parole, are caught at it, and are reincarcerated, either under the original or new indictment? As a matter of fact, we have not and cannot have informing data concerning the above, vital point, until we shall have established an international bureau of anthropometry, as well as regulations pertaining to the indeterminate sentence which shall insure reasonable supervision over, and control of, the paroled felon. Then, even, regiments of habitual repeaters will not be “caught at it.” And then, those will “report” as from a prayer meeting, who had just cracked a safe.

The criminal in America is peculiarly a menace to society because of that which we do not know and do not find out about him. Such data as we have stands a serious blemish on the penological escutcheon of the nation, and

makes comparison with the best pre-war results of other nations as unsatisfactory as humiliating.

Foreign penologists say to us: “Especially, you make our corrective systems read well, and we must allow that they look the real thing; but we find it difficult to reconcile the efficiency you claim, with the number of recidivists you admit. *Please*: why so many criminal rounders in and out of your prison houses?” Why, indeed, and it is a question a patient people cannot shunt much longer.

Nothing is so expensive to the State as the criminal, concerning the future of whom in America, this is binding: the moment society at large concerns itself seriously with individual practice of the “Golden Rule,” and incidentally about alleged prison malpractice, that moment we shall begin to get criminals in leash, and not before.

In the meantime, if some would not, as they do, through loosely written and spoken construction of vice, virtue and authority, place a premium on anti-social expression, they would probably render the best aid of which they are capable to the singularly complex work of reform. Calling false turns is simply to give the criminal more rope. Playing up to the criminal, and down the public security, is to make bald bid for social chaos.

“At least,” said Hippocrates, “Father of Medicine,” to his students, “be sure that you do no harm.” So much should be demanded of Pharisaic punters with a penchant for scurrilous scribbling.

X

PRISON DISCIPLINE

Not one in ten thousand digs to the deep meaning of the word “discipline.”

Particularly as to prison application, discipline is in the minds of the great majority as measures objectively imposed to compel subjective adjustment to house rules and regulations laid down.

Such contracted view covers only so much of primary compulsion as may be necessary to imbue refractory criminals with at least fearsome respect for correctional measures. Thereafter, the aim should be to enlist the prisoner’s voluntary efforts for skill and culture under his own control.

Few prisoners challenge the mailed fist of the State. Save for some of those confined in prisons of last resort, the bulk of prisoners buckle to, from one or another motive, and make the best of a bad job to an early parole.

They do not mean to take their cue from the seething fraction that always constitutes the nucleus of real criminals in America. As a rule, the latter have first off to be force-fed to a degree in order to bring home to them the potency of the State’s power.

If discipline visited upon such men is to carry for their amendment and repair, it must take heed of natural and acquired predispositions to think and act obliquely.

True, there come times when the persistently refractory course of the unit leaves him beyond the pale of disciplinary choice. Where, in the face of every good influence and helping hand, a prisoner goes about it advisedly to stir up group manifestations against reformatory processes, there is nothing for it but to meet him with power beyond his own. Moreover, when he insists upon contact of extremes, no apology should be offered in the process of forcing him to respect for that power. And moreover, it is tentatively insignificant if the “respect” is engendered solely by fear of the

consequence. As an individual he persistently crosses the common good. As an individual he must be met, until he is brought to understand that hyenaized conduct, causeless except for his ego-centric curves, entitles him temporarily to no more consideration than is accorded the self-determining social pariah. This, because his interests as compared with the interests of the mass, are for the time being as naught.

The cardinal mistake in the matter of handling instinctive anti-social plungers, consists in not taking up disciplinary stitches with them in time, as for instance: every reformatory in the land confines an appreciable percentage of “graduates” of juvenile schools, in which, as “cute” kids, they were indulged day in and out in the execution of self-centered acts.

Common-sense disciplinary measures visited at once upon such lads, then followed up consecutively to the logical end, would have mended matters for the most of them; and by common sense we refer mainly to natural impositions and deprivations, with the right kind of individual effort for them strongly marked.

But no; they were rated as just unthinking boys who were blowing off surplus steam. There was no question about the blowing off of surplus steam, albeit they were not blowing it off unthinkingly. To the contrary, they were calculatingly transferring the ways and means of the thuggish gangster to reformatory domain, and scoring with it; scoring with it individually not only, but by “gang” expression in strongholds of the State’s social defense. Hence, incipient riot essential in mass manifestations that occur in certain juvenile schools of reform.

Just such lads are either rushed to parole, or the load is shifted to reformatories by transfer direct. Through turning back onto society lads who had run to institutional rope about as they chose to run, while they had been groomed to despise discipline and the State’s disciplinary agents, the same load is indirectly unloaded, not always inadvertently it would seem.

Heads of first-aid houses of correction have been blamable for the named procedures, only in so far as they must have yielded of conviction in order to prosecute banal measures prescribed by their superiors in rank of lay extraction; but be the facts thereof as they may, they have imposed first off upon reformatories the heaping chore of causing lads to put off forms of

expression to which they had become habituated while under the initial care of the State.

By the time reformatories get such ego-centric, instinctively anti-social, wretchedly brought-up lads, they are better than half-strapped to the toboggan of crime. Throughout the plastic and most impressionable of years, inclusive of time spent under State instruction, they had made pretty nearly their own pace, pretty close to the pace that kills. Of self-discipline they had learned next to nothing, and less of the law of consequence. Accustomed to having unearned donatives tossed them, and to force compromise with their obliquely-conceived and collectively-executed flings in primary institutions, they see no reason why they should be denied the one, or held up as to the other, in the first reformatories to which they are committed. What is more, the public, purblind when not indifferent to basic causes and motives for their continued criminous conduct, is naturally inclined to their view. Therefore periodicals pay for the spurious stuff of ex-prisoners, expressed with the gusto of injured innocence.

The average lay critic portrays a reformatory to the public as a place where magic wands of reformation can and should be wielded. No matter that a lad had been the terror of his ward; then had been practically established by a juvenile plant a rough-shod, "faking," shirking, undercutting young "roughneck": the reformatory must blow him to virtue as Nature blows the mushroom, else it is smugly pronounced passé by those who do not know and cannot know of the instinctive reactions of natural, crime-soaked young felons.

Furthermore, gentlemen responsible for utterly false procedure in juvenile reform schools, are the readiest to visit stricture upon reformatories, because they do not work reformatory miracles in jig time upon lads with whom the gentlemen themselves so miserably failed.

By the same token, the same gentlemen are inconsistent while grossly unfair, who lash prison officials because they do not reach reformatively those same lads, passed up to them, via themselves and reformatories.

"Just as the twig is bent the tree's inclined." The primal responsibility for such lads rests with society as a whole, beginning with the lamest and most loosely executed immigration laws ever framed by man, resulting in a big

brood of the big brood of anarchists and semi-anarchists, who have yet to do their worst; so much emphasized by execution of the general law so lax as to be ludicrous; the last clamped down by legislation designed to catch and hold the votes of militantly self-centered groups; and all made binding by so ordering the activities of corrective régimes, that they shall square with the instinctive reactions of predal felons.

As if all of that, with its endless chain of pernicious by-products, were not enough, we needs must nationalize, heroize, and put on pedestals the clan parasite for the youth of the land to emulate, featuring “get-rich-quick Wallingford” and pug-ugly-drone stripes.

At the present moment, millions of men and women in America acutely in need of work, can’t get it. Why? Fundamentally because billions of dollars have been shunted from legitimate channels of trade to sporting grooves, there to circulate mainly from pocket to pocket of parasites; and there to remain, most of them, relatively dead to industry.

A dollar turned over and over in legitimate business, and constantly growing as it goes, has quite somewhat the edge on the dollar passed to the gambling clerk, to the bookmaker, to other gamblers and their grand army of henchmen such as “fillers in” and race track “touts,” to prostitutes and prostitution of work and the worker: and then back in bulk to the gambler of one or another kidney, to be passed around a like circle.

That is to follow the pocket-to-pocket circulation of but one “sporting” dollar. The variations and combinations of route are legion, but the illustration points our point, which is that America is at pains to imbue the minds of her up-coming lads with false values, as for instance: gone sporting mad, she puts a kingly premium on the blood-spilling brute and parasite, and on his parasitic promoter, while she discounts the laudable aims and efforts of the actually deserving; she does, indubitably, through placing premiums where she does, the which fact no amount of sporting-monger sophistry can alter.

“Pug” Dempsey drew down \$300,000 at Jersey City for twelve minutes of cruel slugging. The average skilled artisan cannot earn one half of so much money in a life time. Get down on your knees and make that pleasing in the

sight of God if you can, while millions of His children literally waste away for lack of the bread of life.

Do nothing worse than grind out annually in the social mill thousands of sport-drugged lads, who would be and remain sporting drones in the social hive, and cure the case with a few reformatories and prisons! Impossible!

Order reformatory régimes so that their reformatory processes must yield in practice, suggestion and example, to the sporting schedule, and to inmates who stand accursed of outraged sport! Ridiculous!

Expect a spell of any kind of discipline to make up to men and lads, that of which they had been and are being cheated by grossly overdone sport! Futile!

True, it is, that prison discipline has basically to do with serviceable muscles; but serviceable muscles to be used to social and productive ends, and not to the ends of the sporting thief who dumps ill-gotten gain into palms dirtier than his own.

Another check imposed upon reformation of the kind of lads in question, resides in the State's "penny-wise-and-pound-foolish" policy of withholding money for working tools germane to the process of their reformation; essentially, for trade tools, and for appointments and materials to match the tools, inclusive of the very best of human material.

A skeletonized trade school can yield but skeletonized results: whereas, exactly the reverse is demanded for unskilled, untaught young felons, if they are to be given a fair chance to make good in free life. There, they take with them the serious handicap of the prison brand; and there, crime-free mechanics grudgingly yield them place and portion. Therefore they must be ready to market commanding skill and knowledge, else almost inevitably have recourse to the crook's outfit.

The "policy" of the State thereof is "penny-wise-and-pound-foolish," because it is much cheaper, in the end, to school a lad for social rehabilitation and have done with it, than it is to do it over and over again, and even then leave him less than half-baked industrially, as is commonly the case.

America holds the world's record for recidivistic criminals. She will continue to hold that record so long as she puts up with the play-house prison, call the house by what name you will, and place it in the prison chain as you may.

While thinking of the house, and of the work tax payers pay for it to do, ponder very carefully this deep-digging declaration by Ignatius Loyola, S. J.: "Let me instruct a lad up through his seventh year, and I don't care who instructs him after that."

Probably beyond that which Loyola meant to convey, America's elementary penological lesson is plainly written in his words; a lesson America should have learned by heart and heeded, decades ago. It is that she must, absolutely must, close her doors and keep them closed to natural breeders alike of criminals, and agitators against the public peace and security; then search out and deport such "natural breeders" who have sieved, willy-nilly, into the land.

Cures for habitual criminals seldom cure; correctional quackery, never. Also, when a lad shall have passed the "seventh year" by seven years, and from his first conscious thought had been given habitually to unlawful selection; and further, shall have come congenitally by predisposition for such selection, the merry-go-round correctional plant is the last place on earth wherein amelioration of his plight will be effected. Young as he is, he will elect and maneuver for a criminal career, unless he is consistently subjected to schooling stripped of suggestion of crooks and crookedness.

Plenty of play in the wide open an imprisoned lad must have. Attempt to fit a man's head to a lad's shoulders is indefensible error; but the play should be wholesome play purged of the "pug"; it should be fixed in his mind as relatively incidental to basic measures of reform, and it should not be allowed to cross those measures.

As for the rest, "For forms of government, let fools contest; that which is best administered is best," provided: the "form of government" runs true to the form demanded by the intrinsic social exactions upon a lad.

Contrariwise, attempt such as to make farmers out of young men whose urban life has been decided by every natural circumstance, is at once waste

of time, material and human potential, and to fly in the face of geographic destiny. City-bred felons will take on just so much of farming as compulsion compels, or the ulterior motive dictates, and not a stroke at it more. If you question the above assertion, ask any farmer who has tried out the ex-prisoner farmer who was city-bred.

Coming down to detail for correctional discipline, one must carefully guide one's pen. General statements thereof are unassailable only when they predicate the unchangeable; yet certain factors cannot be shaken from their shoes. Truth camouflaged is no less a lie. Dull the edge of honesty and it does not cut to the bone of equity. Make the manual processes pay tribute to by-play, and bald bid is made for the drone-sport. Compromise with chronic perpetrators of evil deeds done out of evil intent, through loading them with largesse, and they are furnished with the last formula for piling devilry on devilry. Construe a lad's conduct as of primal importance, while holding his reaction to educative activities to be of secondary import, and build beyond doubt to the faker and malingerer. Essay to form or reform character either with the "billy" and billingsgate, or with padding and coddling, and the result will reflect the asinine tools employed. Imbue lads with the belief that their reformation is an overnight joke, and they will make night hideous, as well as most of days—for good measure.

Beyond all, lead erring youths to believe themselves immune to religiously prosecuted discipline fitted to the individual case, just because they are youths, and their huzzahs as one for you will not shrive you of your share of responsibility for their continued criminousness.

It is easy to scold, hard alike to salve and save; but the salving and saving must be done. The scolding has been coming to some for a long, long time; particularly to self-nominated lay reformers, and "uplifters," who mostly reform and uplift after the fashion the frog jumped out of the slime-coated well, which is to say: farther down to slime at every attempted leap to light.

While that is a pity, out of the efforts of many who keenly engage to help, it is also seriously reprehensible; for, he who affects the role of protagonist concerning the most complex problem given man to solve, owes it to society to know intimately the order of the criminal's going; else he will

find himself hopelessly enmeshed in a labyrinth of motive and counter motive.

It is also easy to write disciplinary “don’ts,” and betimes most difficult to execute them. Just the same, don’t curse; don’t threaten, bluff or be bluffed; don’t lose your temper; don’t make promises unless you can fulfill them to the letter; don’t construe as directed against you personally, acts that are aimed at bigger game; don’t fraternize with prisoners to the gutter level; don’t heap discipline of any kind on a lad, until he needs must conclude that you are “down on him,” and are “giving him the worst of it”; don’t wobble; don’t shriek; don’t resort unduly to petty impositions for petty offenses; don’t utter false coin of suggestion and example; don’t commonize discipline of character whatsoever, else it will lose its carrying power; don’t reach lightly for tags of stigma: they depress and discourage; don’t despise hints dropped to you by lads who are hoping for better things, and who may lead you to the correct psychology of the individual case, and of the mass; and don’t assume that you know it all about crime and criminals: no man does, nor can, give him a life time to do it.

Do seek to know yourself, your man, and so much of a great-big work as it is possible for you to know. Doing it, realize yours will be just one opinion about it all. Scores of others have written that which you must absorb in saving degree, if you are to get a grip on what makes and keeps men criminal.

In short, be actually a compassionate criminologist with an open mind, and not a misinformed, or half-informed, or uninformed ego-centric, single-track dilettante, who drives ruthlessly along rock-strewn roads, over which life students of budding and budded felons soon enough learn that they must pick warily their way all of the way.

But, warning! Listen to the “personal equation” cult, and many of the conclusions given off in this chapter by the writer postulate him a fit subject for the psycho-analyst. According to that wrecking crew, nothing clings to the habitual young felon that can’t be cast off with such as baseball, and a bit of “laying on of hands”—by the “crew,” of course.

The “hands” have been patting and puttering persistently during the past three decades. Result? The mounting American Apaché has not so much

respect for law and agents of the law, as eagle for sparrow. He rides gun-hung, kills for the mere blood-lust of killing, lies “until the cows come home,” and laughs up his sleeve betimes over the use he makes and use made of “research” of him.

Caught and corralled—against which the chances are about ten to one—he nestles down in many a State nest, where he practically dictates in a boiled shirt, and “does” what he sneeringly terms, “sleepin’ time.” This, spite of the written effusions of ex-criminals, who rush to print with grossly overdrawn statement—for a consideration.

Writing and speaking about the class of criminals in question, gentlemen affect the esoteric. They have it, for instance, that the offenders are mostly “morons,” hopelessly ox-like mentally by nature’s fling in embryo, or the victims of arrested mental development. Therefore, gentlemen are moved to hurl anathema at those who dare the assertion that appreciable irresponsibility applies only to “morons” who had not measured up to average intelligence at any form of human activity, do not do so, and probably cannot do so.

Apparently, it does not occur to our friends that the mind that functions alertly along any one line, can be developed to function alertly along many lines. In any case, the question of the subject’s voluntary efforts will be uppermost; yet that question may be quite foreign to his intrinsic mental content. If he chooses to be a mighty clever thief, just as another chooses to be a mighty clever mechanic, and pursues single-mindedly his choice, he won’t know any more about mechanics than the mechanic knows about thievery; but if he becomes a mighty clever thief, he will have used brains sufficient for any ordinary accomplishment. That he had side-tracked honest for crooked skill agreeably with the weight of influences exerted upon him, relates usually to his moral obliquity, and not to his meagre mentality.

Specific mental efforts held in “arrest” by him who spurns the fruition of such efforts, by no manner of means classifies him a “moron” in the sense that he is commonly classified a moron. His choice of mental activity is oblique, but his execution under the choice stamps him as anything but a mental dud. He is usually a moral mongrel from mixed causes, and must be prescribed for as such.

Were any but the lowest grade of predal felons—bungling imitators they—fit subjects for kindergarten treatment, they were not able to master the most massive time-locked safe locksmiths can contrive; nor could they “get away” with about ninety per cent of their loot; nor hold peace officers in contempt, and the combined sleuths of the land pretty much at bay; nor press so cunningly, individually and collectively, for ill-timed and placed prison perquisites, and for comparative freedom of choice in the matter of their response to actual reformatory measures; nor cast crooked lines and haul in the bebadged; nor enlist the “pull” and “protection” of higher-up grafters and meanest of secondary thieves; nor so mix high-soaring mixers of prison broth that they don’t know which way to turn for ingredients, and do turn over the seasoning thereof to habitual criminal rounders; nor lead up to false cards, exposed all the way from prevention to parole, inclusive of gross stretching of probatory extensions.

Real prison discipline for such men means a sharp tacking of their minds away from criminal shoals. Aside from educative activities understood, such as trades and scholastic instruction closely and consecutively imparted, it means a taking up of their loose, anti-social slack, mental and physical; particularly and essentially, of their smug contention to the effect that society is an “easy mark” for all kinds of criminous flim-flam and bunco-steering.

Well, then, what are the corporal and semi-corporal disciplinary tools to be employed on the job? Any tool, this side of cruelty or brutality stripped of revenge, which will bring it home to habitual, by-choice marauders who do murder for diversion, that they cannot dance on the shoulders of the State.

What? Make prison life for such men dully automatic, comparatively, under an industrial drive? Precisely. Make life in prison onerous enough to them so that they will turn to honest toil, rather than endure it.

Reinstate the mechanism and the spirit of the “hell holes of Egypt”? Not at all; but reinstate respect for law and authority in the minds of such as death-dealing parasites; let them know, baldly, that “comin’ a shootin’” for hard-earned gelt, does not entitle them to browse, else buck in prison.

First of all, have done with the “Welfare League” fraud. Have done with the idea that instinctive, habitual felons, amenable both to the menace and

machinations of many other instinctive, habitual felons, whom they must sooner or later face in free life, can be trusted to preside over the destinies of a prison population. That throw is precarious, even for colleges, where, if those in the know are to be believed, it is touted as doing exactly that which it does not do.

At any rate, go to the subterranean, perversely sex-charged, murderous record for evidence on which to condemn the prison Welfare League; but doing it, insist upon examination of all of the books, of the submerged tenth of prisoners who are cheated by specious crooks, and of the entire after-parole record of the latter.

Then use the eyes of your mind, clamp down the lid on banal counterfeits of reformatory processes, break active agents who bungle with those counterfeits for a price, and you will help make secondary prisons what they should, nay, must be made, viz: industrial bee hives, wherein would-be social wolves go bang up against compelling contrast.

“Never again!” said an ex-prisoner, as an English turnkey “good-lucked” him into free air from one of England’s convict prisons. When American criminals so exclaim on being released from American prisons, we shall cease to have falsely-alleged “waves” of crime, and not before.

Rational prison discipline involves no less a chore than to change the point of view of men become habitually a law unto themselves. The view point will vary in accordance with the amount and kind of adverse influence unloaded upon the subject, inclusive of his congenital scars. There will be parallels that apply to nearly all, and sharply-defined tangents that mark the few. Comparative insensibility to pain, borne or inflicted, examples in the first instance. The oversexed, undersexed, and sexually perverted declare in the second case.

A prison population is never of one mind, nor of the same clay, save only for a common criminal camaraderie, ever alertly expressed to take advantage of those who think criminologically in single numbers.

Therefore, the man who rushes behind bars with a cock-sure cure-all for criminality, is at once to be pitied and shunned; and less than reformatively useless is the individual who does not understand that the particular reasons

for the manner in which a given criminal was grooved for crime, predicate the means by which he may best be weaned from crime.

In other words, while all must be held closely to catholic schooling, such as trades and occupational teaching, the emphasis belongs where Nature and unnatural acquirement place it.

Shall a grown lad have acquired a mania for the sporting life, say, and not so much as a smattering of vulgar knowledge, he should be held down on sports until he engages earnestly for knowledge; he should, because he cannot hope to get anywhere worth while and remain a crass dunce; he cannot, in conscience, out of his old-age exactions, however such as the baseball “fan” may howl to the contrary. God planned for man to be something bigger and better than an ignorant automaton at play; also, He demands deeper digging by man than that which reduces to mere making of dollars.

It is clearly up to correctional plants to raise their charges beyond the level of the “tin” sport. Even where exceptional sporting ability is shown, it should not be allowed to cross the making of the whole man. This, because when such as the cunning of his throwing arm fails a man, he must have recourse to commanding skill, and pleasures of the mind, else the sharp edge of the meaning of life will cut into his soul, while he drifts down stream a dependent derelict.

Service is the “meaning of life.” Service begins with self-discipline. Self-discipline presupposes rational arrangement of, and adjustment to, basic values. Therefore the essential purpose of the parent State should be to establish, or reestablish, basic values in minds either cheated of, or switched from, basic values.

The process may not be put up in a neat parcel of print. It includes all that must be put off, put on, amended and repaired. Nothing germane is so small as to be negligible. Nothing is too big to be attacked. Abnormalities, before all else, should receive the strictest of attention.

Essentially, the kindly, helpful, well-timed and placed word, is golden.

Irreproachable suggestion and example are of the very weave of the mosaic of character.

Unquestionable square dealing serves to file off the ragged edges of resentment, born of restricted liberty.

Patience of the kind the good God has with us all, is due His derailed children.

None but the measure naturally suited to the man and his offense, will carry.

False clemency is crime-breeding; yet, punishment that leaves only the smart of pain suffered, makes the soul of the recipient of it seethe against the man, or men, by whom it was applied.

The first duty of the disciplinarian is to make clear the necessity for, and the righteousness of, the condign measure.

Appeal to reason put in words that flow from the heart, is never totally lost.

Not all of compulsory discipline is negative, and not all of educative discipline can be made purely voluntary.

Pain is Nature's mentor and monitor. The moment man essays to eliminate all of pain, he miscues.

The long arm of discipline should reach at one and the same time for the serviceable tool, and for precept to keep the gaze of lads fixed on the stars: and so, keep the balance in their minds established as between the finite and the infinite.

Reams could be written as to what discipline should do and leave undone, agreeably here with individual exactions, and there with first regard for the protection of the mass.

It remains with the disciplinarian neither to cross values, nor to confound magnitudes. Doing that, he will, if he is wise, examine as closely as he may the sum of human experience; then rely on plumb plain horse sense.

As to psycho-analysis, the latest wonder worker: practically the same thing has been called by several names; but it has its positive uses in deeper diving for disturbing impulses, and in a more enlightened method of passing healing suggestion. Pressed to the exclusion of palpable exactions easily read and met, it can be rendered a nugatory nuisance.

For several decades, advanced criminologists have been delving very close to the manner in which psycho-analysts delve to-day; indeed, the difference in the mode of operating as between the two is not sufficient to demarcate them fundamentally. Both aim at change of habit of thought and action, primarily through removing obsessions from, and establishing actual values in, the mind; and secondarily, through so reordering the entire environment of the subject as to reinforce the primary process.

However, those who look for such as psychoanalysis to carry the burden of the quiring for reformation, are destined for disappointment. They are, for the very simple reason that an individual is, at a given moment, the sum of countless impressions, thousands of which were not sufficiently engraved on his memory to abide there; but which, to the last impression, pyramided upon either his good, or bad, or doubtful character. Therefore, mental research must be comparative, as is every thing else on earth; and therefore, the results accruing from mental research will be comparative results, as are all results on earth.

Just the same, one needs must dig deeply while aiming high; but above all else, tie to fully-known, practical quantities, and apply them so that they shall yield as nearly as possible, under the circumstance, to the height of their power.

In so far as mental research goes hand in hand in sequence with that dictum, it will bless. Whereas, if it is reduced by too strenuous devotees to the indignity of a fad, it will likely go the way of fads; for it is no “cure-all,” and is first aid to the befuddled mind.

XI

PSYCHOLOGY AND THE CRIMINAL

*“Worthy to be a rebel; for to that the
multiplying villainies of Nature do swarm
upon him.”*

Macbeth: Act 1: Scene 1.

Matter of the preceding chapters touches the mental crotchets of criminals with reference to given courses of conduct by given types of criminals.

Though to do so is always precarious, something approaching general statement must be employed to demarcate different grades of lawbreakers; yet attempt to classify criminals and keep them classified, must, in measure, go by the boards. Hence, for one reason, our caption reads, “Psychology and Criminal,” instead of “Psychology of the Criminal.”

There is no such thing as psychology of *the* criminal. There is psychology of *a* given criminal, under given circumstances, in a given environment, after a given bringing-up. The rest will issue with the preponderating weight of influence, comprehensive as relates to the activities in full from birth of a given subject, in addition to his congenital markings.

The school of crime differs from any other schooling, in that the order of procedure is usually retrogressive instead of progressive. Your dockrat sneak-thief dreams of the notable moment when he can ride gun-hung with broad-day bandits. The tyro at dealing crookedly from a “cold deck” practices assiduously for the day when he can “go South” and “mark” cards while they are in play with the best of them: the which means that he must take with him naught of the rough-hewn churl in speech and approach, since crass attack would cross the high-class “suckers” for whom he casts his lines.

Right here it is pat to interpolate a cardinal clue as to why so many cannot be brought to realization of the ominous menace of the criminal; and why criminals of all types “get away with it,” both without and within prison walls.

Baldly put, the clue is this: the average man is singed by the always base, sometime crooked desire to get something for nothing; to get something for nothing, albeit someone, or ones, must be robbed of the “something”; and that the something is turned over and over in grooves where men are carried to cumulative loss, then betrayed into selection of out-and-out criminal tools in attempt to make good the loss.

Thousands of dollars pass daily on sea-going craft and coast-to-coast trains, from the hands of dupes who would get something for nothing, into the hands of travelling card sharks. For long years, the pullman-car card crook has been more common than quackery cure-alls; yet he never lacks ready lay listeners primed to help mulct fellow passengers, and he never makes empty-handed exit at a way station.

That would-be reavers are reaved by professional cheats is as it should be. Also, it explains in degree why so many can be bamboozled into the belief that imprisoned felons can be dealt something-for-nothing cards, take them to a social scheme closely competitive, and there win with them in play against players whose necessary call it is to read at a glance the bungling efforts of the inexperienced.

The quotation under the caption of this writing is aimed against “merciless Macdonwald,” by a sergeant in Shakespeare’s Macbeth; Macdonwald who fawned upon King Duncan to his face, then turned on his heel and redoubled his efforts to destroy his liege lord.

The quotation leads the column because it typifies a prime factor of the psychology of the meanest of most destructive scoundrels America makes; meanest in intent, and most destructive because they combine a spurious cleverness at tale telling and writing, with an insidious, self-centered criminal cunning. Hence, their periodic effusions in print given over to concealment of the actual truth, or to biting hands that had fed them.

In the one instance, witness the ex-convict's tirade, ostensibly aimed at prison abuses, but actually a venomously lying attempt to hold up the enacting predicates of penal law—which he hates; and in the other instance, such as forged paper issued to the tune of thousands against men who had picked him from the gutter and put him on his feet.

Considering such common cases, bear in mind that but a modicum of them reach public print. Like serious injuries taken at football, only a small percentage are officially reported. For reasons personal to the gulled, they usually take their grilling and close the incident in silence—thereby motivating for aggravated treatment of the like of others of the tribe whose purses P. T. Barnum could always open with an impossible probability.

There are ex-prisoners, thousands of them, who put off the pursuit of crime the moment a matured judgment envisaged crime to them as at once degenerate, and, in the end, futile, in so far as winning happiness out of life is concerned; but such never engage at mud-slinging following upon their paroles from prison. Like all of their prison comrades, they had their ups and downs in confinement, since a prison is, or should be, a place advisedly planned to disabuse the minds of its charges of the sporting merry-go-round idea of existence for full-grown males. But since they were set to pull up and win out on their merits, rather than pull down and practically sneak out of prison, spite of demerits therein piled against them, they do not cross educative measures in prison, and they do not take from prison any bitter pills to peddle.

Much has been alleged by carping, ego-centric ex-felons, about prison “hell holes,” all but a sprinkling of which has been either absolutely spurious at base, or grossly magnified purposely in order to make it marketable news for print.

As a matter of fact, the worst prison régime in the United States will help a prisoner who seeks help, and the best won't reach querulous crooks obsessed with the idea of taking falls out of law and order. What is more, the great bulk of America's correctional plants do not run to overdone restrictions, but to underdone discipline, using the word “discipline” in the broad to embrace every educative process.

Commonwealths do not concur as to the scope of measures of reform to be employed in their houses of correction. Some fondle the last fad in overweening desire to make use of saving methods. Others fight shy of a too large contention, and tools edged in reverse of the sum of human experience. Too often the blessed medial line is obliterated in the impossible scramble for simple solution of a complex problem; but nowhere in America is to be found the seething prison sink of iniquity which the perjured pens of mercenary ex-prisoners paint. Furthermore, laymen who encourage libel by ex-lawbreakers, are blamably ignorant, or worse.

Faults there be, plenty of them, about equal as between the positive and negative; faults for which ex-prisoners of the Macdonwald stripe are primarily responsible in very appreciable degree—were all of basic truth fully brought out.

At any rate, beware the ex-prisoner who shifts, and whines, and whets his knife for the jugular of authority. He will wax Hugoistically hectic over the devilish damnation of “screws,” otherwise named guards; but he won’t tell that he had been a faking, malingering, captious trouble-breeder from his first conscious thought; that he had never done an honest stroke of work he could avoid; and that his prison averages throughout had been such as compulsion compelled. Never a hand had he turned to help himself, nor to help others help him. More to the point, he was dog in the manger to snarl and snap at worthier comrades who would partake of unforbidden reformatory fruit.

However, lambasting heartless “bulls,” and slashing pig “screws,” are but surface incidents in the subterranean mind of the ex-convict peddler of alleged prison malpractice. He dives much deeper than that. What he actually essays is to draw the sting of consequence from the commission of crime. This, through pressing for prison activities, inactivities, perquisites, and unearned largesse in one or another form, which so cross prevention and deterrence, as to leave them without local habitation. He would ride halter-free of legal restraint; hence, since “bulls” and “screws” are respectively first and second-line social soldiers, instinctively hated by haters of the overchecked bridle of basic law, any old lie will do which discredits bulls and screws.

A public that is mulcted annually in the sum of about a half-billion dollars by the now-you-see-it-and-now-you-don't fraternity, cannot be expected to search out ulterior motives while skimming over the pyramided fabrications of ex-prisoners whose specific psychology is, after all, very simple of analysis. Brutally and inelegantly put, it is essentially this: "Work ye tarriers, work; and drill ye tarriers, drill," and sweat, while I draw you in caricature—for a price.

The Macdonwald simile is apt, in so far as it shadows forth the self-determining criminal's disloyalty to the State, and the foxed cunning he employs to express that disloyalty; "shadows forth," mind you, for only the good God Himself can know to the base cells of the actual criminal's brain. Some assert to the contrary; but observe that where they prescribe and proscribe, there criminals ride booted and spurred; and there fundamental correctional measures go on crutches. Bloviation marks at once the criminal and those who measure the criminal with arbitrarily-spaced tape. Therefore it comes about that the sneers of the latter are added to the sneers of the criminal, directed against those placed without the theoretically drawn circle.

Surely, all of fertile grist should grind in the reform-mill. The mere theorist will get nowhere worth while in the work, unless he packs a deal of knowledge having to do with crying needs that cling close to earth; and by the same token, the practical man will not score as he should short of a very good theoretical grip on crime and criminals. Rational penological theory and practice should supplement each other going hand in hand, and not fight for the higher distinction as is at present the rule. This, if for no other reason than that singular scramble for spoils is wholly to the criminal's liking; it warps judgments, and emboldens lawbreakers to press on the lamer side for favors at once unearned and non-reformative.

All, together, for the criminal's reinstatement as a social unit, and all, together, against his undercutting machinations, is the only wash of the kind that will come out white from the reformatory wringer: team-work, in a word, with pedestals for persons richly earned in agreement with the parole record.

There is a very definite difference of psychology as between the majority of lawbreakers who are instinctively non-criminal, and the minority of instinctive criminals.

In the one case, hosts of occasionals stumble badly, pick themselves up, make their remorseful bows to conscience, break away from crime, and thereafter tread honest paths. They are rather informed than reformed.

In the other case, by-choice criminals—commonly bred and broken for the part—take as naturally to the caves of earth as do wolves, their animal prototypes. The instinct to forage upon, and tear at their kind, is grimly adumbrated in the gusto with which they cut notches in their guns.

Like the wolf, they show naught of mercy in bringing down their kill, the which they usually essay only when the odds for “getting the drop” are pyramided in their favor. Hence, again like wolves, they usually hunt in pairs or packs. Even so, and contrary to the common idea, when forced to it they mostly fight like cornered rats, and many die without thought of incriminating their “pals”; albeit such manifestation usually carries more of hatred of government, than consideration for comrades, “double-crossed” daily in the predal game.

As to offenses committed against them by their blood-brothers in crime, Neapolitan and Sicilian-Italian criminals work throughout under this slogan: “If I live, I will kill thee. If I die, I forgive thee.” Therefore it is so difficult to bring home to individuals, vendetta butchery within the clan.

In cities of the first class particularly, where Camorrist and Mafiausists foregather in clan groups, he who “squeals” on a clan member to a legal agent, almost certainly is marked for death. Therefore, the very first duty of the State should be to combat, with every means in its power, organizations of anti-social wolves whose first and last thought is to euchre means by which social order is established and maintained; for, when it gets down to the marrow, Italian anarchists and semi-anarchists, along with legions of other foreigners of their kidney, operate further from declaration substantially like this: “He who does not defend himself against agents of the law, is a fool.” In other words, kill, then combine to cover the killer.

Palpably, the only safe course for the United States to pursue with units of the kind, is to stalk and deport them. Good citizens they cannot be made; they cannot, for three governing reasons, to wit: (1) It is too late; heredity and habit have them hamstrung. (2) They haven't the first iota of intention or desire to become good citizens. (3) To try to become good citizens after having gone the anarchistic gamut, either here or abroad, would be to court the knife or automatic, as witness scores of current killings, motivated by attempts on the part of former clan members to strike out for themselves free of clan edicts.

Plumbing to the psychology of a given criminal, let not his racial instincts escape careful research, as for example: Let it not be forgotten in the case of the Sicilian-Italian murderer—the most rampant and the most flippant—that not so far back the Sicilian-Italian was the most peaceful and law-abiding man on earth; indeed, the law of Sicily was then mostly operative in the passed word of natural noblemen: tending their flocks, pruning their vines, sowing and harvesting, devoutly worshiping their God while helping their neighbors, and knowing next to naught of killing, until it was forced upon them by contiguous peoples bent upon stripping them of their “Isle of isles,” and the grain and vintage thereof. Then followed bribery by foreigners of groups of Sicilians; then bloody reprisals that ensue upon consanguine duplicity; and then individual interpretation and expression of organic law, with the indigenous bandit letting his brother's blood for less than the price of a fat steer.

So, alas! runs human history; so, in determining the psychology of a given subject in the commission of a given crime, it is frequently cardinal to trace the atavistic pressure germane in the deed; and so, in appreciable measure, all of human action harks to yesteryears.

Germans started out by butchering the dead of the legions of Varus; just killing didn't satiate their blood-lust, and they still planned butchery in 1914—women and babes included.

Frenchmen frothed to indiscriminate murder in reprisals that miscarried; which is to say: their revolutions left millions of the sons and daughters of France with a grossly exaggerated idea of the importance of the individual in the mass, now expressed periodically in mercurial uprisings engineered

in the main by the progeny of those who hung on Madam Defarge's heartless words, and watched with glee the fall of guillotined heads.

Americans built to liberty as liberty never before had been framed and nailed: then they bade anti-social vandals come on over and raze the structure with tools fashioned for all forms of license. They came, they used the tools, they are using them, and they will get the job done unless Americans come out of it and postpone their social siesta.

By and large, the bulk of America's criminals are the natural offspring of the natural foes of freedom as the forefathers sensed freedom. Instinct is far more tenacious than anything with which it may be challenged; hence it is that a bulging minority of the polyglot of the mass on continental American soil seethe, and plan, and execute, even kill, to the end that they may establish a social order diametrically opposed to constitutional diction. What is more, openly-avowed efforts to change the national course are the least fateful. Basic danger resides in the insidious undertow: in that which is given no voice, yet which is wormed patiently, indefatigably, to the foundations of American institutions.

Therefore, when you have an American-bred criminal, you usually have one, as it were, out of Pandora's box; one to whose ancestry and whose natural instincts and predilections because of that ancestry, and to whose bringing-up you needs must possess the master-key, else betimes surely miss underlying motives.

Unquestionable observation and experiment declare for this guiding principle: in out-breeding of humans, good traits of character, from either side, may, or may not, issue; whereas bad instincts nearly always carry in emphasis from both sides. Hence, a country that recruits its citizenship from the four corners of earth, must, if it is to endure and persist for human progress, select of foreign-born units strictly on the basis of quality. Never mind either calculus or the alphabet; encourage God-fearing, law-abiding, hard-working young men and women who want to root in American soil, to do so. Then bar every individual who cannot present clean bills of health and social character. Bar him, essentially, her, at the port of egress.

Fundamentally, the immigration question is no more complex, in so far as the only rational course for the United States to pursue is concerned, than is

breeding of prize cattle; it is this: eliminate all but good-mannered producers who transmit reliably to the best qualities of their breed.

Such had not to be force-fed of American patriotism. They absorbed it, out of the very American air they breathed, and they will continue to do so. Laboring over doubtfulness and undesirables is mostly waste of ammunition, in so far as the intrinsic aim of the labor is concerned. There is no moral obligation upon America to poison her blood-lines; quite to the contrary.

Give good immigrants cheer, then place them where making and owning their own nests will engage them, and they will do the rest. They may continue to roll their R's, or to sibilate their S's; also, they will soon learn to reverence the basic traditions of the American flag.

Since criminals will always be with us for the same reason that all-seeing Nature revokes in the matter of the quality of a certain percentage of her seedlings, humane man needs must make the best of the criminal; but the humane best does not mean that criminals shall be encouraged to breed with their kind, certainly not with standard stock; and it does not postulate waste of time and substance in impossible attempts to carry weaklings beyond their incurable congenital limitations.

'Twere futile, for instance, to expect of the scrambled brain of an epileptic moron, that it shall ever function far above the zero mark of either mental or bodily control and service.

In the province of the good God, He has suffered man to make himself over from the originally perfect model, into the being who leans, and limps, and stumbles. With that which has come to be what might be called the cosmic metabolism of the human body, germane in international out-breeding, the Creator probably does not concern Himself. If man would pace his paces toward the "Wassermann test," that likely is distinctively his material business. The Father of all set the true pace in stone-struck precepts. Man read, passed on to dives, pollution, and deviltry, and—pays!

Macdonwalds pay out of purses the strings of which are tightly drawn to self-centered disservice. In the end, they greet no friend, and eat at hearts bled white of capacity for enjoyment. To such, Solon might well have

exclaimed, “Boast not of happiness until you reach the last day of your lives!”

Then we have natural nomads of this, that, or complex persuasion, who are patly named “globe-trotters” in the parlance of the period; then given over to pursuit of surface pleasures and the juggling of baubles, while lending but casual weight to the kind of coinage they coin, and next to none at all to custodial considerations that should obtain as between the wealthy and the masses who make wealth. Humans so driven usually pay out of tingling nerves, souls of unrest that fight a constantly emphasized ennui, a conscience never four-squared to challenging duty, and a juiceless old age, against which they have stored no pleasures of the mind. Individuals of the stripe take naturally, as a rule, to such as sporting pugs and parasites, since above all else they must be amused out of the ordinary in order to forget for a spell.

Down grade a bit farther one meets up with the money-mad cheat. His specialty is to roll a dollar and have it lap up unearned increment that would have shamed Shakespeare’s capital usurer, had he been ten times the immovable counterfeit Bassanio proclaimed him. No matter that the rolling must ultimately give going business a black eye through flattening out the bulk of the nation’s spenders, just so the comeback coincides with the intent. The intent is to filch by financial legerdemain from a people that of which their forebears were deprived from behind one or another form of barricade. This slave of the gilded idol will likely smack of the smattering of a cheap culture, loll about in exclusive clubs, feed on the fawning of smaller fry of his markings who murder sleep, even supplicate for shiftless souls; still, he is instinctively one of the meanest of moral crooks whose kinks of character shut him out alike from the meaning of life and death. However he may read mundane law, or have it read, he is a spiritual dud. As such, he will pay when the Maker unmask him; not here below, since Baal has him thrown and roped.

The multiform and multifarious sporting parasite ranges from “Rastus” who rings in with the rollers of “loaded bones,” to the professional promoter of prize fights: that specious, cane-dangling, manicured man-that-wont-work, who deals in degeneracy. Not so long ago, he had to sneak through alleys, or up to sky lofts in order to display his devilish wares to a few score of

attendants who couldn't shut out the image of the raiding "cop." To-day, this derailer of decency drives his stakes in the heart of a crowded community and hales reverend seigniors to blood-soaked canvas. Moreover, mothers flock to bestial exhibitions that imbue lads with values utterly false, mark them more brutally than bronchos are branded in the corral, and speed them to useless lives, commonly garnished with the unspeakable. So much as a syllable of defense in Holy Writ is not to be found of the drone-sport; and so much as a staunch syllable cannot be advanced by him as to why he should be suffered to cross the mental, moral, and physical well-being of unfolding lads and lassies. Down deep in his soul, this all-pervasive faker pays out of knowledge of the fact that the grand majority of his fellows size him to his intrinsic worth: bar him where self-respect moves with its eyes on the stars.

But another step down in natural sequence reaches to him who makes no bones about being an out-and-out thug. In his mental purview, man was fisted and framed to no other purpose than for individual selection agreeably with his brawn and bent. Let them that will strike indirectly with such as statutes that hamstring equitable exchange, or with long-distance law that licks the leaner purse. Boiled to the bone, force is all one in principle, so why don kid gloves in doing your bit for yourself? Why not go after what you want with the like of the mailed fist, and let it go at that? Don't a lot of so-called "highbrows" do the same and go to the head of the social class? "And say!" if there's essential difference between the moral crook who cranks for ill-gotten gain under undue process of law and legislation—and the "guy" who greets him with a gas pipe, spite of the "finest" and four walls that threaten, upon which of the two, in the final analysis, rests the burden of justification? Of course all of such trimming will be out of the twisted brain of the crook-thug who elects to be and remain a crook-thug; and of course, in flouting the finer sensibilities, he pays in missing the fulness of life they alone can round out.

So one might go on to the end of the chapter in citation of primary motives for the commission of crime in America; but sufficient of data is offered to emphasize this crucial and concrete fact: more than the criminal of any other nationality, the American-made criminal is a composite. He is, necessarily, because he draws on many more racial strains than does the lawbreaker of any other land. His blood commonly courses to instincts,

sometime conflicting as between the good and the bad, but by the very fact of his cashing in for a criminal career, his pulse beats insistently to negative strains that nag him into the choice he makes.

However, choice for a life of crime would not be made so lightly in America, could the criminal not bank there on odds much heavier in his favor than like odds offered him in any other country; basic odds substantially put in these four points: (1) The direct and indirect bids for him are the most common, persistent, and inviting. (2) His chances to get away with his loot and to convert it into cash, are by far the greatest. (3) If caught and corralled—a great big “if”—he knows that as to the meat of the sentences to most of America’s prisons, the hands of the local authorities are tied; tied in the matters of the essentials of just and necessary deterrence obedient to penal predicates and prosecution of educative measures that needs must function for consecrated endeavor, else miss the reformative mark. (4) Public opinion relative to the mounting menace of the criminal is “neither fish, flesh, nor good red herring”; it just muddles along, steered by meddlesome cults, most of the members of which toss about rudderless on seas, the shoals of which they do not make serious effort either to chart or avoid. Nevertheless, they hesitate not to employ the axe, or, more destructively, praise that damns. Needless to add, your Simon-pure purse-packer is the meanest of subterranean detractors and bunco-steerers. He it is who packs his purse indirectly through playing down to the instinctive reactions of criminal rounders.

Coming down to the psychology of the average felon, general statement must be confined to motives by which, in relative sense, the best of men are driven. Contrariwise, the deviated criminal is a grossly overdrawn type of the genus homo. By and large, he manifests crassly that which his better-equipped brother spurns or inhibits.

Manifestations reach to different roots. Algernon was checked off before he was born by way of a sexually-perverted instinct, or in an extraordinary mating hunger that marks him for bestial business, unless he is most carefully brought-up. Bernard harks back to a line of moral crooks, kept out of jail by legal see-saw. “Butch the Bull,” scion of a father who made a living spilling the blood of his kind, and of a mother who was proud of the father, takes as naturally to heartless thuggery and its more pernicious by-

products, as does a buck to butting. Each tells that blood tells, in that his selection of criminous groove will be governed largely by his instinctive predilections. Criminal man is usually but an enlarged portrait of the boy playmate. Hence, your natural sexual, thief, or thug, will inevitably begin to so unfold at a game of marbles.

At a given moment, sentient man is the sum of the manner in which he had fought known congenital predisposition to express unsocial conduct, and the total of objective influence exerted upon him. For that which he lacks in character on a certain day, date and year, much betimes may be discounted as the quite natural result of cumulative circumstance, all of it spiteful; but that fact does not alter the basic truth stated.

And so, since America went out of her way to ransack the discard of nations for her prospective citizens; and since criminals and potential criminals of each national group bore with them to America that by which they were peculiarly motivated to criminality in their native lands; and since America has been out-breeding from such stock for over two centuries; and since America sneezes at leaping license as no other nation sneezes at license: it follows perforce that the psychology of the average American criminal will be singularly complex. Atavism kneels neither to brain nor brawn. It will not be denied; not even the Mendelian law holds it wholly safe. Deviations that defy analysis will crop out. The crack in character apparently closes and merges, then opens wide after the lapse certainly of six generations, probably from way back of any genealogical tree yet branched by human brains.

Certain attributes are close to common to all of true criminals. Their impressionability will be below par; their nervous sensibilities ox-like, leaving them comparatively indifferent to pain they inflict or by which they are afflicted; expressions of their sexual desires are gross, frequently perverted, and not uncommonly masochistic in one or another degree and form; their mental concepts are pronouncedly ego-centric; their spirituality is such as clings to the main chance just because it is the main chance, not because they treasure it as the fount on which to draw for inspiration to better things; their word at the best is but a lame duck; their loyalty is huckstered from bargain counters; and their honesty of purpose is adumbrated in the fact that they stand many times convicted felons, albeit

many hands and hearts had again and again tried to steer them clear of criminal cesspools, beginning with their tempest-tossed parents, and ending with the spurned “screw”: but the mastering motive for their crimes will usually be singular to the individual, and trace to forebears who ran their course on foreign soil. Correctional institutions contain few of the offspring of Pilgrim stock.

At any rate, the singular-composite psychology, calls for the singular-composite psychologist; meaning that he must possess singular skill with which to unfold the cardinal flaws that cause the high criminal blood pressure of his subject, as well as ability to uncover the sum total of objective impulsion that adds to that pressure. Shall he allow a fetic to sidetrack him from comprehensive research, and logical recommendations based on such research, he will surely fizzle.

Because the two-fold chore involved has been intrusted mainly to mental examiners obsessed with the near mania to make the purely psychological case, regardless of the comprehensive case, it is that the very word “psychology” is looked at askance by many who keenly want to see whole.

Searching the psychology of a given criminal necessarily involves digging to understructure from which he is impelled to illegal acts; particularly, to the subconscious impulses that sway him; but having taken cognizance of those impulses, remedial measures must further prescribe for him agreeably with the role he will be best fitted to assume as a reclaimed social unit.

Palpably, therefore, his all-around schooling must be individual to a degree, yet comprehend the social exactions that will be upon him in free life.

No matter what the prison régime under which the subject is schooled, it should function substantially as follows:

(a) As a distinctive plant, for a certain grade of offenders, to a distinctive end, as for example: for distinctively occupational results, if it is a trades-scholastic-military house of correction; and for distinctively agricultural results if it is an agricultural plant. Little, if any, crossing of the concentrated idea should obtain.

(b) The schooling should be intensive under reasonable averages calculated to assure evenly-progressive skill.

(c) The every-day curriculum should be inclusive of the needs of the last unit of the mass. Segregated-group treatment, other than for positive deviates, subtracts from, much more than it yields to, in a general scheme of schooling that is rationally prescribed and prosecuted. The positively abnormal should be sent, originally, to institutions essentially fitted for their care and repair.

(d) The tramp mind should not be permitted to tramp. In accordance with all of visible signs, plus those brought to the surface by means of mental research, the subject should be harnessed to the task of doing some one thing well. The greater the task, the more binding the reason to so harness him. The average prisoner is the victim of the desire for variety of activities; he has a very decided distaste for buckling to and staying buckled. Hence, the first step in his social reclamation must be to break him of the mental habit that impels him to spread himself uselessly. He “gathered no moss” because he was “a rolling stone.” Get that into his head from his initial institutional pace.

(e) Common belief has it that a compulsory measure should be the last straw at which to grasp. Diametrically to the contrary, it comes about in legions of cases that compulsion, even drastic compulsion, is the only weapon to hand that will make any impression on certain of self-willed, self-centered, singularly refractory prisoners, who had been indulged in mock heroics, and who devise deviltry even while they are changing from citizen to prison garb. At once is the time to read to such their prison lesson, predicated in penal law. If it can be done through kindly admonition that carries from the heart of the mentor, by all manner of means do it so; but don't commonize the mentoring in the face of repetition of serious infraction of reformatory measures by your man, else he will spurn both mentor and measure; this, the rule. It remains for the mentor to spot and allow for the exceptional case, such, for instance, as one whereof the offender had known little other than kicks and cuffs out of life. With such an one, persevere with the soft pedal much as the Christ would have persevered in like circumstance.

The point is that much too much of “sob-sister” stuff has been written and spoken about compulsion as applied to the instinctive and habitual social wolf; about him who began life by abusing his mother, and who will

probably end up in the electric chair, unless timely action is taken to disabuse his mind of the notion that his individual will is law.

Isn't it true that most of the worth-while things men have done, have been done against grain that howled betimes for easier going? If it is true, then have done with petty piffle about compelling repeating felons, who just won't have it any other way; felons who figure on foraging on society by its leave, else shooting to kill. In any event, plan for notable preparedness throughout the prison curriculum, then hold the prisoner, under his commitment paper, until he shall have made at least a mighty good try for himself in agreement with the plan.

(f) The "plan" should refuse, utterly, the going fad and fallacy to the effect that the prison régime is best which is productive of the least friction; that measures which please, amuse, and keep recidivistic felons good natured, are the ones to be sought.

True enough, the prison scheme that produces undue friction is at once suspect. Better, for example, a bit too much than not enough of amusement and recreation, so that they are free of the prurient and the pug; but neither should cross educative measures, and both should merge, as nearly as possible, as both are merged under a factory schedule in free life. Essentially, play and amusement should be held strictly subordinate to the cardinal aim, which is to make skilled unskilled hands and brains. The responsibility for undue friction that issues out of execution in line with that aim should be met squarely with remedial measures, whether they hit inmate or officer. Reform work is that last of the world's work that should be retarded by the man who does not take seriously a high calling.

Some sniff at the "high calling"; albeit endeavor cannot be at once more scientific and awesome than raveling the mental twists, and remodelling the faulty clay of humans. Because that mighty task is turned over in so many instances to those whose contributions to correction consist in nothing more tangible than cross-cutting saws they tooth about it, explains in appreciable degree America's recidivistic criminals, who hold all records for flippant lawbreaking.

(g) Gone about in the right way, it is positively helpful to appraise lawbreakers for their mental, moral, and physical restrictions, each one of

which contributes to the other. Particularly as to borderline mental deviates, their prospective social service will quite reliably reside in the manner in which analysis is made of their handicaps provided: very clear distinction is declared as between their congenital limitations, and encumbrances of environment and bringing-up by which their social sense and social development were arrested, while they were being clamped to anti-social habits of thought and action. And provided: negation is not nurtured in order to strike an average, or to confirm questionable theory.

Brash statement either way, relative to the reclamation of the average felon, should be withheld; yet close to a life study of, and research pertaining to, imprisoned felons, while brushing elbows with them as a State agent in the most intimate way, emboldens the writer unequivocally to assert: aside from the natural effect upon him of cumulative impositions, all of them pronouncedly unfortunitous, and not one of them ameliorated by so much as a semblance of virile countervailing influence, the average nearly-normal felon issues just as millions more of his mind and matter would have issued, had they, like the offender, been practically dispossessed of good suggestion, good example, and good training and teaching.

As to a lad's basic ability, even as to his intrinsic worth, what he had done and left undone, what he wants to do and leave undone, commonly relates at base to that which he had had not a ghost of a chance to do or leave undone. He can't have grasped mentally that which had been kept foreign to his mind; he can't have taken on even a thin veneer of morality while he was being "used" in the vilest of sexual dens; he can't have absorbed meekness and mercy out of having been elbowed into the company of self-determining social pariahs; fresh from the cruelly gross gruelling to which he has been subjected, he can't be expected to bank on the helping hand of Almighty God, say naught of the offices of mercenary man, whom he has come to envisage as a common despoiler; he won't sprout and grow to manly stature under corrective schooling, other than that which sharply reverses his every conception of individual duty registered on his brain; and he won't blow at all to the light of living except by gradual and well-marked stages, much, in the matter of time, as he was dwarfed in black holes by the powers of darkness. Still, he is of the stuff of which the Almighty made Adam. Moreover, the Eternal Father won't shrive of blame

the man who dons the esoteric mantle, takes a casual peek at him, smugly pronounce him an “incorrigible moron,” and passes him up to perdition.

Going over the days of his youth and young manhood, recalling the grave, sometime gross lapses chargeable to him, spite of his best of environment and bringing-up, what call has anyone lightly to damn a lad, either mentally or morally, whose lot it had been to be deprived of direction, while he was being shouldered into moral gutters? Why insist with so much of balderdash about the predestined criminal, and at the same time order social usages and the execution of penal law to his hand; then, when he falls plumb backward, so order prison régimes that they do with and for him just those things they ought not do, and leave either undone or half-baked, just those things they ought to do?

Why, for example, in response to the criminal’s oblique instincts and intentions, feature such as bestial pugilism, and flatten out such as trades teaching until it stands but a loose-jointed skeleton of what it must be to be effective? Why place embargo on preparedness to earn an honest living, and at the same time make unblushing bid for the murderous parasite? Why put a premium on activities, pursuing which in free life first made a brutal drone-sport of a lad, then headed him for bolts and bars?

All-sufficient of wholesome play and amusement the imprisoned should have; but the moment either engages prisoners to the extent of crowding out of their minds the essential exaction upon them to concentrate for correction of that responsible for their plight as prisoners, that moment it becomes perniciously non-reformative. Furthermore, prison play should be confined to the periods set aside for play for all. Nothing of the kind could be more subversive of reformation, than by-play by groups, the howling by members of which is plainly heard by the general population, supposed to be fully engaged at work in the shops and departments of the place. Aside from bad feeling engendered through playing favorites at play, the inevitable effect of the by-play is to kill concentration through switching the minds to play of those who are at work.

At gymnastic exercise for special groups, noise should be held within bounds, exercises prescribed for the purpose in hand rather than to amuse, and the minds of the lads fashioned for their all-around improvement,

instead of to the idea that the exercises are planned from no higher purpose than pleasurable relaxation.

There will be isolated instances whereof just pure play for a time will be best; but such cases can and should be handled judiciously during the periods set aside for play.

Essentially and without reserve, manifestations at play that make for the brute should be sharply checked. They are of the devil's own, imposed upon up-coming lads through the medium of sporting mongers.

Even in the Army and Navy of the United States, where lads must be trained to take care of themselves with the last device of individual power, justification rests with the military authorities for brutality inseparable with fistic encounters and wrestling matches. There are better ways by which to coördinate eye, brain and brawn for offense and defense, either in peace or for war; ways that fit the individual weapon; ways that confine the thoughts of the unit to use of that weapon for war; and ways that do not inoculate with the itch to knock someone's "block" off.

Such as fisticuffs has been employed by Uncle Sam to aid in recruiting, then purely for the amusement of the onlookers. No normal man does or could claim to be edified by seeing human blood spilled, or by agonizing with the lad rolling in agony. Again, Uncle Sam's soldiers and sailors are the pick of the nation. In bulk they can be trusted to avoid the deadline of intrinsically brutal manifestations.

With thousands of convicted felons, as with the ninety-and-nine of habitual criminals, it is essentially different. They are brutal by nature. Many are confined for committing the most ruthless of brutality. Therefore, such as prize fights, put on in a correctional plant, are utterly indefensible. Far from being fed up with bestial exhibitions (?) such lads need above all to be weaned from instinct that demands such form of amusement.

Amusement! Out of seeing a battered lad laced into submission! Could anything be farther from that for which the average taxpayer means his money shall be expended? And what is all the fuss about at the Washington Peace Conference, if not to put international handcuffs on that which is but an enlargement of the doubled fist?

Men who like to see the beast in man exploited, have been primarily chargeable for all of war. When they succeed in passing on the virus of bestiality to American mothers, it is high time to call the turn on them, and to interpose unbendingly where they attempt to prescribe.

Rational discipline is as the spine of any schooling. Juridic prison discipline differs from like free-life practice, in that it must presuppose the integrity of a charge brought against an inmate by a regularly appointed State agent. In such instance, the burden of proof is justly upon the alleged offender to establish his innocence, not upon the State to assume it. This, if for no other reason than that the strongest of motives decides offenders for denial of guilt. Not only does the individual lie naturally come easy when part of a prisoner's liberty is threatened; but cumulative untruth must be searched out of testimony motivated by a common criminal camaraderie.

Gulfs of criminal practice may separate different grades of prisoners; yet, when it comes down to incriminating evidence of a serious nature against their fellow prisoners, they usually fight shy, and that, on occasion, not ignobly.

As to different offenses that are met with indifferent impositions, an inmate agent will clasp hands in measure with the local authorities; but he usually steers clear of testimony that establishes him a "rat" informer, and very probably marks him for condign reprisal.

A prison population is bound by ties which the hardiest of "trusties" breaks at his grave peril; therefore when it is told that a junta of imprisoned felons is given over unequivocally to support of penal law, reach for the salt.

In the first place, no set of men have legal authority to build to corrective procedure that runs counter to the binding predicates of penal law.

Secondly, no man has call to conclude that he can devise safer checks upon the marauding criminal than are those written into penal codes, out of the cumulative judgment and experience of mankind.

Nevertheless, the single-seeing and idiosyncratic practically have controlled discipline in most of America's prisons during recent decades. Besides, they have specified for overdrawn activities in essence banal and baldly opposed

to actual reformative measures, maimed in the process to the point of practical disuse.

Time was when managerial members of institutional staffs demanded that “up for parole” prisoners shall have sustained saving trades and scholastic averages. Now, gentlemen mostly have their eyes glued to sporting schedules and conduct records, the one of which commonly cross reformation; and the other of which are at no time reliable guides on which to base the free-life intentions of intelligent prisoners.

The result is hodgepodge of cross-matched correction, little of which escapes knowing condemnation, and less of which is strung to the keynote of reformative harmony.

The keynote of reformative harmony is struck in a prison régime that ministers meticulously to marketable knowledge and skill. This, unmoved by the counter machinations of the minority of the mass, expressed either individually or collectively; indeed, collective manifestations against the like of insistence upon fairly-won averages throughout the system, should be met at their inception by the State with power so impressive as to make repetition of such opposition highly improbable. Failure thereof to take up disciplinary stitches in time, is what ultimately works mob mischief.

As a matter of fact, radical resistance to rational measures seldom issues in a correctional plant that is consistently dedicated to those measures under an all-around square deal. Contrariwise, that institution is always ripe for disciplinary loot, wherein disruptive privileges and perquisites are heaped upon inmates who do not earn them.

There is no satisfying such laggards with gratuitous largesse. The more yielded to them, the more they demand. Furthermore, once having yielded to them way beyond that which should have been yielded, it takes years to get back to the normal again—if at all.

Basic reformative cogs can be slipped in a second out of purblind vision not, so to put it, within the focus of comprehension: whereas readjustment resolves into a long, hard pull, up hill all of the way. In one of the writer's many talks with Mr. Z. R. Brockway, relative to the capital matter in

question, Mr. Brockway let fall this cryptic conclusion: “I’ve tried it out every known way, and I say: *don’t do the first darn-fool thing.*”

In the light of eventualities, it seems a great pity that Mr. Brockway should have been held up just as he was about to perfect balance of parts in a work to which he had given the best in him for fifty years; it does, because up to the time when he was so ruthlessly broken—literally broken—his “best” was incomparably better than any other man had dared in application.

It will be recalled that Mr. Brockway’s alleged capital sin consisted in the fact that he would not yield belief in corporal punishment as a means of “shocking”—as he had it—persistently refractory prisoners into at least respect for the major voice. Whether Mr. Brockway was right or wrong in the conviction to which he clung to his dying day, does not call for contention here. But it may be noted that certain forms of prison punishment that have supplanted corporal punishment, are infinitely less humane, and infinitely more destructive of the divinity in man, than is an honest spanking, inflicted in a fatherly way, out of a fatherly heart. Moreover, final reversal of public opinion in the matter further may be noted in editorials, such as are adumbrated in the following excerpt clipped from one of the papers that joined in the hue and cry for “investigation” of Mr. Brockway and his methods, to no other purpose than to break Mr. Brockway, and to abolish corporal punishment in the correctional plants of the State of New York: “How then is ruthlessness to be held securely in check? Not by making all nations humane, and scrupulous, and tender-hearted. It is the actual, not a millennial world with which we have to deal. *It is not conversion of evil men that must be aimed at, but their control.* A nation tempted to be brutal as Germany was, must be given to understand that the first display of barbarism in warfare would bring all other civilized countries on its back. In short, nothing but a solemn international agreement unitedly to oppose and to *punish* the ruthless making of war can assuredly prevent it.” The underscoring is the writer’s.

Bear in mind that a State bears relatively the same relation to the combined States of the world, as does the unit of a nation to the mass of that nation; in very fact, it comes about in America that the State is an enlargement of the international unit—thanks to the melting pot fallacy; then change the wording of the preceding paragraph to agree with the case as put up to

America by polyglot pistol-toters who show no mercy. And then say why it is good to visit the extreme of corporal punishment on a “barbarous” nation, and bad to “shock” physically an individual bandit who cares not a wisp of straw about anything in the way of “punishment” short of physical pain? Say it, refusing at least the premise worn threadbare and stripped of ballast, to the effect that the injured sensibilities of the crudest of parasites are paramount over the common safety and progress; and say it realizing that the paper quoted now blares solemn truth for which it bitterly scored Mr. Brockway, who never went so far for pure repression as that paper now goes.

The fundamental principle germane to the underscored words in the editorial excerpt given is precisely that which is so frequently involved in the issue between the individual and the State. In any case, correction is spurious which does not carry to high-grade skill, backed by the highest grade of recreation, amusement, and moral teaching.

If mercy multiplied can be made to effect for the main object, that were well, since “A man convinced against his will is (usually) of the same opinion still”; yet, shall the subject persist in making use of the soft pedal as a “soft thing” through which to draw out devious, determined, long-drawn-out devilment, the sooner the State stops his bullish rush for the abyss, the sooner he will take a flashlight photo of himself.

Such, in substance, has been the contention of practical penologists. In line with that contention the pendulum of public opinion must swing back; it must, for the very good reason that self-preservation leaves no other choice to the American people or to any other people. That country limps to the dogs which essays to hold murderous rounders in check by aesthesia. The Almighty fits the punishment to the offense. Man can do no less and endure in the image of his Maker.

The first necessary step in the regeneration of a license-mad world is to put teeth into the restraint of those who seek to make permanent the present chaotic social conditions. Moreover, the movement against the international social marauder will necessarily take on international scope and solidarity. Pecking at him here and there, driving him from this to that base of operations, won't get the world anywhere in coming up with him who does

not balk over indiscriminate use of the crudest of death-dealing tools in determination to stand society on its head.

International control over and isolation of the red-handed, are the only weapons that will make a dent in them. Therefore employ those weapons before misled maulers of law and order engage the standing armies of the civilized nations of the globe. Will they not? Maybe not, but they do, right now, in appreciable measure, in several European States; also, they go right on “boring in” to the heart of things in America, for which they do not, as a rule, get so much as a slap on their murderous wrists.

Cardinal bungling in relation to present cosmic lawlessness, resided in allowing Russia to be taken by the throat by a few addle-brained social hyenas; they who use an intrinsically fine-hearted people as a foil for destructiveness the most heinous ever garnished by inhuman ghouls.

That Russia remained deaf to the pleas of statesmen of the stature of Baron Rosen, then rushed to loot and wholesale killings, alone concerned Russian autonomy. If Russia chose to wear sackcloth while ordering her bed for terrorism and bad dreams, that was distinctively Russia’s affair; but the moment she sought to underwrite propaganda aimed at the world’s social structures, that moment the international screw should have been turned on her. For her own salvation she should have been brought to an even keel, say naught of the broil to which Russian mongrels were bringing the international pot.

But why the apparent diversion from the text? Why roam for similes that seem so far removed from consideration of the psychology of American criminals? First off, nothing is distant by suggestion from America farther than the time required to cable it to America and there spread it in the public press. As the bird flies between the nearest points of opposite shores, Siberian Russia is but about thirty hours by boat from Alaska. Uncle Sam is cogitating the best means by which to quicken the life flow in Alaska’s veins. When that flow is quickened, Alaska will be a convenient, engaging, and comparatively safe base from which such as Russian radicals may strike at and sieve into America.

Secondly, the psychology of such as those directly responsible for measures that leave Russia stripped of about all but the saving grace of a long-

suffering God, is substantially the psychology of habitual criminals, place them where you will. As a distinct class of humans, each is out to get something for nothing. With specious and polished phrases, the one class of educated plunderers play up to the dumb avarice of ignorant underdogs. The other class, equals of their blood-brothers in hatred of biblical government, usually manifest their crooked curves in the most direct way with the individual weapon. Anarchistic agitators seek to strike through the masses from center to periphery of the social circle; criminals usually make their forays in pairs or packs from the fringes of society; yet both are impelled to anti-social action by the ever same capital motive, which is to get something for nothing.

And so, no matter what un-American or anti-American stripe he bears; and no matter in what language he may shriek for social disintegration because he is of that stripe, America must meet him with a fist that knows no relaxation. He should not be allowed to land on American soil until he had taken unqualified oath to support American institutions. Thereafter, upon the first evidence on his part of backsliding as regards that oath, he should be given his ticket of leave and published to the police authorities of the world for what he is, viz.: a man without a country who doesn't mean to merge with any but those of his class.

Adam and Eve were turned out of Eden for committing mere carnal sin in disobedience of divine command. America, then, has the highest authority on which to purge herself of lawless blood-spillers; indeed, so much of obligation is upon America, judged either from the spiritual or material standpoint.

America cannot, if she would, do other than pulse to the international pulse, so long as she out-breeds to all of the Caucasian races of mankind. Having bred to the cold-blooded from here, the hot-headed from there, and incorrigible enemies of public law from everywhere, she may make the best of it; but if she really has in reserve common sense sufficient to do it, she can break the strangle hold with which social wreckers seek to place her in chancery. Contrariwise, if she persists in attempt to wash the world of its human barnacles, she will pass of a leprous poisoning for which there is no known antidote.

RÉSUMÉ

While a common mode of operating and the wastrel's way of satisfying abnormal demands of the senses usually tag criminals of different types, the ultimate psychology of a given criminal will be his very own. Surface signs may or may not differentiate him appreciably from thousands of those of his particular grade. In very essence of soul he will seem to match another as closely as his facial lines and moulding duplicate the lines and moulding of scores of others; still, as to the prime impulses that impel him, he will be more or less the individual slave and law unto himself.

In the sense that he himself will not be cognizant of the subconscious quicksand that sucks him down, the case of a given criminal will parallel that of most all of criminals; but while the undertow may initiate in substantially the same subjective causes for all, he will run to objective emphasis for his criminousness in accordance with the cardinal instincts that drive him. Hence, since he is just like no other criminal in every way, there will be a deep shading of difference in the manner in which he acts and reacts, as compared with the action and reaction of any other criminal.

Like the time-locked safe, each criminal has his particular "combination," the key to which it is up to the State to forge—if it can.

Whatever his "combination," be surprised if the convicted criminal does not assert stoutly that he was not guilty as convicted, but "framed." Then, if you pin him into position where he cannot "stall," be surprised again if he fails to rebut with parallels involving moral thieves, whose defense of wholesale pocket-picking is substantially that made by Falstaff to accusing Prince Henry in King Henry IV: "Why Hal, 'tis my vocation, Hal; 'tis no sin for a man to labor in his vocation."

The natural criminal is nearly always a self-faking, hard-bitted social rebel, who cuts to fit the garment of his mind. He is usually pitiable much of the way, he should be succored all of the way, but he must be controlled in any humane way. He must, else human society will wax worthy of him while ridden by him.

Even so, the writer utterly disowns rating of “Slippy McGees” as thick-skulled savages predestined for incurable criminousness. Such rating is disproved in the reclamation to social service of thousands of lads who pulled out of the very slough of crime. Moreover, the right kind of free-life and correctional treatment of and for the crime-driven, will stamp wholesale damning of them as duty-shifting myth.

Shall America continue to make all kinds of bald bids for habitual criminals; and shall America at the same time so order her reformative régimes that they shall establish rather than arrest criminals of habitual potentiality, America will perforce multiply her flippant brood of bad actors. Still, that consummation shall have been chargeable in such instance to purblind, drifting, license-breeding America, and not to the withholding hand of God.

XII

SUMMARY

Suspended sentences; probation; discharges; quashing of indictments; bail under bond, pending trial for ominous crimes; and early paroles from prison houses are now stretched far beyond the practice of previous years.

Schemes for lifting social blight from backsliders have been broadened and quickened notably during recent decades.

Children's courts of probation constantly have risen in numbers, and the gratuitous offices of ever-increasing thousands of laymen and women nobly second service for children haled to those courts.

From the mode of operating most of America's prisons has been deleted all but the semblance of repression and compulsion: and in their stead, powers-that-be boast of having capitalized activities which fit for the sporting limelight, rather than for saving averages at bread-winning work.

After-parole efforts for, and supervision over, ex-prisoners, are vastly more inclusive than like endeavor of any foretime. Moreover, the public at large has been minded to do its duty: fact adumbrated in the vital circumstance that a prisoner is seldom held long in duress for want of a free-life job, albeit millions of crime-free hands remain idle.

In every conceivable way—inclusive of political pull, chicanery, graft, and criminal participation that remind of rotting fruit—the legal paddle has been padded for application to the predal felon; the same, until he construes criminal law in execution to be written agreeably with such interpretation as his nefarious necessities dictate.

Self-adjudged reformers of both sexes and of all stripes baldly palliate the chosen occupation of the thief, while him commiserating beyond the period placed by the Saviour.

The patrolman who wields his nightstick so as to shock the aesthetic sensibilities of an attacking marauder, is liable to be “broken” if the bandit is one of the many who make irresistible appeal to the super-emotional.

A peace officer probably will be condignly “disciplined,” shall he have dared, in self-defense, to man-handle an underworld vote-herder for them to whom the officer must either kowtow or cash in.

The chances that a lawbreaker will be apprehended, are about three to one in his favor; that he will be convicted under the wording of a charge or charges brought against him by legal agents, they are about ten to one; and that he will pay with his life if he kills, they are so nebulous as to be nearly negligible.

An escaping prisoner may count on the sympathy of at least eight of ten of the human mass, many of whom actually shield him.

Most any old alibi, offered by aids-de-camp of crooks, will serve the accused on trial.

Wrest what he will, from whom he will, by what method he will, the predal felon is not held to monetary restitution in so much as a red cent. The looted can sweat for the loot the thief “plants,” then employs in another swing around the criminal circle.

The least elastic of the predicates of penal law are held at bay in all but a temerous few of America’s secondary prisons.

Far from being the crowded-out derelict he is painted by those who are either ignorant or perjured, the ex-convict usually can go to work at honest work, if he wills to do so. If he is a skilled workman, work almost surely will be provided for him. If he is unskilled, yet of parts such as “undercover” Fagins cultivate, he can always dodge artfully and profitably as skirmisher for them. Hence, for one governing reason, “discharged,” or “sentence suspended,” is so frequently written over the faces of indictments against habitual and consecutive scoundrels.

Public opinion still makes hair-trigger response to lament over the lacerated feelings of heartless killers.

Otherwise far-seeing men applaud the frayed platitudes of criminological academicians who are primarily responsible for the low-down dance-hall atmosphere of the bulk of America's reformatory plants; and for the nauseous fact that in those plants thief-sport parasites are suffered to derail industry.

Search where you may, and there America practically "turns the other cheek" to thrusts of the rough-riding drone.

It hasn't worked, it doesn't work, and it won't work. It has builded to the most brutal of expression in human history, and it does threaten fatefully.

Well, then, since bidding for crime and compromising with criminals won't do, what's the answer? What's to be done about it, and how is it to be done?

Most unfortunately, such questions now sink to the bottom of an angry social sea, the depth of which the mind of no one man can plumb; but the troubled waters shall have subsided for something like safe passage, when criminals and potential criminals shall have been required to pay after the manner in which nature exacts reactive penalties.

Inclusive of moral criminals, the first logical step in arresting criminousness is to make criminousness the most expensive luxury man can essay.

First off, oblige predal felons to make restitution in kind: as to offenses against property, dollar for dollar under reasonably elastic legal limitations; and as to offenses against the person, very much as civil courts award damages for bodily injuries.

At the same time, drag out and set down hard, those who make a business of beating equitable exchange.

Bow out of reformatory management all who would build cardinally to other than earnest, consecutive endeavor on the part of prisoners for occupational skill with which to meet the exactions of the free-life working day. Essentially, handcuff mawkish sentimentalists who cannot see the public security for oblique impulse to pamper flippant foragers.

Spare imprisoned, sin-driven lads so much as suggestion of the like of pug-charged thrills, while ministering just common sense and Christ-like to their

crying needs, and probably the ninety-and-nine of them won't pack a gun and break for money bags.

When the exceptional freebooter just won't play fair, and just will go gun-hung for plunder, isolate him and keep him isolated. Do it both in and out of prison.

There is no call upon the commonwealth to motivate for the commission of crime, through pyramiding upon clemency that is spurned.

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